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A Contrastive Critical Discourse Analysis of the Universal Declaration of Human Rights and Risalat Al-Huquq of Imam Ali Al-Sajjad (p.b.u.h.)

A Thesis

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BY

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بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ

*In the name of Allah, the Most Merciful, the
Compassionate*

"وَأَاتِ ذَا الْقُرْبَىٰ حَقَّهُ وَالْمِسْكِينَ وَابْنَ السَّبِيلِ

وَلَا تُبْذِرْ تَبْذِيرًا"

(الاسراء

, ٢٦)

*"And render to the kindred their due rights, as [also] to
those in want, and to the wayfarer: But squander not
[your wealth] in the manner of a spendthrift".*

صدق الله العلي العظيم

Almighty Allah, The Most High has told the truth (Ali,

1989: 35).

(Al-Israa, 26)

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Dedication

This work is respectively dedicated to two fruits of the Mohammedan tree, namely, Prophet Mohammed's heart Fatima Al-Zahraa (p.b.u.h.) and the prophesied redeemer of Islam Mohammed Al-Mahdi (p.b.u.h.) whose spiritual presence in my heart has provided me with a special motivation. I also donate it to the beam of wisdom Imam Ali ibn Al-Hussein (p.b.u.h.) whom I hope have introduced and discussed his precious words in the way they deserve and I beg his pardon if I have ever detracted his priceless text.

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Abstract

Critical Discourse Analysis is a research paradigm that linguistically addresses general issues which are influenced by social factors through showing the relationship between discourse and society. Due to the hard times the world goes through because of the absence of any practical representation or a real call for human rights, it has become a necessity to shed light on such an issue. This treatment could be done by linguistically and critically employing Critical Discourse Analysis (henceforth, CDA) to the analysis of two texts whose core topic is the issue of rights, namely, Universal Declaration of Human Rights (henceforth, UDHR) and Risalat Al-Huquq "Treatise on Rights" of Imam Ali Al-Sajjad (p.b.u.h.) (henceforth, RH).

The present study has the aims of investigating the linguistic structure of UDHR and RH, exploring their interpretative procedures, and explicating ideologies.

It is hypothesised that: (1) UDHR's and RH's linguistic structure is divergent with respect to vocabulary, grammar, and text structure. (2) The domains of interpretation of UDHR and RH differ as to situational context, intertextuality, speech acts, and schemata. (3) UDHR's ideology of rights is secular and limited to political and juristic attitudes while RH's ideology of rights is religious and concerned with different aspects of life.

In order to achieve the aims of the present study and test its hypotheses, the following procedures are adopted: (1) Presenting a theoretical account of CDA through relevant literature review and some previous studies in addition to a brief account of UDHR and RH. (2) Analysing the texts selected by following basically Fairclough's (1989) *Language and Power* model which consists of three stages, namely, description, interpretation, and explanation. (3) Discussing the results of

the analysis. (4) Contrasting the findings of the analysis of the two texts after each stage of analysis to show out the points of similarity and difference.

The present study has come out with the following results: (1) Descriptively, UDHR and RH follow different classification schemes involve the use of different process types, utilize the meaning of obligation through the modals used, and are structured textually in a divergent way. (2) Interpretatively, UDHR and RH have distinct purposes. They incorporate different types of texts concerning their intertextual bases. Both employ directive speech acts alongside with other type of SAs but RH appoints the use of subsequent speech acts which assist the macro ones whereas UDHR does not. Further, their schemata convey their composers' intention in the way they are framed since in UDHR rights are of same importance so do not follow specific gradation while in RH they are graded in a purposeful seriatim. (3) Explicatively, two general points are raised. First, the ideologies upon which UDHR and RH are based vary between secular and religious respectively. Second, their powers differ due to their different origins and sources.

List of Abbreviations

Abbreviated form	Full form
CDA	Critical Discourse Analysis
CL	Critical Linguistics
DA	Discourse Analysis
DHA	Discourse Historical Approach
DRMC	The Declaration of the Rights of Man and of the Citizen
EC	Essential Condition
FCs	Felicity Conditions
MR	Member Resources
PC	Preparatory Condition
PCC	Propositional Content Condition
RH	Risalat Al-Huquq "Treatise on Rights" of Imam Ali Al-Sajjad (p.b.u.h.)
SA	Speech Act
SAs	Speech Acts
SC	Sincerity condition
SFL	Systemic Functional Linguistics
ST	Source Text
TT	Translated Text
UDHR	Universal Declaration of Human Rights

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Chapter One

Introduction

This chapter is concerned with presenting some general accounts of the problem, aims, hypotheses, procedures, limits as well as values of this study. In addition, there is a presentation of some key terms that are mainly relevant to the present study.

1.1 The Problem

In view of the dominant secular and non-human acts in our society, calling for rights and appealing to them has become an undeniable affair. Therefore, there has been an excessive importance to bridge the gap between the idea, cultivation, and conventions of human rights on the one hand and their realistic application on the other. According to this study, this could be put at hand by studying two texts, namely, the Universal Declaration of Human Rights and Risalat Al-Huquq of Imam Ali Al-Sajjad (p.b.u.h.). Wodak (2009: 7) states that discourse both formalizes and is formulated by social conventions. By saying so, she sheds some light on the apparent role of discourses in controlling and guiding societies. The way discourses administer societies or being administrated by them is one of the major concerns of critical discourse analysis (henceforth, CDA) which is one of the recent manifestations of Discourse Analysis (henceforth, DA). In addition, the texts selected belong to two languages, namely, English and Arabic in order to find out the way they converge and diverge in the treatment of the issue of rights.

As far as this study is concerned, the selected texts have not been contrastively analysed by means of CDA. Precisely, this work has set itself the task of answering the following questions:

1. What is the linguistic structure of UDHR and RH especially from lexical and syntactic perspectives?
2. How can UDHR and RH be interpreted with respect to four interpretative procedures, namely, situational context, intertextuality, speech acts, and schemata?
3. How can UDHR and RH be explained in terms of their ideologies and power?

1.2 The Aims

In light of the preceding questions, the study has set the following aims:

1. Investigating the linguistic structure of UDHR and RH with respect to their vocabulary; grammar, namely, transitivity and modality; and text structure.
2. Exploring UDHR and RH with respect to four interpretative procedures, two for the interpretation of the context (situational context and intertextuality) and two for the interpretation of the text (speech acts and schemata).
3. Explicating UDHR and RH with respect to their ideologies and power.

1.3 The Hypotheses

The hypotheses of the present study will be presented within three groups that represent three stages of analysis, namely, description, interpretation, and explanation:

1. UDHR's and RH's linguistic structures are divergent with respect to their vocabulary, grammar, and text structure.
 - a. Concerning their vocabulary, the classification schemes in UDHR are mostly liberalistic and intending universality while in RH they are religious and implying a divine source.

- b.** As to transitivity, the process types that are used in UDHR and RH are different from each other.
 - c.** In relation to modality, the prevailing meaning that is conveyed through the use of modals in both UDHR and RH is that of obligation, in addition to some other meanings, due to the two texts' interest in the administration and guidance of people.
 - d.** As regards their text structure, UDHR and RH depart from each other concerning their major parts, the number of rights included, and the types of rights set.
- 2.** The domains of interpretation of UDHR and RH differ as far as situational context, intertextuality, speech acts, and schemata are concerned.
 - a.** Concerning situational context, the purpose behind the construction of UDHR is impressionistic while of RH is efficacious.
 - b.** Intertextuality figures a divergence between UDHR and RH as to the texts they reflect as well as the genre to which they belong.
 - c.** With respect to speech acts, both UDHR and RH, having an instructive nature, figure the use of directive speech acts in addition to other types that accord with their minor concerns.
 - d.** As for schemata, rights in UDHR have equal importance so that no specific gradation may follow in presenting them whereas in RH they are presented in a seriatim moving from most important to the less important.
- 3.** UDHR's ideology of rights is secular and limited to political and juristic attitudes while RH's ideology of rights is religious and concerned with different aspects of life. On the other hand, their power differs due to their different origins.

1.4 The Procedures

In order to achieve the aims of the present study and verify or refute its hypotheses, the following procedures are adopted:

1. Presenting a theoretical account of CDA which is related to its literature review and some previous studies in addition to a brief account of UDHR and RH through describing them using Hymes (1974) speaking model.
2. Analysing the texts selected by following an eclectic model of Fairclough (1989) *Language and Power* model in addition to Halliday and Matthiessen (2014), Quirk et al. (1985), Fairclough (1992), Searle (1979), and Van Dijk (1977).
3. Discussing the results of the analysis.
4. Contrasting the findings of the analysis of the two texts after each stage of analysis to show the points of similarity and difference.
5. Calculating the results of analysis by using a statistical method which is represented by the percentage equation.

1.5 The Limits

The present study is limited to employ Fairclough's (1989) *Language and Power* CDA model for the analysis of the data. More specifically, it is limited to the use of Hymes model of context, the use of lexical, grammatical, textual, contextual, intertextual, schematic and pragmatic parameters of analysis. It is also limited to the ideology and power of the data selected. The selected data include two texts. The first is the Universal Declaration of Human Rights which is adopted and proclaimed by the United Nations (henceforth, UN) on December 10, 1948. The second is Risalat Al-Huquq "Treatise on Rights" of Imam Ali Al-Sajjad (p. b. u. h) which is written during the 7th century.

1.6 The Value

The present study is hopefully useful linguistically, pedagogically, and socially. Linguistically, the present study attempts to contribute, though little, to the linguistic field of CDA through analysing the texts selected using a framework of CDA. Pedagogically, it could be beneficial for those interested or specialised in CDA. Socially, as the title suggests, the present study can be beneficial for human beings as it discusses some issues which are deeply related to them, their rights, as well as their duties. Furthermore, it might serve as a call for claiming their rights since having them gained is supposed to inspire or motivate them to be more productive in all fields of life.

1.7 Definitions of Key Terms

1.7.1 Discourse

Defining discourse is not an easy task because of the overlap which is encountered due to the various disciplines that provide conflicting viewpoints about it. However, Fairclough (1992: 3) gives two definitions of its traditional and more common perspectives in linguistics. Traditionally, it has been used to refer to lengthened patterns of spoken as opposed to written texts. On the other hand, commonly, it is commonly used to epitomise both spoken and written language. It mirrors what is there in mind of the writer.

Fairclough (ibid.) further asserts that what is mostly emphasised in discourse is the interaction which enters between the writer and reader or between speaker and addressee along with the higher-level-organisational features. Accordingly, processes of producing and interpreting writing or speech in addition to language use are also involved. He regards 'text' as just one dimension of discourse that is only the product.

The term is, also, used by Steel (2002:1) cited in (Sayfuldeen, 2010: 27) to underlie the communicative purpose of a text in the sense that it

consists of purposeful groupings of units of language that fulfils variant communicative aims and help in carrying out variant acts in variant contexts.

CDA's main concern, as put by Bhatia et al. (2008:11), is actually to make readers aware of the hidden and subtle meanings in discourse through providing them with the needed means to reveal the minute manipulations of language.

1.7.2 Critical Discourse Analysis (CDA)

Lacking a uniform or common theoretical foundation, CDA is determined by different theories due to the diverse approaches introduced by different theorists. Van Dijk (1985: 6) defines CDA as a possible extension to relevant discourse analysis, a one that is in one way or another concerned with "the formulation of criticism and alternatives".

Weiss and Wodak (2003: 6) see that it is possible to find different theories that determine discourse including for example, discourse, linguistic, socio psychological, sociological theories and others. This view is also asserted by Wodak and Meyer (2009: 2) when referring to CDA as being interested in investigating social phenomena that are complex and need a multidisciplinary and multi-methodical approach.

Doing CDA, according to Wodak (2011: 39) involves an understanding of discourse as being both socially constitutive and conditioned. It serves in constituting situations, objects of knowledge, as well as the social identities of people and the relationships that govern them. It is constitutive both in the sense that it helps to sustain and reproduce the social status quo, and in the sense that it contributes to transforming it.

A definition that derives from Van Dijk's and Wodak's, above mentioned, views of CDA can be introduced as a procedural definition of this study, it reads as follows: It is a way of analysing discourse critically

to mark out the ideologies that underlie it as it (i.e. discourse) represents an image to its society and the beliefs and social identities of its members in case of being put by a powerful person or group. Thus, it addresses social problems, reproduce them under social issues, and make a stance towards them.

1.7.3 Ideology

Ideology has been dealt with heavily in CDA as an essential concept. Some of CDA scholars have provided definitions for the concept of ideology. However, Fairclough's definition of ideology will be adopted as the operational definition modified by the addition of the link of social cognition since discourse can be considered as a mirror to the discourser's beliefs, attitudes as well as values. Consequently, ideology would be a representation of aspects of the world fixed in the minds of group members which contribute to establishing and maintaining relations of power, domination and exploitation. Fairclough (2003: 57) distinguishes two views for ideology. The first is considering it as a process which "goes on in events" whereas the other view is that "ideologies reside in texts". The second view enters into the present study operational definition of ideology.

1.7.4 Power

Power has a tight link to discourse in the sense that discourse represents the medium of constructing, maintaining, and contesting power abuse as well as its reverse, resistance. The operational definition of power, in this study, is adopted from Fairclough's (1989) 'ideological power'. It reads: power is the ability gained by powerful or dominant individuals or groups that enables them to inculcate their social as well as political ideologies implicitly or explicitly through discourse.

Chapter Two

Literature Review

2. Introduction

This chapter presents a theoretical background about the critical discourse analysis, some of its approaches, principles, criticisms, and some previous studies. In addition, it includes the description of the two selected texts under study, namely, UDHR and RH according to the S.P.E.A.K.I.N.G. model by Dell Hymes.

2.1 Critical Discourse Analysis (CDA)

2.1.1 An Overview of CDA

CDA cannot be seen as an orientation, or specialism opposite the many other approaches in discourse analysis. On the contrary, its main objective is to suggest another standpoint of analysing rather than the one proposed by DA. As such, it can be regarded a response to the prevailing formal model of the 1960s, that is DA. Furthermore, its emergence can be traced back to the Social Theory in the early 1970s and Systemic Functional Linguistics (henceforth, SFL) in the early 1970s as well. Its tenets can also be found in the critical theory which focuses on the language of discourse which has begun with Critical Linguistics (henceforth, CL) that has come into existence at late 1970s (Van Dijk, 2008: 85).

The early DA, (that of the 1960s) which is described by Van Dijk (ibid.) as "a social" or "uncritical", focuses on the linguistic devices, grammatical cohesion, and semantic principles that connect parts into wholes. It is defined by Bhatia et al (2008:1) as "the analysis of linguistic behaviour". On the other hand, CDA coincides with critical developments in psychology, sociolinguistics, and some social sciences such as politics and philosophy, some of which date back to the early 1970s. It draws upon some contributions of social theorists like: Marx, Gramsci,

Althusser, and Foucault who have directed CDA's concerns to observe power relations as well as ideologies which are involved in discourse (Van Dijk, 2008: 85). Blommaert (2005: 27) points out that each one of those socialists has a point of influence on CDA, for example, notions like 'ideology', 'orders of discourse', 'hegemony', and others.

What differentiates Social Theory from CDA is that social theorists have concentrated on the social aspects of the text and have neglected its linguistic features while critical discourse analysts have brought together social theory as well as textual analysis. As pointed out by Rogers (2004), a distinctive feature of CDA is that it considers social theory as its initiator. That is, it starts with the assumption that the social world both constructs and is reflected by discourse (p: 6).

Being dissatisfied with the bases of DA, to be accurate, its concentration on texts and negligence of the social context in which they are produced and interpreted, Halliday (1978: 262) has offered a three layered model (tenor, mode, and field) comprising phonology, lexicogrammar, and semantics. Based on this model, texts can be analysed with respect to three correlative elements: description, interpretation, and explanation (Fairclough, 1989: 26) or communication, language use, and interaction (Van Dijk, 1997: 5). Due to the rise of SFL (Halliday, 1978) a change in the focus of DA has taken place. Texts are then being regarded as part of the social reality serving a role in the interpretation as well as production of the social context.

Blommaert and Bulcaen (2000: 454) point out that CDA adopts Halliday's three metafunctions alongside with systemic-functional analysis of transitivity, agency, mood, register, nominalisation, and information flow. The principle of transitivity, according to Teo (2000: 25), "can be expressed simply in terms of 'who does what to whom'". In addition to the previous questions there is another one which is concerned with investigating the circumstances in which an event takes place,

namely, 'in what conditions'. Therefore, any transitivity analysis contains three major components: process (what), participants (who and whom), and circumstances (in what condition).

In the late 1970s, a group of linguists and academics in interconnected fields at the University of East Anglia has promoted Critical Linguistics through focusing on issues like relations between language, ideology, and power and using language in social organisations (Blommaert, 2005: 22). Scholars working in this group like Robert Hodge, Roger Fowler, Tony Trew, and Gunther Kress, as is pointed out by Bhatia et al. (2008: 195), have been concerned with developing a social approach to linguistics that recognises power relationships as a central theoretical issue and text as its main unit of analysis.

CL is influenced by SFL in two issues; the first of which is that CL's chief objective of 'isolating ideology in discourse' has been pursued by developing Hallidayan analytical means of analysis (Trew, 1979: 155). The second issue of influence is its belief that choices speakers\ writers make concerning grammar and vocabulary are consciously or sub-consciously organized. Such choices represent the systematicity in SFL (Fowler et al. 1979: 185).

Over years, CL, as pointed out by O'Halloran (2000:13), has morphed into CDA through emphasising indications of ideological as well as cultural meaning of discourse. He also mentions that CDA and CL agree in exposing ideologies, however, CDA lays much attention on explicating their social circumstances. Similarly, Machin and Mayr (2012: 16) say that both, CL and CDA draw on two principal thinkers: the American linguist Benjamin Lee Whorf and the British linguist Michael Halliday. Apart from these points of resemblance between CDA and CL, they diverge in two major points: first, in CDA, the interpretation of discourse is different between the audience and the discourse analyst.

Second, the issue of broadening the scope of analysis, that is, CDA includes contextual and intertextual along with the textual analysis.

The formal and institutionalised beginning of CDA as a method that offers both social and contextual description and interpretation of discourse as well as explanation of the way in which discourse works has been in the early 1990s. Wodak (2001b: 4) points out that Norman Fairclough, Gunther Kress, Teun van Dijk, Theo van Leeuwen, and Ruth Wodak have discussed, during a two-day meeting, methods of DA, specifically those relating to CDA. This meeting has taken place in 1991 in the University of Amsterdam.

According to Bloor and Bloor (2007: 2), CDA is a multidisciplinary approach as it shares interests and sometimes methods with disciplines that study social groups and social structures, such as anthropology, ethnomethodology, sociology, and ethnography, and with disciplines that are concerned with behaviourism and human cognition such as cognition and social psychology.

In sum, CDA is a multidisciplinary approach of Applied Linguistics. It applies linguistic studies to non-linguistic ends, such as social or political ones. It could be considered as a reaction to the previous proper model of DA of the 1960s and 1970s which has been classified as uncritical since it is purely descriptive. In addition, it draws from social theory. Furthermore, it has emerged with an influence from SFL. Finally, it is seen as a developed form of CL.

2.1.2 Approaches to CDA

Notwithstanding the variation in the standpoints and procedures espoused by CDA, it is possible to circumscribe three broad approaches, namely, Fairclough's three-dimensional approach, Van Dijk's socio-cognitive approach and Wodak's discourse-historical approach. These are the most important ones, in addition to them there are other like Hodge and Kress' syntagmatic approach, Van Leeuwen's sociological

representation of social actor and Kress and Van Leeuwen's socio-semiotic approach. Generally speaking, Wodak (1989:137) uses language of political nations to analyse their gender discrimination. Fairclough (1992: 8) employs a multidimensional method for the observation of social changes and linguistic manifestations that are found in discourses of resistance and difference. Furthermore, Van Dijk (2001b:26) joins CDA with cognition to reveal the ideological structures which are covert in humans' remembrance.

Variation in CDA approaches are not just related to the variant directions of its practitioners since some scholars may themselves develop varying models to address different social problems. For example, Wodak (1991; 1997) develops models to treat the social problem of anti-Semitism and medical practices respectively. Similarly, one social problem can be examined by one scholar through various models as a result to the different data analysed. Van Dijk (1985; 1995c; 2001b) has used CDA to uncover the way in which news media statements replicate racist assessments of social leaders. Those prejudices that are stated in news reports are correspondingly found in textbooks, everyday tales, intellectual texts, and governmental debates (Van Dijk, 2001a: 361).

2.1.2.1 Fairclough's Approach

Fairclough has proposed his approach of CDA as a series that consists of three moves due to the continuous social changes that consequently lead to changes in agendas of CDA. According to Fairclough (2015), the three variants of his version of CDA can be summarised as follows. The first variant focuses on the critique of ideological discourse which is marked by the first publication of his book *Language and Power* in 1989. The emergence of the second variant is marked by his *Discourse and Social Change*, which has been published in

1992, which centres on the analysis of discourse as a fragment of societal change. Finally, the third variant concentrates on the criticism of discourse in political argument and policy making which is marked by the publication of the book *Political Discourse Analysis* in 2012.

Fairclough (1995: 133) defines CDA as a discourse analysis that intends to discover scientifically the connections of causation and resolution between texts and cultural and social constructions to explore how the latter constructions give rise to these texts by establishing their ideological shapes. Such a view reveals how Fairclough is clearly concerned with observing discourse as socially shaped and socially shaping means. This can be done simply through investigating the ideologies that are conveyed through discourse and which determine its identity or its producer's identity.

The essence of CDA requires explaining how a specific discourse figures within a society in addition to critiquing it, Fairclough (2015: 5) believes, because CDA aims at changing existing societies for the better. In other words, the analysis should also focus on the 'howness' of the discourse or how it is produced through interpreting it and 'whyness' or the reason behind setting such a discourse through explaining it rather than only on 'whatness' or describing its formal properties. This implies that a discourse is never analysed in isolation, rather, the analysis should be done with regard to other elements. As such, in *Language and Power* published in 1989, Fairclough distinguishes three stages of CDA; description stage which corresponds with the text, interpretation stage which corresponds with the discursive practice of discourse, and explanation stage that corresponds with the social practice of discourse. Similarly, the second stage is associated with processes of production and distribution while the third one is connected to social structures and relations.

The **description stage** is interested in revealing the proper properties of text. The analysis in this stage, as Fairclough (1989: 110) points out, is done through investigating "choices from among the options (e.g. of vocabulary or grammar)". Namely, he highlights a set of textual features which is selective and tends to be most significant to a CDA. For him, the three parameters to be analysed in any text are: vocabulary, grammar, and textual structure. For the sake of mediating the correlation between text and social structures, Fairclough (1989: 140) asserts that knowledge of the formal properties of a text might not be sufficient. As such, this relationship could be mediated; first, when texts are **interpreted** and produced opposite a background of common-sense suppositions. Further, it could be mediated when the relationship between discourses and processes of struggle and power is **explained**.

Two types of power are distinguished by Fairclough (1989: 3-4); that which is exercised through 'coercion' such as physical violence and the one exercised through the manufacture of 'consent' to the power exercised. He also believes that modern society relies heavily upon the ideological workings of language in exercising power. This means that the information transmitted through language is ideologically oriented rather than neutral in the sense that it depends upon the social or political implications of its users. Later on, he calls the second type 'ideological power' which he describes as "the power to project one's practices as universal and 'common sense'"; it is significant since it is exercised in discourse. Such type of power becomes naturalised as soon as people draw upon its practices which legitimise directly or indirectly existing power relations which, although in reality not as such, appear to be universal and 'common-sensical' (ibid: 33).

Table (1) Fairclough's framework of CDA

Description	Interpretation		Explanation
1. Vocabulary	1.Context	Situational Context	1.Social determinants
		Intertextuality	
2.Grammar	2. Text	phonology, grammar, and vocabulary	2. Ideologies
		Meaning of utterance	
3. Text Structure		Local Coherence	3. Effects
		Topic and 'point'	

(After Fairclough, 1989: 109-168)

His analytical framework is a three-dimensional one in which each discursive event is seen as having three dimensions; text; discursive practice, which involves processes of interpretation and production; and social practice. His textual analysis is based upon form-and-meaning, as a result, he analyses the three metafunctions of text: 'ideational', 'interpersonal' and 'textual' meanings as well as the general forms of texts; their dialogic organization; questions of mood, modality and transitivity within the grammar of the clause, cohesive relations between sentences, and vocabulary (ibid.: 134). On the other hand, the second dimension is interested in clarifying the way in which participants interpret and produce texts. The concept of interdiscursivity, that is having the text being constituted from varied discourses, is involved in such an analysis. Finally, in the third dimension, analysing speech event as a social practice, Fairclough (1992: 86) analyses discourse regarding its power and the ideology it represents by giving power a portrait of a dominating conflicts that could be opposed by resistant and contrasting power. In fact, Fairclough's (1989) framework of CDA is reintroduced in Fairclough (2001) with no change.

Wodak and Reisigl (2009: 27) call Fairclough's approach **Dialectical–Relational Approach**. They report that CDA for Fairclough is a study of the dialectic association between language and some essentials of social exercises. Fairclough (2012) further assumes that there is as well a dialectical perspective of "the relationship between structure and agency, and of the relationship between discourse and other elements or 'moments' of social practices and social events" (p.: 453).

In the third variant of Fairclough's version of CDA, namely Political Discourse Analysis, Fairclough and Fairclough (2012) integrate "analysis and evaluation of practical argumentation into an approach to critical analysis of political discourse based upon a version of critical discourse analysis" (p:10). While doing CDA, it is necessary to put in mind, along with analysing and criticising the present social reality, a step towards changing it since discourse has the peculiarity to reveal or make clear the ideologies, political strategies, and relations of power. He adds, an aim of CDA is the alteration of standing societies for a much more better state through gaining a good understanding of how specific discourse transmits some elements of the current reality (Fairclough, 2015: 5).

2.1.2.2 Van Dijk's Approach

Van Dijk's approach is called **socio-cognitive approach**. His early interest has been in applying a critical theory for the news discourse and this is clearly mentioned in Van Dijk's (1988a' 1988b) which represent his clear concern with the language of media.

Ideologies constitute one of the domains of analysis in Van Dijk's studies, he in (1991) points out that controlling other people's behaviours requires a control over their group attitudes specifically their fundamental ideologies. In this case, audience will act freely but to the interest of those in power. This, according to him, changes the exercise of power in modern, democratic societies from being coercive into more persuasive that is ideological. He adds, structural dominance might consequently be

converted into hegemony through gaining a sense of legitimacy and acceptance by even controlled groups. This thus reduces their effort for resisting (p:37).

Furthermore, Van Dijk (1993a: 119) believes in the importance of CDA in establishing "counter ideologies that in turn support dissent and counterpower." In addition, CDA serves in revealing the ideologies that spring out of power abuse.

In linking dominance to discourse, Van Dijk (1993b: 279) mentions two situations in which there is an interface which is a socio-cognitive interface between discourse and dominance. In the first situation, "dominant speakers may effectively limit the 'communicative rights' of others, e.g. by restricting (free access to) communicative events, speech acts, discourse genres, participants, topics or style." In the second situation, the dominant speakers "control the access to public discourse and hence are able to indirectly manage the public mind." These situations of domination could be fulfilled, for example, through manipulating the mental mind of the audience which consequently results in developing the social situations that the dominating group prefers. This in its own gives an extension to the attitudes, ideologies and norms of the dominant group over the dominated one.

To Van Dijk (1995a: 19), CDA is concerned essentially with studying appositionally the strategies of social and cognitive conditions of elite discourse. In addition, it studies "the discourses of resistance against such domination." It is multidisciplinary in the sense that it focuses on the relations between discourse and society for the sake of studying issues adequately. Therefore, CDA presupposes detailed explicit theories about the roles and functions of the strategies and structures of talk and text in social context and cognitive processing. In other words, it has a task of examining "textual and mental structures and strategies" in a detailed way (ibid.: 24).

Van Dijk (1997: 23) believes that the critical discourse analysts' work is issue-oriented rather than theory-oriented in the sense that they, in addition to observing connections between social structures and discourse, have the ambition to be agents of change. This can be the main reason behind developing social discourse analysis to take the form of a CDA.

He also focuses on the idea of analysing implicitness in discourse. It means to imply ideas or ideologies rather than stating them explicitly. He believes in the usefulness of studying what is implicit in the underlying ideologies since the text for him constitutes only "the tip of the iceberg" (Van Dijk, 1998: 31). As such, it becomes the responsibility of the discourse analyst to uncover the hidden meaning of the text. For example especially with negative ideologies, a racist might not say what he intends explicitly as it might reveal his identity which would not be preferred by most of the people. This could indicate one reason; another is that speakers and recipients are able to understand each other as they share the same common ground. Thus, there is no need to state all what they intend.

Van Dijk (2000, para: 13) also argues that a cognitive analysis of discourse might look too "mentalistic" to social/critical discourse analysts for its concentration on mental structure rather than text structure. However, the important properties of discourse, those which determine its meaningfulness, such as topics, local meanings, coherence, etc. are themselves mental. In other words, the text meaning is embodied in the minds of language users and they accordingly assign it to the text.

He (2001a: 352) defines CDA as:

a type of discourse analytical research that primarily studies the way social power abuse, dominance, and inequality are enacted, reproduced, and resisted by text and talk in the social and political context. With such dissident research, critical discourse analysts take explicit position, and thus want to understand, expose, and ultimately resist social inequality.

This definition highlights some notions that feature the typical vocabulary of many CDA scholars such as: ideology, power, class, dominance, discrimination, hegemony, reproduction, gender, race, interests, social structure, institutions, and social order. Similarly, it shows the importance of context in analysing texts and revealing their implied meaning and their hidden ideologies.

Van Dijk (2006b: 729) links ideology to social cognition in the sense that it represents beliefs in the minds of group members and consequently affects their identity, goals, norms, and so on. These beliefs are general; as such, they are not necessarily identified as negative ones since even controlled communities have their own ideologies of reluctance. As such, he assumes that there is another type of ideologies which are positive. In other words, as there are negative or dominant ideologies (e.g. racism), there are positive or non-dominant ones (e.g. antiracism).

In his approach, Van Dijk (2008: 87) maintains that CDA has an objective of theoretically bridging the distinguished 'gap' between macro and micro methods since both levels of analysis are necessary. Concepts such as language use, verbal interaction, discourse, and communication belong to micro-level analysis and those like power and dominance are parts of macro-level analysis.

Van Dijk (2015: 64) states that his sociocognitive framework of CDA is characterised by a Discourse–Cognition–Society triangle. It is clear that this triangle consists of three interrelated components in which cognition mediates between discourse and society. The **cognitive component** is highly concerned with the memory and mind. The Socio-Cognitive Approach has as a **social component**, the social macrostructures, specifically, those "organizations that directly or indirectly control public discourse" (ibid.: 70). The third angle in the

triangle is **discourse**. He considers it as the major task of critical discourse analysts. Within this component critical discourse analysts do not need to concentrate only upon the discourse structures, rather, they should also make use of the previous two components. Their task here is to "describe and explain how discourse may be involved in the (re)production of power abuse . . . [and how] the role of knowledge, attitudes and ideologies in such discursive domination" has an efficient impact (Van Dijk, 2015: 72). The figure below shows the interrelated relationship between the triangle's angles.

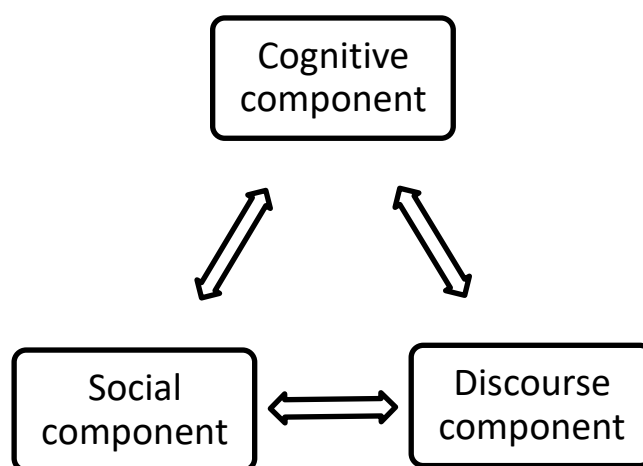


Figure (1): Van Dijk's (2015) Socio-Cognitive Approach

2.1.2.3 Wodak's Approach

The third approach is Wodak's (2001;2009) Discourse Historical Approach (henceforth, DHA). Adhering to the sociophilosophical trend of critical theory, DHA complies a complex concept of 'social critique' which includes three interrelated facets: **socio-diagnostic critique**, **text or discourse immanent critique**, and **prospective critique**. The first two, as pointed out by Reisigl and Wodak (2009: 88), are concerned with the recognition dimension while the last one is concerned with the action dimension of discourse.

Wodak (2001a: 65) confirms that their approach has the intention of multi-methodically dealing with various methodologies depending on the basis of a variety of empirical data and background information. This

can be done through incorporating background knowledge about the historical sources of political and social fields which submerge actions. She (2001a: 67) also adds that it complies the principle of triangulation in which the concept of context is scrutinised in four stages; the first stage is linguistic and concentrates on grammar whereas the latter three are concerned with social theories of context. The four levels are: co-text level, intertextual level, extra linguistic social/sociological level, and a broader sociopolitical and historical level.

In her own words, Wodak (2002: 12) states that:

the concrete analysis should take into account historical developments of discursive practices (change), intertextuality, and interdiscursivity. This might explain why it is so difficult to provide “short, telling” examples in a paper: an example needs the deconstruction of the whole social-political and historical context in which the discursive practices are embedded. This approach . . . explains why interdisciplinarity is a necessity when undertaking CDA.

It is clear from the above-mentioned quotation that interdisciplinarity is highly needed in this approach. This will consequently form a triangle of three fields, namely, linguistics, psychology, and history. This approach is developed, as asserted by Wodak, for the sake of tracing 'Feindbild' or the image of enemy which is constituted stereotypically for the Semites during the 1986 Austrian official movement of Kurt Waldheim. This, in fact, stresses its political orientation and the way it deals with political problems. Later on, DHA is elaborated in other studies, namely, one for racial discrimination in opposition to the Romania refugees and another for questioning Austria national identity discourse (ibid.: 18).

Furthermore, Wodak et al. (2009: 2) state that to the contrary of many studies within CL, DHA concentrates mostly on investigating and studying experimental data so they can reach to some practical findings rather than restricting themselves to theoretical results.

'Critique', 'power', and 'ideology' are three necessarily figuring concepts are constitutive for every approach in CDA, though frequently employed with different meanings. Therefore, it is important to clarify how they are conceptualised in the DHA. The first of them is referred to above when referring to the concept of 'social critique'. The other two are given special concern here. According to Reisigl and Wodak (2009: 88), Language is not powerful on its own; rather, powerful people make use of it to maintain power. They regard power as the possibility that an individual within a social relationship carries out his will regardless of the will of others. They also relate it to an "asymmetric relationship among social actors who assume different social positions or belong to different social groups." In short, According to them language is the means of social power and discourses are sites of social struggles for dominance. On the other hand, Wodak and Meyer (2009: 9-10) suggest that power, within CDA, is mostly perceived as "a systemic and constitutive element/characteristic of society". This definition represents Foucault's (1975) approach to power.

Ideology is regarded by Reisigl and Wodak (2009: 88) as:

One-sided perspective or world view composed of related mental representations, convictions, opinions, attitudes and evaluations, which is shared by members of a specific social group. Ideologies serve as an important means of establishing and maintaining unequal power relations through discourse In addition, ideologies also function as a means of transforming power relations more or less radically.

The main points focused upon in this definition are; first, the depiction of ideology as mental representations; second, the negative function of ideology, that is establishing a hegemonic identity which is further asserted by its transformation of power relations to a more radical sense. Although this is its main function yet it is not the only one as there is an indication of counter or opposed ideologies that lessen or eradicate power

abuse. Wodak (2009) also views ideology as a significant tool in sustaining unequal power relations. She thus states that her exact concern is actually in the techniques by which ideology is intervened in a range of social organisations by the use of language (ibid.: 312).

The most important characteristics of DHA are mentioned by Wodak (2015: 2) as follows: its interdisciplinarity, problem-oriented nature, its eclectic methodology, its integration of ethnography and research, the interpretation of historical context, the recursive movement of research between theory and empirical data, the study of intertextual relationships, the continuous elaboration of tools according to the specific problem under investigation, supplication of middle-range theories, and the necessity of applying results to the alteration of some identified social and discursive practices.

Before moving to the next section which is concerned with the major principles of CDA, the analytical frameworks of the three above-mentioned approaches are going to be presented in the following table in order to be distinguished:

Table (2) Prominent CDA approaches

Approaches							
Dimensions of Analysis	Three-dimensional approach of Fairclough (1989)			Discourse-historical approach of Reisigl and Wodak (2001)		Socio-cognitive approach of Van Dijk (2015)	
	Description	Vocabulary		Contents or topics		Discourse	
		Grammar	Transitivity				
			Modality				
		Textual structure					
	Interpretation	Situational context		Discursive strategies	Referential strategies		Socio-cognition
		Intertextuality			Predication strategies		
		Speech acts			Argumentation strategies		
		Schemata			Framing strategies		
					Intensification strategies		
	Explanation	Social determinants		Linguistic realisations		Social analysis	
		Ideology					
		Effects					

(After Fairclough (1989), Reisigl and Wodak (2001), and Van Dijk (2015))

2.1.3 Principles of CDA

The main principles of CDA can be summarised below following Fairclough and Wodak (1997: 271-280):

1. CDA addresses social problems

What differentiates CDA approaches from other linguistic approaches, such as DA, pragmatics, sociolinguistics, is the idea of being directed towards a critical understanding (interpretation and explanation) of social problems. According to Wodak and Meyer (2009: 19), CDA approaches differ in the direction in which they proceed whether being deductive or inductive. In other words whether they start from proposing theoretical frameworks of analysis or from selecting the social problems which they intend to investigate.

2. Power relations are discursive

Power within CDA, in Foucault's (1975) approach, is mostly perceived as a fundamental and organised component\trait of society Wodak and Meyer (ibid.: 9). They are discursive in the sense that they appear in the relational value the formal features have in discourse. Being an instance of language use, discourse contributes to the reproduction of power relations. CDA's task is to show the exercise and negotiation of social relations of power in discourse.

3. Discourse constitutes society and culture

Discourse can serve as a reflection to the society and culture as such this might result in a diversity. In other words, one phenomenon or a social problem can be mirrored differently with respect to the society and culture in which this particular problem is investigated or this discourse is written.

4. Discourse does ideological work

Ideologies are often produced or are revealed through discourse. The type of ideology which concerns CDA is the veiled form of everyday dogmata rather than the one on the surface of culture. In Fairclough's words, they represent the world's characteristics that add to creating and sustaining power affairs, control and manipulation (Fairclough, 2003: 218).

5. Discourse is historical

A hypothesis of CDA methodologies is the importance of the historical background of discourses and that they might just be accurately analysed within their context, with reference to their culture, society and ideology.

6. The mediated link of text and society

The mediation between text and society is translated by Fairclough's use of Halliday's multifunctional linguistic theory and Wodak's and Van Dijk's use of theories of social cognition.

7. The interpretative and explanatory analysis

The analyst needs to interpret discourse through examining processes of production that define the discursive practices. In interpretation process, one makes use of the cues gained from the formal properties of the text. On the other hand, explaining discourse implies linking its linguistic realization to social, cultural or political practices.

8. Discourse is a form of social action

Through discourse one can get access to society, it means that discourse is conditioned by society. This principle is somehow similar to the third one in the sense that society reflects itself in discourse by introducing its people beliefs so people use it as a mirror to their attitudes towards certain issues.

2.1.4 Criticism of CDA

CDA, just like other approaches in linguistics, has a lot of pros and cons. The following are some of its criticisms that are responded to by CDA practitioners:

According to Chouliaraki and Fairclough (1999: 7),

Schegloff (1997) argues that 'serious critical analysis of discourse presupposes serious formal analysis (of discourse), and is addressed to its product', and that furthermore 'formal' analysis of discourse (i.e., conversation analysis) should resort only to those social categories in its analysis which are manifestly oriented to by the participants in their discourse.

Schegloff (1997) questions the subjectivity and interpretive nature of CDA. They are interested in questioning the way in which the researcher's presumptions and views can be separated from their analytical techniques. As a respond to this criticism, Chouliaraki and Fairclough (1999:7) have provided two observations. The first is that critical discourse analysts are characterised of their theoretical practices as opposed to the practical anxieties of the partakers of discourse. As such when the formers intend to analyse a discourse, they apply their theoretical concerns and categories into that discourse. Second, the critical discourse analysts are preoccupied with deciding, along with the data chosen, the way in which it is perceived in addition to its history.

The other criticism is concerned with its methodology. Pennycook (2001: 87) describes CDA as an odd combination of theoretic heterogeneity and unreflective originality. Widdowson (1998: 140) on the other hand, criticises its specialist's job as a process of ad hoc bricolage or intentional selection of some useful concepts. As such CDA's eclectic methodology is also interrogated. On the contrary, Weiss and Wodak (2003: 7) consider CDA as a theoretic mixture of means of analysis.

Having a multitude of model and process is better to be regarded as a point of strength in CDA, they believe, than haphazardness or heterogeneity.

Another criticism by Schegloff (1997), as quoted in Blommaert (2005:32) is related to the biased nature of CDA. He assures that critical discourse analysts' political preconceptions and prejudgments are projected beforehand then are implemented upon data. This means that they depend on the results recognized previously by them and the analysis is just to confirm what they have expected. In this respect, Van Dijk (2001c: 96) notes:

critical discourse analysis research combines what perhaps somewhat pompously used to be called 'solidarity with the oppressed' with an attitude of opposition and dissent against those who abuse text and talk in order to establish, confirm or legitimate their abuse of power. Unlike much other scholarship, CDA does not deny but explicitly defines and defends its own socio-political position. That is CDA is biased – and proud of it.

Van Dijk in the preceding quotation confirms that critical discourse analysts side with those who are dominated against the dominant so that the opinions of the dominated might be taken seriously. Consequently, they (i.e. dominated opinions) are projected through the analysis.

Van Dijk (ibid.) ascribes the many criticisms to CDA for its dissent nature. Such accusations, that CDA is bias, lacking or having a deficient methodology, being subjective and multidisciplinary, and the like, are due to the domination of non-critical scholarship. In other words, it is a way of downgrading any opposition.

Chilton (2005:21-22) directs powerful criticisms to CDA which, according to him, are problems that bedevil or corrupt CDA; Firstly, he queries in case CDA possesses a trustworthy effectiveness as a means of

propagandising social integrity. Secondly, CDA's methods draw upon particular types of social and linguistic theories while neglecting others. Thirdly, he argues that although CDA insists on highlighting the huge political and social role which language plays in life, it has contributed nothing to our scientific understanding of the language.

Widdowson (2004: 169) asserts that CDA is not critical about its own principles and practices. Its purpose is "to expose the fallibility and bias of what has become naturalized and taken for granted"; this same idea can be followed with CDA itself, in other words, to mark its validity as questionable.

2.2 Human Rights

There are many theories as well as opinions that set definitions to the concept of rights. Abbas (1995: 16) mentions that scholars diverge with regard to putting a comprehensive definition for this concept; some say that it is an authority given to the person that allows him to do certain work. This variation has led scholars to emphasise the fact that defining it inclusively depends on its principles in all times and all places.

Human rights, as defined by the Office of the United Nations High Commissioner for Human Rights (OHCHR) which represents the world's commitment to universal ideals of human dignity, are rights that are inherent to all human beings, regardless their nationality, place of residence, sex, national or ethnic origin, colour, religion, language, or any other status. These rights are all interrelated, interdependent and indivisible. They entail both rights and obligations. In addition to the presentation of rights, States assume obligations and duties under international law to respect, to protect and to fulfil them. These duties are incumbent on individuals and states. The obligation to respect denotes that states should not curtail the enjoyment of human rights. The

obligation to protect calls for the States protection of individuals and groups against any abuses.

Furthermore, the Islamic approach of human rights requires viewing these rights as being granted by Allah to his creatures rather than by any king or legislative assembly. As pointed out by Mawdudi (1986), the rights which have been certified by Allah are permanent and continuous. They are not subject to any alterations or modifications, and there is no opportunity for any change or repeal. In this respect, Prophet Mohammed (p.b.u.h.) and Ahl-ul-beit have stressed the need to resolve these rights throughout their sayings and wills.

However, human rights can be clearly reflected and affected people's life through the use of language. Thus, the language of human rights is like the language of other discourse types carries the ideologies of its authors and reflects their power as well as their identities. Hence, analysing such a type of language should not stop at considering its linguistic properties. Rather, it needs an in-depth analysis, one that regards the interpretative and explanatory procedures which are in their turn based on the linguistic ones. The need for such an analysis is due to the practical and real importance such discourses having for humans.

2.2.1 UDHR and RH: A Historical Background

UDHR is an international document that states basic rights and essential liberties to which all human beings are entitled. Most of these liberties are taken from the Declaration of the Rights of Man and of the Citizen (henceforth, DRMC). It is adopted by the General Assembly of the United Nations on 10 December 1948. It has been motivated by the experiences of the I and II World Wars. This gives it an impressionistic nature. It is regarded as a comprehensive statement of inalienable human

rights. Thus, it is agreed upon by many countries and is signed by 48 countries. Although it lacks a binding status, it has given rise to a range of other international agreements which are legally binding including the International Covenant on Civil and Political Rights and the International Covenant on Economic, Social and Cultural Rights.

Mostly when people refer to human rights, they cite the UDHR since being a universal, or described as such, document. However, fourteen century before the UDHR, Al-Sajjad (p.b.u.h.) has written his own treatise on rights which emanates from the view of rights in Islam whose major source is the Glorious Quran, Prophet Mohammed's (p.b.u.h.) traditions, and Imam Ali's (p.b.u.h.) sayings. It is written in the seventh century in time when humanity and especially Islam has been suffering the power abuse of violent leaders controlling at that time. Yet, it is far from being an impressionistic treatise as it is not contended with what has been taken place during that time but holds being of great value even nowadays thus has an effective value. This treatise, in addition to the presentation of human rights, is concerned with introducing rights of Allah, of the self, and of others along with man's duties.

2.2.2 The Contextual Factors of UDHR and RH

After introducing a theoretical background of CDA, it is crucial to have a theoretical background of the two texts under study. This is done through the adoption of Hymes' (1974) SPEAKING heuristic model which is developed as a tool for the assessment of linguistic components of interaction.

Brown and Yule (1983:39) assert that Hymes' properties of context represent a check list that allows ethnographers to reach to the position in which an outgoing occasion is taking place and then examine its details.

The features or components of the model are sixteen: channels; message form; message content; key; setting; purposes (outcomes); scene; speaker/sender; addressor; hearer/receiver/audience; addressee; forms of speech; purposes (goals); norms of interpretation; norms of interaction; and genres.

Choosing this model for the description of the two texts is justified for its belonging to ethnography of communication which, as Strazny (2005: 304) points out, "contributes to the understanding of the interrelationship between culture and language by highlighting the role of culture in communicative behaviors." Furthermore, the sorts of questions pursued in CDA are almost all constituted in Hymes' model. These questions are, according to Trask (1999: 41), Why was this text constructed at all? Does the writer or speaker have concealed purposes, and, if so, what are they? To whom is it addressed, and why? What hidden assumptions and biases underlie the text?

According to Baker and Ellece (2011: 173), this model is influential in the sense that "it foregrounds social context, which is a central tenet of discourse analysis." Fairclough (2015: 19), on the other hand, asserts that there is an interrelated relationship between CDA and ethnography since they both belong to critical analysis but have variant goals since "ethnographic sociolinguistics adds to our understanding of the nature of existing social reality and of relations between discourse and other social elements within it and in so doing can contribute to defining and refining the object of critique in CDA." Finally, it gives a comprehensive image about the text concerning the following linguistic tools which are grouped by Strazny (2005: 304) eight divisions as follows:

- **Setting and Scene:** the concrete physical (e.g. location, time, and size of room) and abstract psychological (e.g. cultural definition of the occasion) circumstances in which communication takes place.
- **Participants:** the role of each participant in the interaction, their age, sex, social background, and their relationships with one another.
- **Ends:** the purpose and expected outcome of an interaction.
- **Act sequence:** includes components as message form and message content.
- **Key:** manner and general tone of interaction (serious, joyful, or angrily).
- **Instrumentalities:** medium of communication (i.e. spoken or written).
- **Norms:** norms of interaction and interpretation, i.e. what communicative behaviours are regarded as appropriate by a speech community and how communicative behaviors are construed by a speech community.
- **Genres:** categories of communication, e.g. poetry, prayer, or lecture.

The following will be devoted to the description of the two texts (A = UDHR and B = RH) using the linguistic tools of Hymes SPEAKING heuristic model. Before beginning with the details, the following table summarises this description:

Table(3) Description of UDHR and RH using Hymes SPEAKING model

No.	Linguistic Tools	UDHR	RH
1.	Setting	The time in which UDHR is written is 20 th C A.D., the place is Paris, France, and the occasion is formal.	The time in which RH is written is 7 th C A. D., the place is unknown, and the occasion is formal.
2.	Participants	The addresser is the UN General Assembly whereas the addressees include all Member States in the General Assembly and the peoples of the territories under their jurisdiction.	The addresser is Imam Al-Sajjad (p.b.u.h) while the addressee is of two types: direct and indirect. The direct addressee is Al-Sajjad (p.b.u.h.) companion, Abu Hamza Al-Thumali. The indirect addressee could be any human being.
3.	Ends	The purpose of UDHR is to put an end to tyranny and oppression through being a response to II World War's barbarism.	The intended purpose of RH is to have people aware of their rights and duties for the sake of their goodness in this life as well as the other life.
4.	Act Sequence	UDRH is put in two main parts: preamble and body. the preamble browses the motivations and objectives that necessitate the issuing and admission of this declaration. The body consists of 30 articles including cultural, civil, social, political, and economic rights.	RH is put in three main parts: preface, body, and conclusion. The preface introduces rights by enumerating and arranging them vertically and horizontally. In the body , rights are put in an order that accords with their importance starting from the largest, God's right and ending with the right of non-Muslims in an Islamic state. Finally, the conclusion marks the whole number of these rights that is fifty and asserts their importance.
5.	Key	Sincere	Sincere
6.	Instrumentalities	UDHR is written (register) in English language.	RH is written originally (register) in Arabic language.
7.	Norms	UDHR and RH, being texts of one way interaction or in which one speaker has a role, cases of interruption as well as interpretation are out of question. In other words, they are non-negotiable.	
8.	Genre	Political	Poli-religious

2.2.2.1 Setting and Scene

2.2.2.1 A

The time in which UDHR is written is 20th C, the place is the Palais de Chaillot in Paris, France, and the occasion in which it is written is formal.

2.2.2.1 B

The time in which RH is written is 7th C, the place is unknown and is not mentioned in the text, and the occasion is formal.

2.2.2.2 Participants

2.2.2.2 A

The addresser is the UN General Assembly whereas the addressees include all Member States in the General Assembly and the peoples of the territories under its jurisdiction. The addressees are states and governments rather than individuals. That is why the declaration uses usually **everyone** and third person reference when referring to people. The one addressed in the UDHR is the one responsible for the duties rather than the ones whose rights are proclaimed. It is more significant to direct the states or the politicians since it is supposed that they preserve and safeguard these rights and transform what is written in this declaration into action.

2.2.2.2 B

The addresser is Imam Al-Sajjad (p.b.u.h) while the addressee is of two types: direct and indirect. The direct addressee is Al Imam companion, Abu Hamza Al Thumali as stated by الجاللي Al-Jalali (n. d.: 256). The indirect addressee is every human being. The addressee is a person (i.e. individual). In this text, it is clear that what are mentioned are duties rather than rights since what is important in the issue of rights is not the rights themselves, to the contrary, it is the duties. In other words, it is meaningless to tell someone that you ought to have so and so rights.

The duties are incumbent upon the individuals themselves each in his position in society or in life. Although its name is Treatise on Rights, what is written represents man's duties; first, towards God; then, towards himself; and after that, towards others.

2.2.2.3 Ends

2.2.2.3 A

The purpose of introducing human rights in this declaration is to put an end to tyranny and oppression and to have respect for the esteem and rights of human beings as they are necessary for the obtaining justice, peace, and freedom in the world. It can be considered as a reaction to the barbarism of II World War as well as its atrocity.

2.2.2.3 B

The intended purpose of the treatise is to have people aware of their rights and duties for the sake of the good of humanity in this life and the other life. Having executed these duties man will be given "sufficiency in the affairs of this life and the next" (Peiravi and Morgan, 2002: 419), as stated by Al-Sajjad (p.b.u.h.) in RH.

2.2.2.4 Act sequence

2.2.2.4 A

Message form

The way through which UDHR is transmitted is the written language.

Message content

Message content answers three questions: What? How? and Why? Concerning the first questions, they are considered in the following figure and the explanation after it. The 'Why' question is answered in the ends or the purpose behind setting UDHR (c.f. section 2.2.2.3.A)

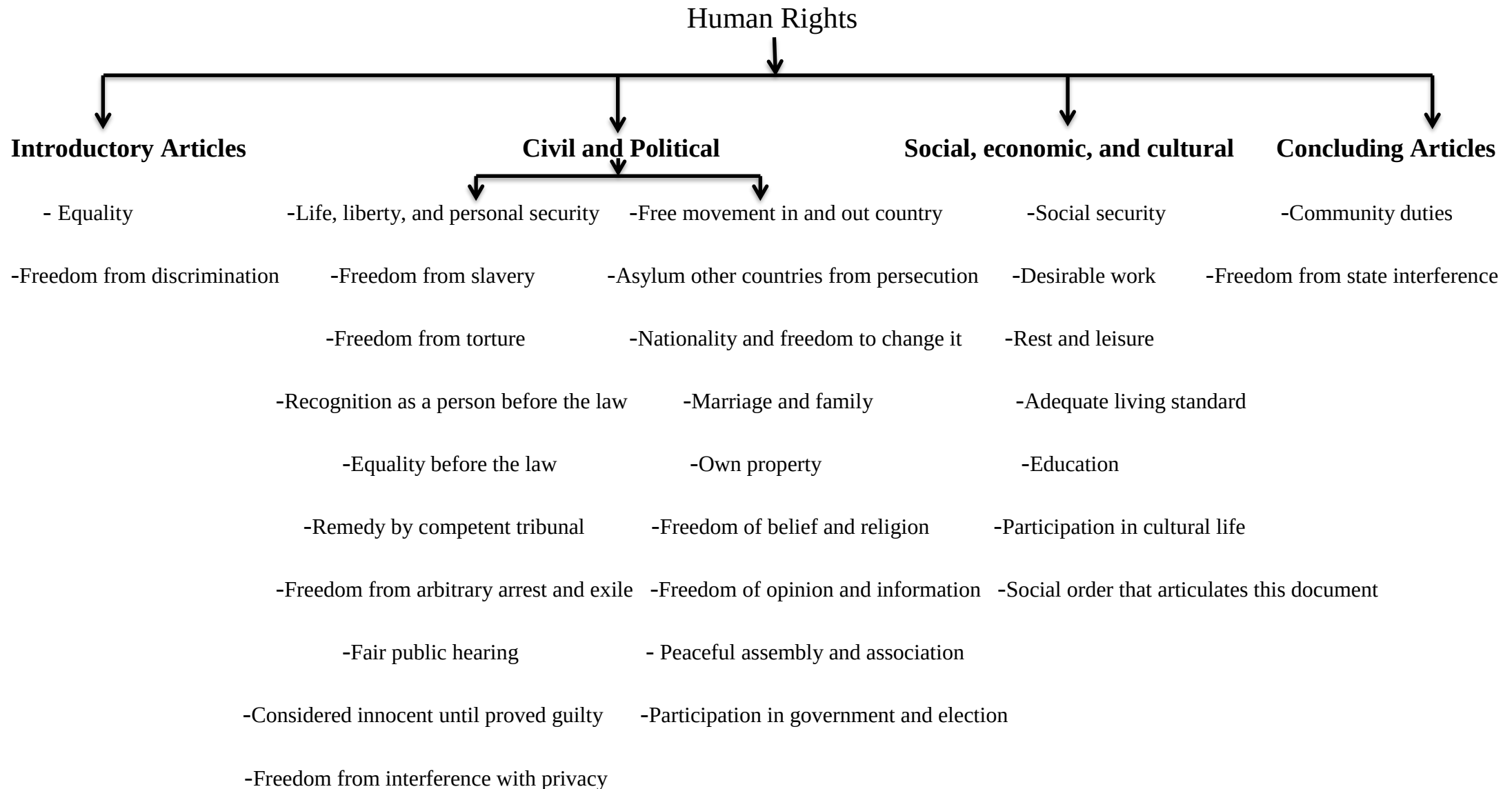


Figure (2) Flowers' (1998) Classification of human rights in UDHR

The first part of the declaration, the preamble browses the motivations and objectives that necessitate the issuing and admission of this declaration. One of the reasons is that recognition of human rights is essential for gaining a sense of peace and integrity. Another reason is that any case of disregard may lead to cruel doings which consequently annoys the ethics of manhood, as mentioned in UDHR. Also, it is put for the sake of achieving the campaign of universal admiration and adherence of human rights in which participating states have assured themselves in. These rights are governed and protected by the rule of law in order not to have people rebel against oppression and tyranny. Finally, the General Assembly announces UDHR as a mutual standard of accomplishment for all communities and states.

The other part, the thirty articles are titled with numbers and some of which have subsections. Since the rights in the declaration are not classified directly or clearly, the researcher will adopt the following classification according to which rights are divided into four groups. First, civil rights represent the first eighteen articles. Second, Political rights are embodied in articles nineteen to twenty-one. They embrace freedom of assembly, expression, and association and participating in government. Third, social and economic rights are itemised in articles twenty-two to twenty-six. These rights deliver the circumstances needed for economic flourishing and wellbeing. Economic rights include, for example, the right to work and property that one spontaneously agrees upon, the right to a fair salary, and a judicious control of working time. In the social rights, the essential right for a suitable standard of living, comprising rights to food, health, social care, shelter, and education are gathered. Finally, cultural rights, which are listed in articles twenty-seven to twenty-eight include: the right to contribute in cultural life, the right to

participate in scientific improvement and the right to the protection of one's material and moral concerns which lead to any artistic, scientific, or literary production.

2.2.2.4 B

Message form

The way through which RH is transmitted is the written language.

Message content

Similar to UDHR, the purpose of RH is to have people aware of their rights and duties for the sake of their goodness in this life as well as the other life as mentioned in the ends (c.f. 2.2.2.3.B) whereas what it is about and how it is presented are considered in the following figures and the explanation after which give a clear portrayal of the classification of rights in it:

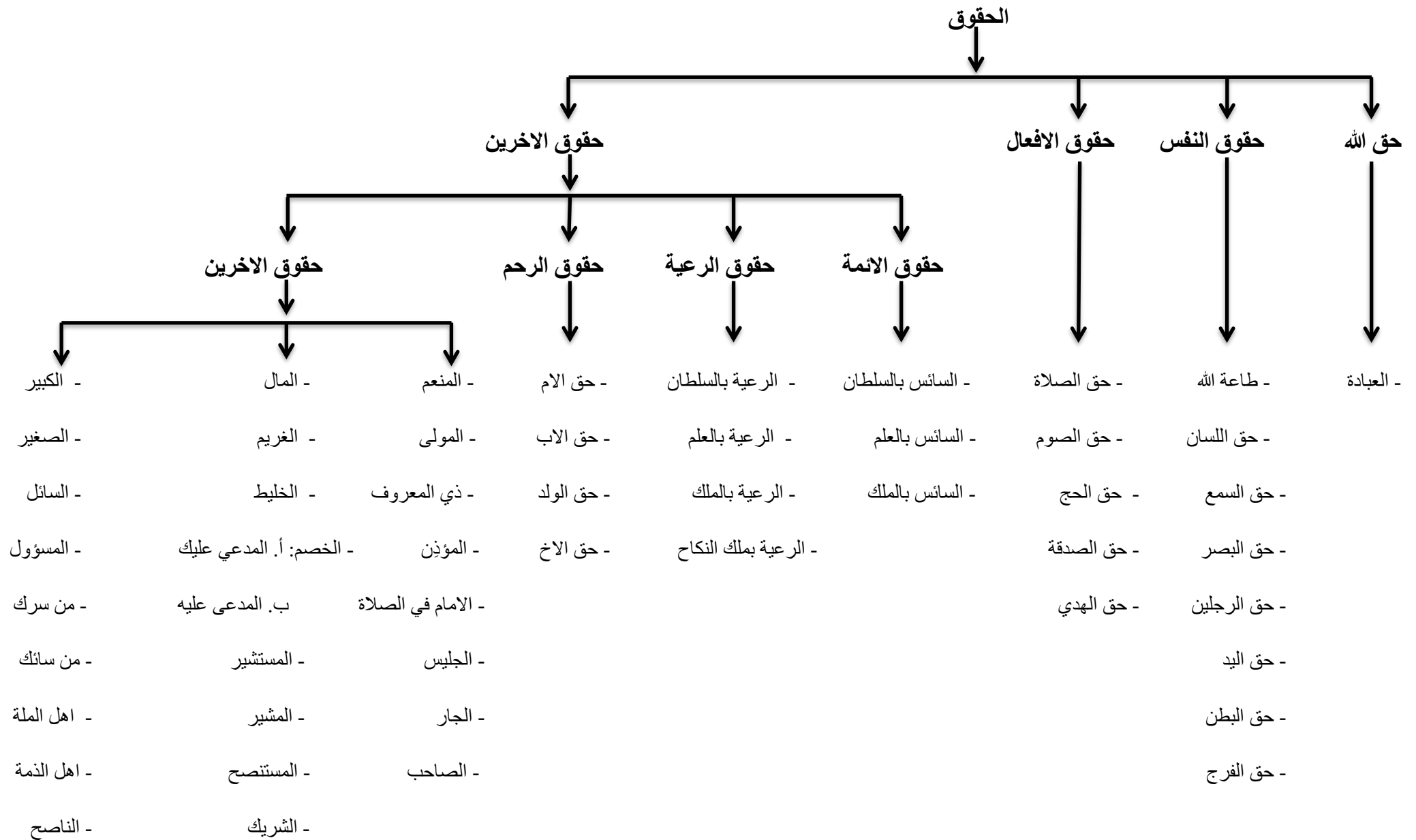
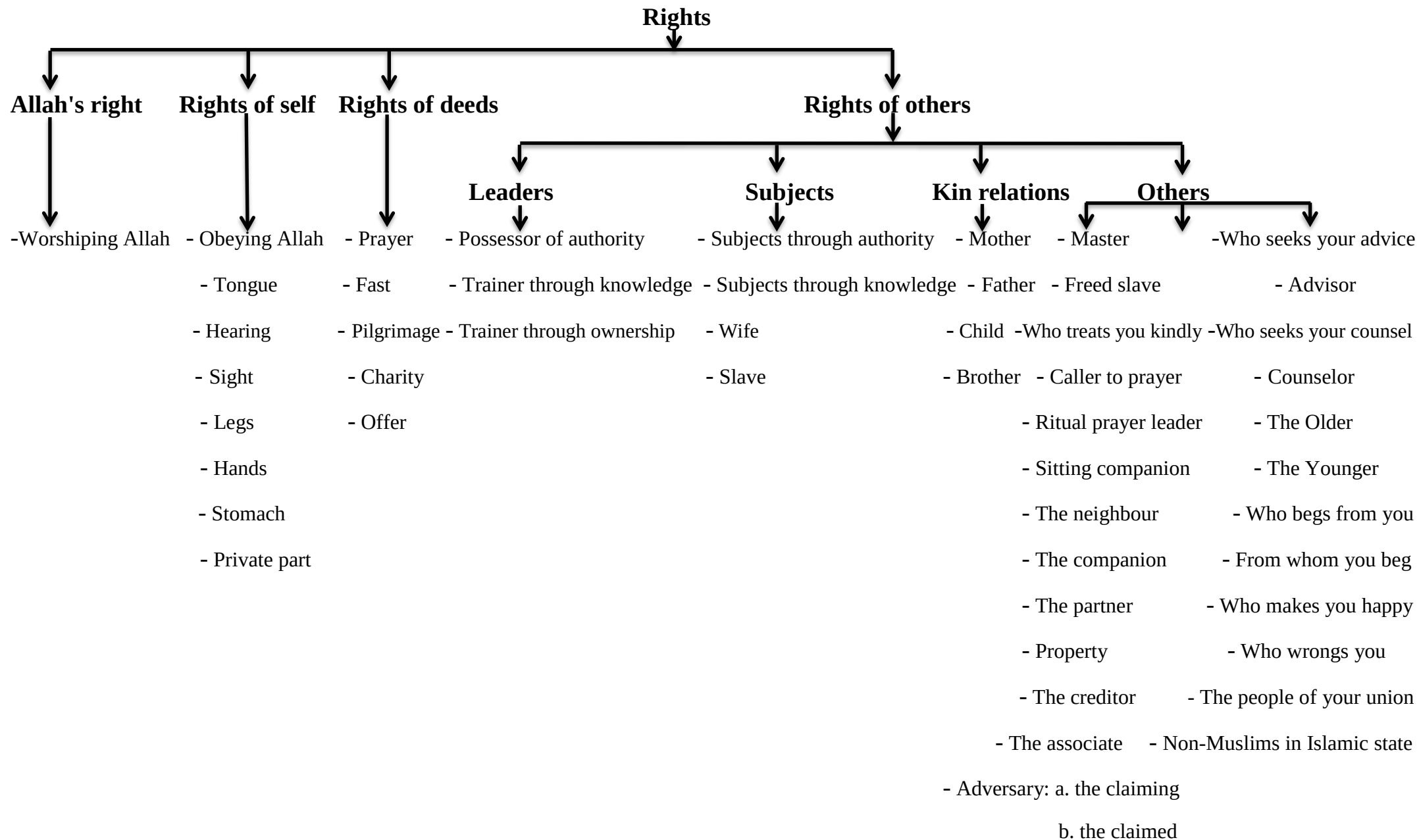


Figure (3) Classification of rights in RH in source language



Figure(4) Classification of rights in RH in target language

The preface represents an introduction that consists of the rights (duties) enumerated and arranged in vertical and horizontal relations. It discloses a deep and exhaustive look for man and all the dimensions of his life and his relations with his God, himself, family, society, teacher, government, and so on, as shown in figures (3 and 4).

The second part, the rights (duties) are put in an order that accords with their importance starting from the largest, Allah's right and ending with the right of non-Muslims in Islamic states. These rights are put under six groups. First, rights of Allah which includes two major rights: Allah's greatest right and the right of yourself. The latter includes rights of the body organs: tongue, hearing, sight, legs, hand, stomach, and private part. Second, the rights of deeds which comprise: prayer, fasting, pilgrimage, charity, and offering. Third, rights of leaders, these also have three subdivisions: possessor of authority, trainer through knowledge, and trainer through ownership. Fourth, rights of subjects are classified into: subjects through authority, subjects through knowledge, the wife, and the slave. Fifth, rights of womb relations start with the right of mother, then, father, after that, the child, and at the end, the brother. Finally, rights of others are twenty-five including: the master, the freed slave, the one treating you kindly, the caller to prayer, the ritual prayer leader, your sitting companion, the neighbour, the companion, the partner, property, the creditor, the associate, on the adversary, who seeks your advice, whose advice you seek, who seeks your counsel, the counselor, the older one, the younger one, who begs from you, him from whom you beg, him by which Allah makes you happy, who wrongs you, the people of your creed, and finally, those under the protection of Islam.

At last, the epilogue or conclusion marks the whole number of these rights that is fifty. In this part, Al Sajjad (p.b.u.h.) asserts the importance of observing them all exerting all the efforts to fulfill them through seeking Allah's help in this respect.

2.2.2.5 Key

The key in the UDHR as well as RH is serious and free of any comic instances.

2.2.2.6 Instrumentalities

2.2.2.6. A

The declaration is put in formal (channel) and written (register) English language. In addition, there are some citations from other documents on human rights.

2.2.2.6 B

The treatise is put in formal (channel) and written originally (register) in Arabic language. Sometimes there are quotes of the Glorious Quran and Prophet Mohammad traditions. These instances are referred to as intertextuality which is defined by Fairclough (2003: 39) as the occurrence of actual components of other manuscripts. There are seven cases, for example, in the right of fasting reference is made to Prophet Mohammad tradition "fasting is an armor against fire" (Peiravi and Morgan, 2002: 178). Other cases are mentioned in Chapter four (see 4.2.2.2).

2.2.2.7 Norms

UDHR and RH, being texts of one way interaction or in which one speaker has a role, cases of interruption as well as interpretation are out of question. In other words, they are non-negotiable

2.2.2.8 Genre

Genre, according to Swales (1990: 58), encompasses a kind of communicative actions whose members collaborate a collection of communicative aims. These aims are predictable by the proficient participants of the original discourse public thus create a basis for this genre. The general communicative event that constitutes the two texts is the issue of establishing rights.

2.2.2.8 A

The UDHR can be considered as a sub-genre of declarations. It is both political and legislative. Its political nature is clear from the participants; it is clearly addressing the states, or the administrative authority. The political rights have a primacy in the declaration to the extent that out of thirty articles only three can be considered as dealing with economic rights; Article 17 deals with private property rights; Article 22 with the right to work; Article 24 with the right to leisure. Although it is not binding, it can be linked to a legislative act in the sense that it is put by elites from the legislature who assumes the responsibility of legislating human rights as is pointed out in the preamble, by stating that it is crucial to safeguard human rights by law. In spite of its legislative nature, it is not binding. This fact is asserted by Morsink (1999: 15) when saying, "nations can walk away from a declaration far more easily than from a signed covenant." In this declaration, there is neither explicit nor implicit reference to Allah.

2.2.2.8 B

Genre of the RH is political and religious (poli-religious). As Fairclough (2003: 34) asserts that there might exist a mixture or hybridity of genres in a single text. Before commenting on the hybridity of genres in RH, it would be necessary to present some views about politics and religion. Al-Khumeini (1998: 208) points out that Islam is the religion of policy and that who thinks that religion and politics could be abandoned, he actually does not know religion nor politics. Since politics deals with guiding and directing individuals and groups in such a way that could lead them for the best in this life and the next one, it is the duty of men of religion to deal with politics. He implies that politicians are just intruders. In a similar vein, politics, in Al Sha'rawi's words, means an administration of life motility (Al-Saeed, 1997: 33).

In fact, what makes RH a poli-religious genre is Al-Sajjad's (p.b.u.h.) clear linkage between these two dimensions. He presents in this text the duties of political leaders as well as their subjects duties. As such, he instructs people politically. On the other hand, he stresses the religious dimension repeatedly, specifically, through introducing the right of Allah. In brief, RH can be seen as a constitution that leads people to their righteousness in this world and the next one through advising as well as ordering them.

2.3 Previous Studies

This section is devoted to the presentation of a number of previous studies, which deploy CDA as their analytical framework of analysis.

2.3.1 Previous Studies on Human Rights

Human rights have been studied from variant perspectives. One of the perspectives is the education of human rights. Tibbitts (2017) reviews three major models of human rights education, namely, values and awareness model, accountability model, and transformation model. She argues that these models are useful for presenting human rights education and critically analysing their design in promoting learners to act in reducing human rights violations. Furthermore, she has proposed amendments for these models, for example, the first model is associated with socialisation, the second is linked to professional development, and the third is connected to activism.

Another perspective is sociology such as the study entitled "The Sociological Discourse on Human Rights: Lessons from the Sociology of Law" written by Deflem and Chicoine (2011). In this study, they have been discussing the contribution sociology can offer to the analysis of human rights. They find out that it can help in analysing ways in which human rights are violated. A further perspective is in human rights policy and practice like the one proposed by Pineda (2016). Zolkos (2005) has treated human rights in the area of political science and particularly political theory.

Finally, the following are two studies which apply CDA on the analysis of human rights. Pinto (2011) undertakes Fairclough's three dimensional-approach of CDA for the analysis of the single most important policy instrument in the disability arena in Portugal: the First

National Action Plan for the Integration of People with Disabilities and Impairment (PAIPDI) which is a new discourse on rights. In this study, the texture especially metaphor, interdiscursivity, and the socio-cultural relations and structures are examined. After evaluating this discourse, it is found out that this discourse will profoundly change power relations in Portuguese society, at least as it is structured around disability and gender. Szczepanik (2014) has applied CDA to study the language of human rights. After analysing the language of human rights, she has found out that CDA reveals the weakness of human rights language such as the ambiguity of its definition and the false premise of universalism. The lack of conceptual clarity over its essential notions enables political actors misuse. Concerning universality, it gives grounds for concerns of postcolonial societies about Western power being exercised under the disguise of 'human rights protection'.

There are some points that differentiate the present study from the previous ones. Firstly, none of the previously mentioned studies analyses the UDHR. Secondly, even those which apply Fairclough's CDA approach in their analysis have not been directly concerned with the linguistic analysis of human rights. The last two related studies have dealt with ideology or power, however, the former one analyse only the metaphor within linguistic analysis whereas the latter does not refer to the linguistic stricter either.

2.3.2 Previous Studies on CDA

In this section, there will be a presentation of some studies which employ CDA in their analysis, specifically, by adopting Fairclough's three-dimensional-approach or including some of his analytical notions in their analytical frameworks.

Zotzmann (2006)

Zotzmann's study has critically analysed the discursive and general composition, educational goals, and the conceptual base of Intercultural Business Communication academic field. The purposes of this study are: first, it has attempted to focus on the authentic legitimacy claims these authors make regarding the socio-economic changes and the educational intercultural training. Second, it has intended to show how aspects of context can influence genre and discourse social science generally and Intercultural Business Communication particularly.

Fairclough's (2003) framework has been employed. It has proceeded from recognising the social problem to be examined in its social context through analysing the specific role semiotics plays there to exploring and discussing possible different standpoints in educational and academic practices. He analysed 24 academic articles published in the area of Intercultural Business Communication regarding the recontextualisation of socio-economic alterations, the legitimisation of educational goals, the conceptualisation of crucial terms, the inferences of these theoretical choices for the understanding of academic writing.

In the conclusion, he has asserted that the results of the investigation have not been purely interested in Intercultural Business Communication; it rather could draw educators and policy makers' attention to the deep alterations.

Lande (2010)

Lande's (2010) work has been centred upon applying CDA in translation studies. She has applied a framework of CDA in analysing the source text and translated text (henceforth, TT) to investigate the translators' linguistic selections in the TT. The main aims of her study

are: first, to make a collection of CDA procedures, merging Fairclough's (1989) framework with the current CDA approaches within Translation Studies. Second, she has aimed to prove the usefulness of CDA in determining the situational and social context, ideology, ideological struggle, and power while translating political texts.

The results which have been obtained in this study have proved that CDA offers a straightforward clarification of the way ideology and power are constructed linguistically and any grammatical and lexical varieties might be applied in the recreation of the same influence in TT. Moreover, CDA could be an advantageous means in training translators professionally due to its interest in establishing the guidelines needed in translation like the significance of situational and social context, cultural differences of pragmatic phenomena, genre conventions, as well as the effect of grammatical and lexical choices of translators' on the total rhetorical resolution of TT.

Rahmani (2010)

Rahmani (2010) carries out a CDA of headlines and news titles in *New York Times* newspaper to investigate its approach toward Iran before and after Obama. For doing so, he analysed 40 headings and 20 news stories adopting some analytical components of CDA such as: naming, lexical choices following Van Dijk (2006), overcompleteness following Van Dijk (1980), and voices following Fairclough's concept of intertextuality (1992), in addition to the grammar of transitivity of Halliday's Systemic Functional Grammar (2004). He has aimed at investigating the application of the language and the relation that it bears to the question of power and institutions throughout examining the relationship between: the lexical choices and the social-cultural attitude,

the thematic structure of the sentence, and examining the way in which the processes of generalization and overlexicalisation have served the manipulation processes. The conclusion has revealed that the two periods, before and after Obama, show different representations for Iran. Before Obama, Iran has been presented as a severe prevailing enemy while after Obama, its portrayal has become partially modest. As such, he has found that the newspaper's attitude towards Iran has been changed due to the conversion in the dogma of government.

Pasha (2011)

Pasha (2011) has used CDA for investigating the way Islamists are denoted in the front page news reports in *Al-Ahram* newspaper, in 2000 and 2005. The study consists of two parts. In the first part, he has examined the role of ideology, process of news making, types of relationship between Islamists and governments' history of Islamism. In other words, the data have been approached from the social and discursive practices. In the second part, he has analysed the news reports linguistically using O'Halloran's (2003) framework of Idealised Reader, in addition to presupposition, transitivity, lexical choices, and sourcing. Along these two parts, he has followed Fairclough's (1992) three-dimensional model.

Starting with the first step of analysis, he has detected that Islamists are represented negatively by the media, in this case *Al-Ahram* newspaper, and this could be associated to the regime's terror of Islamists as a governmental danger. He then has examined the way in which specific linguistic means subsidise the negative depiction of Islamists. Finally, he has discovered that these linguistic tools were used intentionally to advocate the negative point of view of *Al-Ahram* newspaper news reports upon Islamists.

Alguwaidi et al. (2014)

In their study, Alguwaidi et al. examine the linguistic implication of power and politeness in school board meeting in Kuwait. They apply Brown and Levinson's positive and negative strategies to politeness and Fairclough's (1992) three-dimensional approach. The analysis is carried out on a discourse of a school board meeting in a high school in the Mubarak Alkabeer Educational area. This study attempts to assess the application of power and politeness within institutional verbal interactions in Kuwait. In other words, it is intended to explore how institutional power affects the use of politeness in both superiors' and subordinates' discourse. Fairclough's three-dimensional model is adopted to locate power through discourse, and Brown and Levinson's theory of politeness is applied to describe positive and negative politeness strategies. It is hypothesised that power is a transactional factor, which sealed off through linguistic behaviour.

It is concluded that power and politeness are co-occurring in contexts. Politeness is a social norm used to mitigate power. Power can be simultaneously declared from superiors and subordinates. This proves that schools provide an adjustable context for the study of linguistics behaviours.

Iqbal et al. (2014)

Iqbal et al. examine all the attributive words with the word 'Muslim' in the *Time* magazine corpus. Thus, it basically focuses on the choice of attributive words which *Time* magazine uses for the Muslims. This is carried out to highlight the ideology of Americans about Muslims. The framework adopted is Fairclough's three-dimensional-model and the concentration is on vocabulary use only.

The results of the analysis show that various attributive words for the Muslims are used in a negative sense to spread the negative concept of the Muslim community in front of the whole world. This study also presents their bias thinking about the Muslims and it also shows their internal fear of the Muslims. They use evaluative attributive words without evaluating the Muslims or Muslims communities which also present their limited and conservative approach towards the Muslims.

Zhang (2014)

Zhang's (2014) study aims at investigating the discursivity of text, interaction and social context. The data chosen for the analysis is political news reports on Iraq war by American media, specifically, *New York Times*. The model of analysis is Fairclough's (1989) three-dimensional framework and Halliday's functional grammar, namely, transitivity, modality, transformation, and classification within description along with interpretation, and explanation.

The results show that the American media report the war in Iraq for the interests of their own nation. In addition, applying a critical analysis is of great significance in assisting news readers not only to achieve a better understanding of what they are reading but to learn more about the social and cultural background. Critical analysis will help news readers to increase critical sensitivity and awareness.

Abed (2015)

Abed (2015) studies the reproduction of three anti-prophet Muhammad (p.b.u.h) controversies. The study aims at exploring the reproduction of the ideological and linguistic features of these debates in *The Daily Mail*, *The Guardian*, *USA Today*, and *The New York Times*. It also has aimed at recognising the way in which ideology is epitomised.

The model that has been used for the analysis is composed of Van Dijk's (1998) theory of Ideological Square, his theory of news analysis (1988a and 1988b), Jowett and O'Donnell's (2012) Propaganda Model, and Fairclough's (2003) Intertextuality.

The study has reached to five main points. First, the reproduction of the European controversies has the aim of presenting Islam as a negative combination of communities while the US debate upon a public diplomacy agenda and an implicit propaganda. Third, in US and Europe, Prophet Muhammad, Muslims, and Islamists have been depicted negatively in contrast to Western secularism which is represented positively. Fourth, concerning ideological representation, the Prophet, Islam, and Muslims, are described as the 'Other'. Finally, CDA has shown the political ideology of Islam which is applied as a means of military and political benefit.

Shukri (2015)

Shukri (2015) has addressed the concept of feminism and its belief in social constructionism. The study aims at investigating the issue of exposing the hidden ideologies and the role of language in reflecting and constructing those ideologies. Another aim is to show how woman's treatment and roles might converge or diverge in different cultures. As such, Shukri has chosen an English novel and an Arabic one, namely, *Good in Bed* (2001) written by the American writer Jennifer Weiner's and *Samt al-Farashat* (2005) written by the Kuwaiti writer Laila al-Othman's.

She has adopted Fairclough's (1989/1995) model of analysis which allows for the investigation of text on different levels: the text in itself, the writer of the text and where the text is located among other texts, besides taking into consideration the society and culture.

The results have validated the hypotheses put forward for the study. The first conclusion is that the two novelists portray men as the authority while women as the disadvantaged. The second is that Language is a reflection of social inequalities between genders. The third is centred upon the idea that traditional norms of society related to gender identities are perpetuated through the discourse. The final one is that the manifestation of woman's oppression varies according to one's culture. While the American women's main concern is to gain equality and justice, the Arabic women's main concern is to enable women to get a status and to be able to claim for her rights.

Abdi and Basarati (2016)

Abdi and Basarati carry out a CDA of the representation of Yemen crisis in ideologically-inclined newspaper headlines of Iran, Arab and the West. The data include newspapers included *Iran Daily*, *Tehran Times*, *Iran on-line* and *IRNA* (Islamic republic news agency) from Iranian; *Al-sharq Alwsat* and *Al-Jazeera* from Arab; and finally *Telegraph*, *USA Today*, *News Week*, and *New York Time* from among the Western newspapers. The three dimensional model of Norman Fairclough is employed to explore the specific themes conveyed through the representation of participants and processes about Yemen crisis.

The findings show that the Houthis are introduced as rebels by both Arab and Western newspapers, and that Saudi Arabia plays a protective role against rebels. On the other end, Iran, along with representing Saudis and the westerns as intruders, chooses and promotes a diplomatic way by condemning the military measures and inviting the parties to come up with a diplomatic solution. Meanwhile, the West supports Saudi-led coalition and legitimates Saudi's attack by proving that the Houthis are Rebels.

Conclusively, these previous studies diverge in many points; the data used vary among political texts, translated texts, school meetings, novels, newspaper headlines or news reports, and so on. Furthermore, another point of divergence is in their adoption of Fairclough's approach. Some of them employ Fairclough's intertextuality or his conception of ideologically contested words in the analysis of vocabulary. Sometimes CDA is employed as an approach of analysis in addition to approaches from translation studies or from politeness as in Lande's and Alguwaidi et al.'s studies.

In contrary to the previous studies, although the present study agrees with some of the previous studies in analysing human rights using a framework of Fairclough, it differs in two points. The first point is that of analysing UDHR specifically being a prominent and representative discourse regarding the issue of human rights in English in addition to contrasting it with RH as an Arabic document. The second point is that Fairclough's approach is applied here to examine the texts critically and linguistically simultaneously.

As far as the previous studies are concerned, UDHR has not been considered critically to examine its language, its interpretative procedures, nor its power or ideology. Yet, it will not be analysed in isolation; rather, it will be contrasted with RH. Furthermore, Fairclough's approach is employed to achieve such an aim that is the contrastive and critical analysis of the texts chosen.

Chapter Three

Research Methodology

3. Introduction

This chapter discusses in detail the research methodology adopted in this study. It describes the key components of the research that deal with sampling strategy, the data collection and selection methods and the theoretical framework followed in this study.

3.1 Research Design

CDA, as referred to by Fairclough, Mulderrig, and Wodak (2011: 358-359), does not begin with a fixed theoretical and methodological position like other forms of discourse-based research. Rather, it begins with a research topic, such as: racism, globalisation, Middle East politics, etc. It is so since CDA is an issue oriented research. After refining this topic in order to construct the research questions, only then the time to choose appropriate methods, including the sample and mode of analysis depending on what one is investigating.

As stated by Strauss and Corbin (1997), a research design is a strategic and procedural framework that can be followed to ascertain the methods required for a research topic. The focus of the design is to determine the required data collection methods and the guidelines set in order to ensure a systematic and unbiased method of data collection. CDA is originally a qualitative method. Thus, in order to reduce the subjectivity in this study in the field of CDA, the components in the description stage including vocabulary and grammar of the two selected texts are analysed quantitatively along with their qualitative analysis. Thus, qualitative research methods focus on descriptive and explanatory results obtained from the collected data whereas the quantitative methods use numerical

techniques to determine and interpret the collected data (Bryman & Bell, 2007). In other words, there will be a statistical part in which frequency of occurrences and percentages are provided. Such a method is applied since it offers a benefit in firming up any interpretations that are made based on a linguistic evidence as indicated by Machin and Mayr (2012: 216).

However, merging qualitative and quantitative research methods has increased in the social sciences since it leads to a multidimensional approach (Klenke, 2008). Such an integration, in Hart (2011) view, is significant in incorporating a comprehensive view of the study investigated and in subordinating the relevance and validity of the research.

3.2 Data Collection and Selection

Since there is no typical way of collecting data in CDA, as reported by Meyer (2001: 23), when using CDA methods to study a social theory, scholars apply different criteria with respect to the selection of texts (the data chosen) and consequently variant procedures are used in data analysis and the magnitude and domain of their researches. He further assumes that many CDA studies deal with only small corpora which are usually considered the typical of certain discourses. In a similar vein, Bloor and Bloor (2007: 3) state that CDA examines practices and customs in society both to discover and describe how they work and also provide a critique of those practices.

In this respect, the data selected in the present study is concerned with the issue of rights. The English one, UDHR, is taken from the official web of the United Nations General Assembly as put in appendix I. The selection of the translated Arabic text originally depends on Peiravi and Morgan (2002). In addition, some Quranic ayahs will be recited to support the analysis. The translation of Quranic ayahs is based on Ali (1987).

3.3 Sample Size and Saturation

The particular case studies chosen for analysis are called the sample, and the process of choosing them is called sampling (Leedy & Ormrod, 2013).. Thus, sampling is intrinsic to research and must be appropriate to the area of study and any questions posed. Patton (2002: p.230) contend that the main purpose behind choosing certain samples than others is their reliability in generating “insight and in-depth understanding” of the research topic. Since the two selected texts could be considered representatives they are chosen to give an insight of the issue of rights. However, The transcription of the English text, UDHR, consists of (9) pages, (215) lines, and (1,873) words (see appendix 1). The transcription of the original version of the Arabic text, RH, consists of (10) pages, (247) lines, and (3,704) words (see appendix 2).

Theoretically, saturation could be achieved at the time when sampling no longer has to occur, as there is no extra value to be reached and there is no emergence of new ideas or concepts (Holloway and Wheeler, 2010). Regarding the saturation of the sample chosen, it could be achieved by analysing critically and contrastively the two texts in detail rather than narrowing the analysis and limiting it to certain group of rights like those of minorities, of women, of the child, or the like.

3.4 The Theoretical Framework

In CDA, there are variant approaches all of them are useful but each one works differently or deals with discourse from a different point of view. However, Fairclough's approach is preferred for the present study since it seems to meet the needs of the two selected texts under study. Furthermore, Fairclough's approach is pioneering and consists of three stages that are interconnected and explore the critical side of discourse.

The above-mentioned stages could be applied to the present study as follows: First, the topic or issue is selected, that is, the issue of rights. Second, after refining this topic, the research questions are mostly concerned with contrasting two culturally different texts whose core topic is rights are raised. At that point, the sample to be examined is selected which includes two texts, namely, The Universal Declaration of Human Rights and Risalat Al-Huquq. Finally, the approach to be followed in the analysis of this sample is set which is basically Fairclough's three-dimensional approach along with some units of analysis within his approach that are taken from other scholars which will be thoroughly discussed hereunder.

Fairclough (1989: 110), when talking about his approach, says that the method ought not be regarded as a "holy writ" or as a "blueprint". In other words, it is up to the analyst to choose the parameters he believes would serve in fulfilling his purpose behind analysing specific text. His approach of CDA consists of three stages: description, interpretation, and explanation which correspond with three dimensions of discourse: text, discourse practice, and social practice. The need for the two other stages (i.e. interpretation and explanation) is due to the fact that textual analysis is limited and might not provide a more inclusive view of the text. In this respect, Fairclough (2003: 15) states that textual analysis alone is not enough because of its limited nature; rather, it is necessary to get acquainted with the text along with its interpretations. Further, when one intends to measure the underlying and ideological properties of texts, he needs to link micro analysis of the text to the macro analysis of power relations. The three stages of the model are discussed below.

Before presenting the three stages, it is necessary to indicate that the framework of analysis consists of, in addition to Fairclough's (1989)

model, some components taken from other scholars including: transitivity from Halliday, modality from Quirk et al., intertextuality from Fairclough (1992), speech acts from Searle as will be shown below. As such, the model is an eclectic one based basically on Fairclough's (1989) framework since the classification of the units of analysis into three stages, namely, description, interpretation, and explanation is taken from him.

3.4.1 Description Stage

This stage deals with the textual analysis which includes the possibility of investigating many textual components. However, there is no need to examine all the textual components. Fairclough (ibid.: 14) states that "textual analysis [description stage] is ... selective". Insights of three levels of vocabulary, grammar, and textual structures are needed here for maintaining the description or textual stage of analysis.

Furthermore, Fairclough (ibid.: 16) also stresses the idea that the description of a text should not be done by following certain analytical framework which works independently of the research problems. In other words, having in mind the intention of considering the ideology upon which the texts under study are presented requires perspectives and categories from outside textual analysis to be included in analysing the texts. They, actually, enhance awareness into the analysis all over the three stages. For example, when analysing the vocabulary of the text, one should put in mind the expected schemes that could be included in order to examine their effect and similarly for the grammar and textual structure. Below some major textual components are presented.

3.4.1.1 Vocabulary

The first component to be examined in the texts under study is vocabulary. Its analysis is needed to figure out the ideologically contested

words chosen to make up UDHR and RH and to convey their main ideologies. Ideologically contested words, which are called also challenged or disputed words, are described by Fairclough (1989: 114) as being "the focus of ideological struggle." In order to find out the frequency of occurrence of their prevailing expressions, the dominating classification schemes in each of the two texts under study are going to be investigated.

3.4.1.2 Grammar

Two of the grammatical features that are asserted by Fairclough (1992, and 2003) are selected for the analysis of the two texts under study. They are transitivity and modality which are mainly concerned with the grammar of the clause.

3.4.1.2.1 Transitivity

Transitivity is defined by Fairclough (1992: 27) as the property of the grammar of clauses which is linked to their ideational meaning. He also points out that the motivation for analysing transitivity is for working out the political, cultural, social, ideological, or theoretic features that decide how a process is indicated in a specific kind of discourse (ibid.: 179). It, in Teo's (2000: 25) words, expresses "who does what to whom". It can serve specifying the kinds of verb classifications that tend to be used to characterise the actions of certain groups. Also, it foregrounds the agency and the way it is attributed to the text participants.

It is pointed out by Baker et al. (2008: 297) that Fairclough's (1989) approach of CDA is informed inter alia [among other things] by SFL; that can be comprehended to notify the research emphasis on language facets like passivisation and agentivity. As such, the transitivity analysis in the present study is carried out by following Halliday and Matthiessen (2014) model.

According to Halliday and Matthiessen (2014), there are three experiential components which constitute the transitivity construction of a clause: participant (who and whom), process (what), and circumstance (in what condition). Participants are essential in any process: each experiential kind of clause has one to three participants. In contrast, circumstances are nearly always optional extensions of the clause (p: 221). Participant and process are central whereas circumstance is peripheral. It is only the central elements which are going to be investigated in the texts under study with the limitation to the frequency of the processes in which 'man' serves a role. Participants differ in their functions depending on the type of process in which they take part. That is why Halliday and Matthiessen present a table that gathers the processes and the roles of participants that are associated with each.

The process types, as mentioned by Halliday and Matthiessen (*ibid.*: 300), are six and they are divided into two types, namely, principal and subsidiary. The principal processes are 'material', 'mental', and 'relational' whereas the subsidiary ones are 'behavioural', 'verbal', and 'existential'. Table (4) below presents the process types, their meanings, and the direct and indirect participants that are involved in each.

Table (4) Process types, their meanings and characteristic participants

Process type	Category meaning	Participants, directly involved	Participants, obliquely involved
Material: Action Event	'doing' 'doing' 'happening'	Actor, Goal	Recipient, Client; Scope; Initiator; Attribute
Behavioural	'behaving'	Behaver	Behaviour
Mental: Perception Cognition Desideration Emotion	'sensing' 'seeing' 'thinking' 'wanting' 'feeling'	Senser, Phenomenon	Inducer
Verbal	'saying'	Sayer, Target	Receiver; Verbiage
Relational: Attribution Identification	'being' 'attributing' 'identifying'	Carrier, Attribute Identified, Identifier; Token, Value	Attributor, Beneficiary Assigner
Existential	'existing'	Existent	

(After Halliday and Matthiessen's, 2014: 311 classification of transitivity)

The table above is followed in the transitivity analysis of both texts under study in the next chapter for identifying the processes that 'man' participates in and the roles he attends in each.

3.4.1.2.2 Modality

Modality constitutes the second linguistic component in the descriptive part of the model followed. It is used by Fairclough (1992: 158) to identify the aspect of the grammar of the clause that relates to the 'interpersonal' purpose of language. It focuses on how social relationships and social individualities are manifested in the clause. Furthermore, it is concerned with the extent to which producers reflect their relationship with other participants in the discourse (ibid.: 142).

Modality has been tackled by many scholars such as: Quirk et al. (1985), Palmer (1986), Halliday and Matthiessen (2014) and others. The one adopted in this study, for the English text, is Quirk et al. (1985: 219) who define it as the way by which the speaker's decision on the probability of the proposition is reflected in the meaning of the clause. They carry out modality through investigating the meanings of modal verbs. They divide the constraining factors of meaning into two types: those that implicate some sort of fundamental peoples' predominance, namely, 'permission', 'obligation', and 'volition'; and those that involve peoples' decision, namely, 'possibility', 'necessity' and 'prediction' (ibid.).

For the analysis of modality in the Arabic text, Khalil (1999) is followed who in his turn depends on Quirk et al. (1985) in presenting the Arabic equivalents of the English modal verbs and showing the meanings they convey. The meanings of modals used in the texts under study are going to be investigated to find out their frequency of occurrence. Table (4) clusters the analysis of the components of modality in English and Arabic as follows.

Table 5: The meanings of modals and the modal verbs in English and their equivalents in Arabic

No.	Meanings of Modals	English Modal verbs	Arabic Equivalents
1.	Permission	can, could, may, might	يستطيع, يمكن, بإمكان
2.	Possibility(ability)	can, could, may, might	يمكن, يستطيع, يقدر, قادر, قد, ربما, من الممكن, بإمكان
3.	Obligation	must, need, ought to, should, need not	ينبغي, يلزم, يجب, عليك ان, لابد, لا داعي, لا يلزم
4.	Necessity	must, need, have to	لابد, لا شك, من المستحيل, استبعد
5.	Volition	will, would, shall	لابد, لاشك, س, سوف
6.	Prediction	will, would, shall	س, سوف

(After Quirk et.al (1985: 221-230) and Khalil (1999: 215))

3.4.1.3 Text Structure

Text structure, as stated by Fairclough (1989: 137), refers to the manner in which the text may be structured or constructed of expected components in an expected order. It constitutes the third main heading in the first stage of analysis, that is description or text analysis. It concerns with the level up project structures of diverse kinds of text or as Fairclough (1992: 74) puts it, "larger-scale organizational properties of texts." The important thing in this component is the examination of the way and order in which elements are joined to form the text.

3.4.2 Interpretation Stage

This second stage is interpretation since it could be considered as an outcome that is arrived at, according to Fairclough (1989: 11), by means of a dynamic procedure of correspondence of the characteristics of an utterance at different levels with images one has kept in his memory. The levels are those in linguistic or textual analysis (i.e. description stage). These representations or images are the ideologies followed in the formulation of a discourse. In other words, interpretation requires an integration of the text and the interpreter regarding the members' resources (henceforth, MR) that the interpreter transports in interpreting a text. The MR is explained by Fairclough (ibid.) as linguistic and non-linguistic prototypes that serve as means in understanding relations of language, power, and ideology as they (i.e. MR) "are socially determined and ideologically shaped."

After the analysis of vocabulary, grammar, and textual structure, attention should be given to situational context, intertextuality, speech acts, and schemata; four aspects that link a text to its wider social context. As such, interpretation of a discourse is carried out by interpreting text as well as context throughout the following components:

3.4.2.1. Situational Context

The first domain in the interpretation stage is the situational context which could be examined through four questions proposed by Fairclough (1989: 147) that correspond to four discourse types. These are as follows. First, 'what's going on?' corresponds with the contents of the situation including its topic, purpose, and activity. Second, 'who's involved?' matches the subjects of the situation. Third, 'in what relations?' relates to the relations between participants in the discourse or, as put by Fairclough (ibid.:148), power relations which are raised and introduced in a specific speech event. Finally, 'what's the role of language in what is going on?' resembles the connections used for tying a text to its situational context. The following figure summarises this element of the interpretation of discourse:

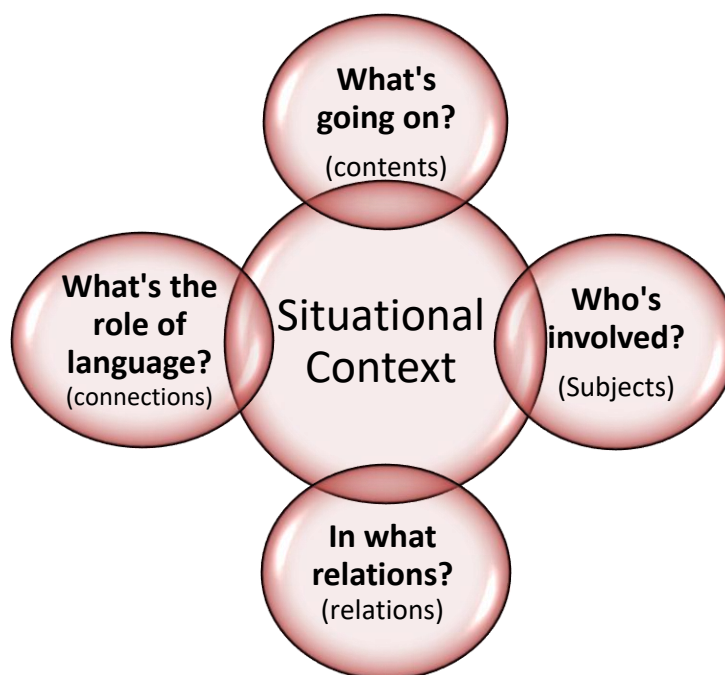


Figure (5) Fairclough's (1989:146) classification of the situational context and discourse type

3.4.2.2. Intertextuality

The second component within interpretation stage is intertextuality which is defined by Fairclough (1992: 84) as the characteristics that a text has of being filled with snips of other texts. The need for such analysis is due to its importance in revealing how an author makes use of earlier texts for obtaining new ones. In other words, it shows the diachronic relationship of a specific text with previous either similar or related ones.

Fairclough (ibid.: 10) distinguishes two types of intertextuality: ‘**manifest Intertextuality**’ and ‘**constitutive intertextuality**’. The first refers to explicitly or implicitly referring to other texts and the second signifies that the text has an interrelationship in form, structure and/or genre with other texts. As such, **manifest intertextuality** includes, as its name suggests, an obvious revival of past texts through exactly citing them by mentioning instances from them or by referring to what they talk about. On the other hand, **constitutive intertextuality** denotes the texts that share with the current one their overall structure and the way they appear in it.

The general understanding of intertextuality, as referred to by Richardson (2007), is that texts ought not be observed or analysed without considering other texts since they are not created or consumed in solitariness. Blommaert (2005: 46) supports this same opinion when affirming the idea that when one speaks, he actually produces others' words through alluding to meaning and expressions which are previously existing.

The texts under study will be analysed within this level to find out whether other voices are included in them through the embodiment of other texts explicitly or implicitly and to show what type of texts is resorted to for assisting what is mentioned in each, UDHR and RH.

3.4.2.3. Speech Acts

When dealing with speech acts (henceforth, SAs), Fairclough (1989: 9), states that the notion of uttering as acting represents a significant thing in the interpretation of a text, and is central to CDA in regard to the claim that discourse is social practice. He (ibid.: 155) adds that they are concerned with the sense participants assign to components of a discourse by means of their MR and with the interpretations of the situation. According to their propositional content, direction of fit between words and world, Searle (1979: 12- 17) distinguishes five groups of illocutionary acts:

1. Expressives

Expressive SAs express psychological state of concerns of the suppositional content. In this type no direction of fit is there or they have a neutral fit. Examples of this type are thanking, apologizing, forgiving, welcoming, and others.

2. Assertives

Assertive (assertive) SAs constrain the speaker to the certainty of the communicated expression. They have a word to the world direction of fit. Examples of this group are asserting, suggesting, complaining, concluding and so on.

3. Declarations

They give some change in the position of the thing discussed by the speakers. That is why Meyer (2009: 50) states that they are performed by someone who is especially authorised to do so within some institutional framework. They have a word to world direction of fit. Examples of this type are firing from employment, naming, sentencing (in court), appointing, etc.

4. Commissives

Commissive SAs pledge the speaker to an upcoming progress of action. They have a world to words direction of fit. Examples of this category are like promising, threatening, offering, and so forth.

5. Directives

They are the speaker's efforts by the speaker to cause the hearer fulfil his intention. They have a world to words direction of fit. They can be represented through diverse kinds of verbs such as, order, command, prohibit, advise, warn, pray, and the like. Although the latter two SAs agree in their direction of fit, the future action is progressed by the speaker in commissives but by the hearer in directives.

For the sake of distinguishing one speech act from another, Searle (1969: 54-61) has formulated rules or conditions for each SA which if met, that SA can achieve its purpose. On the contrary, if any of these are violated, this will lead to a misinterpretation of an utterance. These conditions are known as 'felicity conditions' (henceforth, FCs). They include, as mentioned by Van Eemeren et al. (1993: 4):

1. **The propositional content condition** (henceforth, PCC) is concerned with what the SA is about.
2. **The preparatory condition** (henceforth, (PC) states what the real world prerequisites for the SA.
3. **The sincerity condition** (henceforth, SC) defines the act being performed in the sense that the speaker has the intention that his or her utterance will count as an act, and that this intention is recognized by the listener.
4. **The essential condition** (henceforth, EC) must be satisfied if the SA is performed sincerely.

Al-Hindawi (1999: 19) concludes that they could be defined as "the norms for producing speech acts by which one can determine whether the utterance is a successful speech act or not." These FCs will be applied to the analysis of SAs of the texts under study.

The illocutionary acts, from Van Dijk's (1977) point of view, "do not come alone." Rather, they come in the form of "SEQUENCES OF ACTION in general or of SEQUENCES OF SPEECH ACTS in particular" (p.: 202). Sometimes, certain SA is a consequence of or a condition for a preceding one. Thereby, "an illocutionary act may be an AUXILIARY ACT in a course of interaction" (ibid.). Al-Hindawi and Al-Khazaali (2017: 57), following Van Dijk (ibid.), present a taxonomy of speech act relations that link subsequent SAs* to macro SAs. In this study, the subsequent SAs are investigated and are named by the function they occupy in the utterance. They include: justification, explanation, addition, conclusion, contradiction, explication, correction, and condition.

Thus, the procedure to be followed in analysing the texts under study with respect to their SAs is to search for the macro SAs as well as the subsequent SAs used. This is achieved by following an eclectic model which is made up of Searle's (1979) classification of macro SAs and Van Dijk's (1977) classification of subsequent SAs cited in Al-Hindawi and Al-Khazaali (2017) as in the following figure:

(*) For more details on subsequent SAs see (Al-Hindawi and Al-Khazaali, 2017: 57-64).

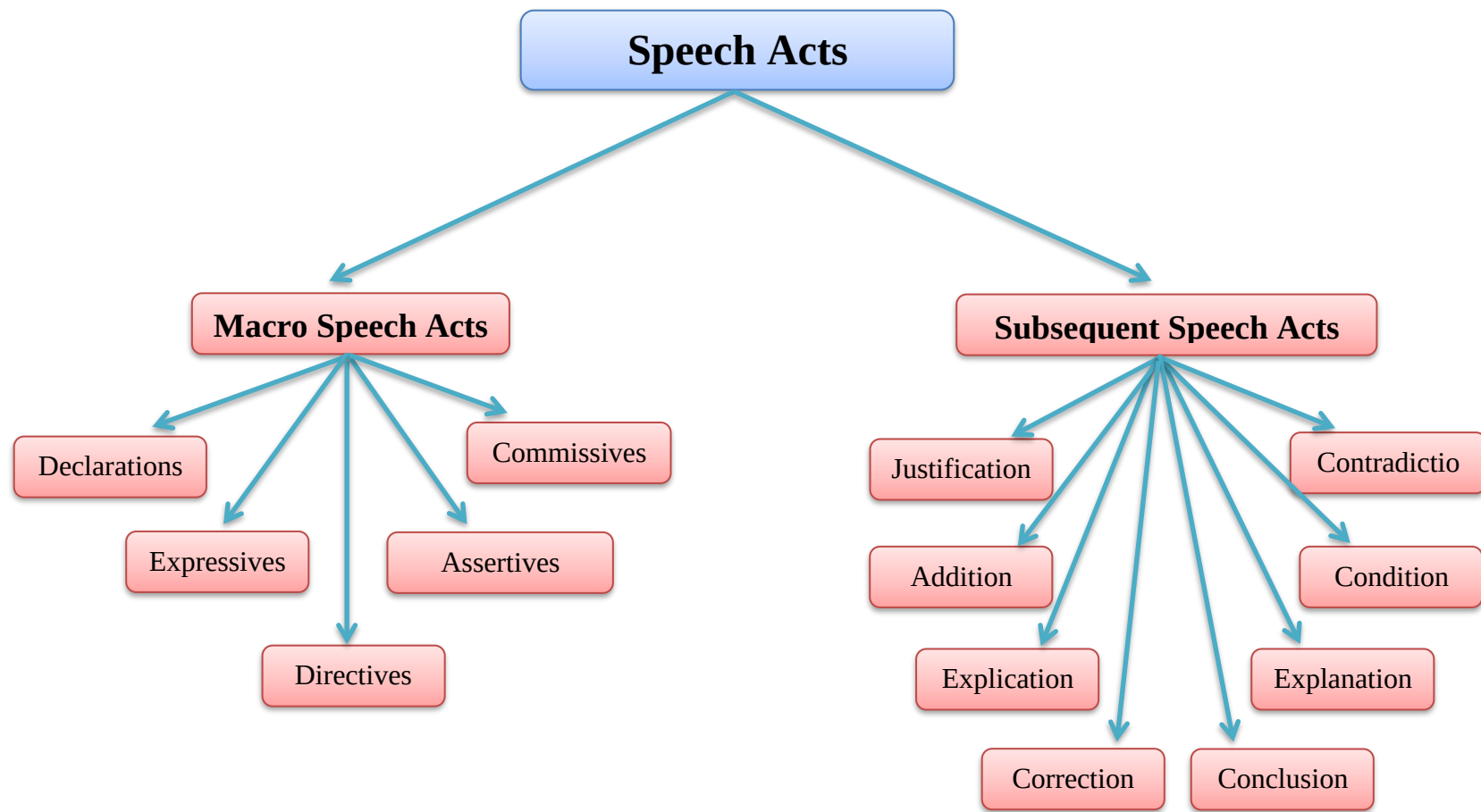


Figure (6) Eclectic model of SAs according to Searle's (1979) macro SAs and Van Dijk's (1977) subsequent SAs

3.4.2.4. Schemata

Schemata as Rumelhart (1980: 41) indicates can embody knowledge at various levels beginning with ideologies and cultural realities to knowledge about word meaning, to knowledge of forms of anxiety that are accompanying letters, and so on. In sum, all of our basic knowledge is set in schema, it reflects our experience. He further adds that it can be regarded as a metacognitive concept used to interpret the way in which knowledge is organized.

A schema is defined by Fairclough (1989: 158) as "a representation of a particular type of activity in terms of predictable elements in a predictable sequence. As such, it is a mental representation of the 'larger-scale textual structures'" which is called text structure in section 3.1.1.3, in the description stage.

Schemata or the global discourse forms, as pointed out by Van Dijk (1998: 207), are systematised by "a number of conventional categories, such as introduction and conclusion, opening and closing, problem and solution, premises and conclusion, and so on." Similar to other formal discourse structures, he further asserts that schemata can indicate significance, applicability or status of discourse. It specifies whatever details to arise in a headline, a body, or a conclusion.

According to McLeod (2015), Piaget (1952) has defined a schema as an organised sequence of closely interrelated components that are linked by a principal meaning. That is, it constitutes the fundamental foundation stone of behaving smartly. It represents a method of organising expertise. Admittedly, it is beneficial to regard schemata as components of knowledge that relates to certain feature of the world comprising, for example, theoretical concepts (Para.:11).

Thus, the investigation of schemata has a chief purpose in the study of the two texts. It gives some insight into the author's ideological viewpoints since each segment has a function in the text as a whole.

3.4.3 Explanation Stage

The third stage of analysis in this model is explanation. It is, as Fairclough (1989: 163) states, "concerned with the relationship between interaction and social context - with the social determination of the processes of production and interpretation, and their social effects." Fairclough (ibid: 164) points out that it has two dimensions depending on upon which the emphasis is put. If it is put on the future of discourse and its social effects as well as its originality then discourses can be seen as parts of social struggles. However, they can be seen as an outcome of struggles of power relations if emphasis is put on the past of discourse as well as its social purpose. Explanation in this study is devoted to the ideology that is represented in each of the texts under study and their powers. Ideology and power will be considered by adopting the operational definitions of both which are mentioned in Chapter one. In brief, Fairclough's (ibid.) views of ideology and power will be followed. He believes in ideology as a major mode of power and in power as being ideologically rooted or 'ideological power'. Thus, there is an interrelationship between the two terms. These two units of analysis can be presented as follows:

3.4.3.1 Ideology

Following the operational definition mentioned in chapter one, Ideology could be defined as a representation of aspects of the world fixed in the minds of group members which contribute to establishing and maintaining relations of power, domination and exploitation. It can be denoted through the ideologies that are vested in the text. For the analysis of the ideologies of the texts under study, different procedures

are followed since they differ in their presentation of rights. The ideology of UDHR is investigated by discussing the themes presented in it whereas in RH, it will be carried out by examining the dimensions of its ideology.

3.4.3.2 Power

In this study, power is taken to mean the ability gained by powerful or dominant individuals or groups that enables them to inculcate or instruct their social as well as political ideologies implicitly or explicitly through discourse. This view resembles Fairclough's (1989) 'ideological power' which is to generalise one's ideologies as common sense or universal. When analysing the two texts under study, two points are concentrated upon concerning power: first, authority and second, source.

The following is the theoretical framework to be adopted in the analysis of the two selected texts under study:

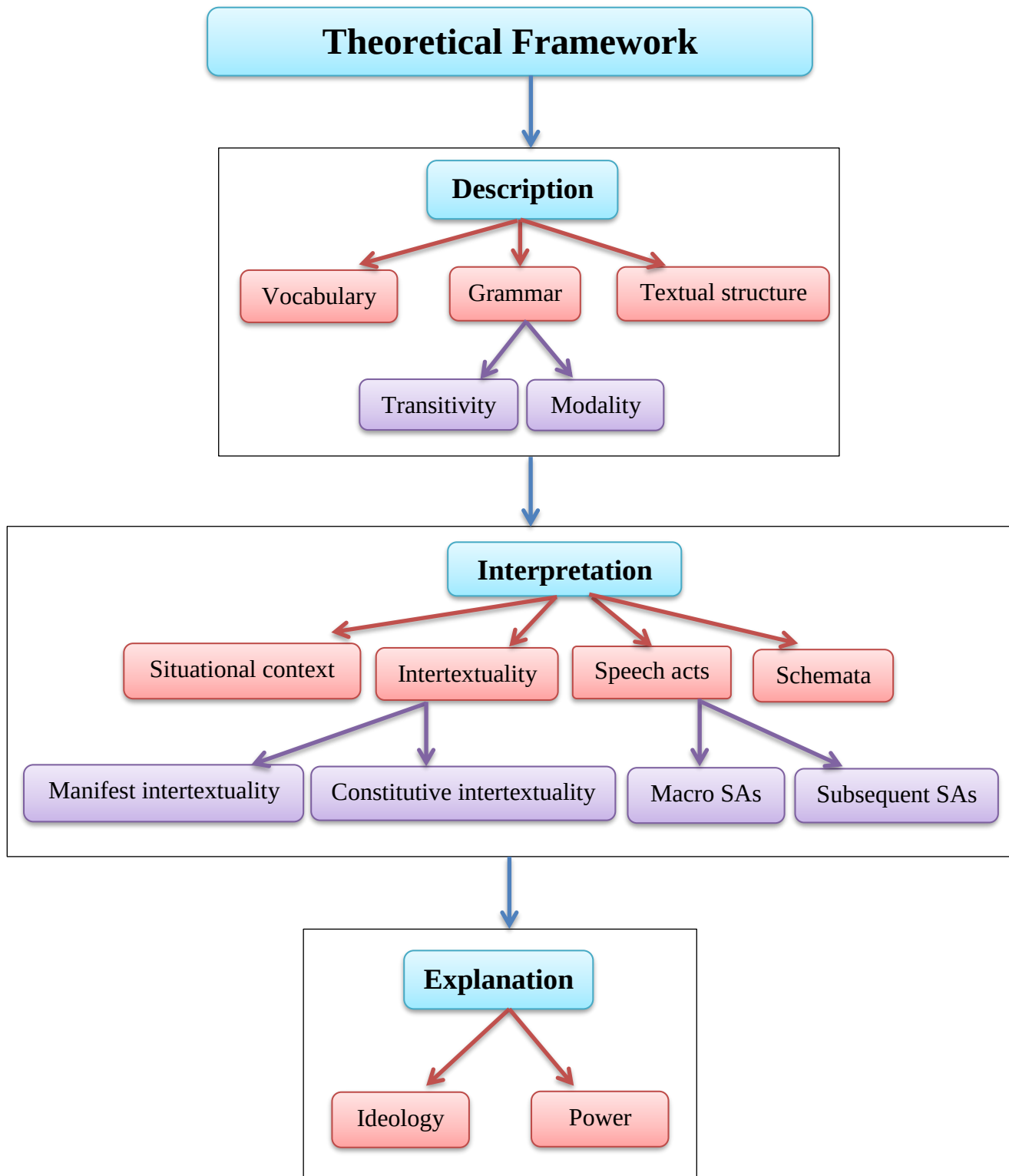


Figure (7) The adopted theoretical framework based on Fairclough (1989)

Chapter Four

Data Analysis

4. Introduction

The intended analysis will be carried out at three stages; namely, description, interpretation, and explanation. The procedure adopted in this chapter involves analysing the two texts separately and contrasting them at the end.

4.1 Analysis of UDHR

4.1.1 Description Stage of UDHR

As pointed out in chapter three, Fairclough (1989: 110-111) mentions three main textual features in the description stage: vocabulary, grammar, and textual structure. The examination of these three levels can reveal the ideology conveyed by the texts under study. The following sections will be devoted to the examination of UDHR with respect to these three levels:

4.1.1.1 Vocabulary

Alternative wordings, classification schemes, or lexical choices are different namings for the vocabulary analysis that reveals the experiential values of words. Sometimes vocabulary items constitute something ideologically significant about a text. As such, different lexical selections or, in Fairclough's (ibid.: 110) terms, different "classification schemes" can signal different discourses. Similarly, vocabulary can serve as a means for coding the "ideological differences between texts in their representation of the world" (Fairclough, 1989: 112). Words at this level are going to be tackled in relation to their experiential value. Actually, Fairclough (ibid.) mentions three types of value, namely, experiential,

relational and expressive. Since expressive and relational values have to do, as Fairclough (ibid.) points out, with 'social relations and social identities' while experiential value has to do with 'contents', the latter is chosen for the vocabulary analysis of the two texts. Experiential value of words has to do, as asserted by Fairclough (ibid.), with "contents and knowledge and belief" so it cues the manner in which the text producer's knowledge of the social sphere is represented. Special lexical schemes are unveiled in the text such as:

4.1.1.1.1 Expressions of Universality

Expressions such as (universal, all, everyone, and no one) are heavily used in UDHR. Such expressions are used throughout the preamble and the articles. Their use has been beneficial for emphasising the universal nature of human rights and highlighting as well the universal applicability of this document. For example, in the title, the word 'universal' is used to highlight the idea that this declaration is intended to present human rights in a way that precludes any distinction due to regional, geographical, racial, political, cultural, or religious differences. This standpoint is asserted in the preamble as well as in all of the articles which start either with 'everyone', 'all', or 'no one'. Some grammarians call **every** universal; it is an indefinite positive universal pronoun (Quirk et al., 1985: 345), and a universal quantifier. Supporting this idea of universality, Langacker (1991: 112) states that **every** is used to express universality among class members who are participating something mutual which is the sense intended in UDHR. The frequency of occurrence and percentage of those expressions is introduced in table (6) below:

Table 6: Frequency of occurrence and percentage of the use of universal expressions in UDHR.

No.	Universal Expressions	Frequency	Percentage %
1.	Universal	4	0.2 %
2.	All	13	0.7 %
3.	Everyone	26	1.4 %
4.	No one	8	0.4 %
Total use of universal expressions		51	2.7 %
Total		1,873	100%

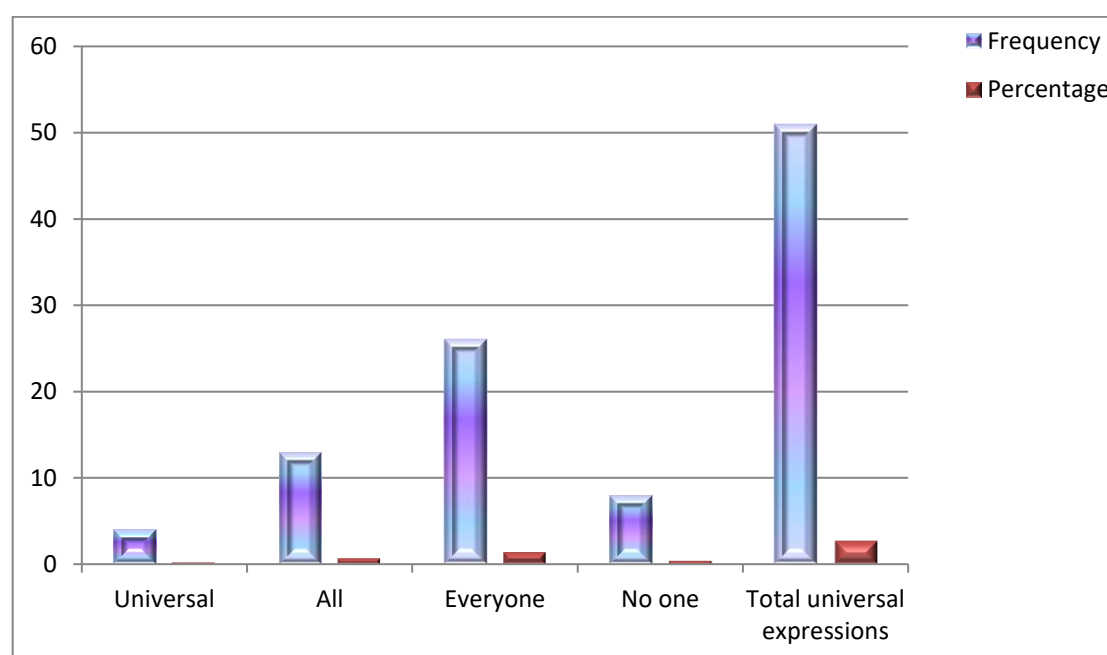


Figure (8) Frequency of occurrence and percentage of the use of universal expressions in UDHR.

Table (6) and figure (8) show that the most frequent universal expression is '**everyone**' since it has been used twenty six times out of fifty one making (1.4 %) of the whole percentage. The following exemplifies its use:

1. **Everyone** is entitled to all the rights and freedoms set forth in this Declaration,

The next frequent expression is '**all**' which makes (% 0.7). It is used either as a determinant preceding words like: human beings, children, or others or as a subject on its own as in the examples below:

2. **All** human beings are born free and equal in dignity and rights.
3. **All** children, whether born in or out of wedlock, shall enjoy the same social protection.
4. **All** are equal before the law and are entitled without any discrimination to equal protection of the law.

The use of such variant expressions with such frequent occurrence can be considered as an instance of overwording. Fairclough (1989: 115) defines overwording as a strangely great amount of wording frequently including several words that are nearby synonyms. It can indicate a sense of preoccupation with certain characteristic of reality that consequently tends to be a center of ideological conflict. These words are near synonyms and they indicate one aspect which is of universality. Thus, they can be considered as ideologically contested words since generalising or universalising the view of human rights which is +*ll be shown in section (4.4.1).

Despite the low percentage of the occurrences of universal expressions, such use cannot be ignored since no other classification schemes have reached such a frequency in this text. In addition, such expressions carry an ideological identity. Furthermore, the percentage is counted with respect to the whole text including its content as well as function words. Being counted in relation to the content words only, the percentage of these expressions would certainly have been much more than that. For example, if the whole frequency of the universal expressions is considered which is (51) occurrences, the percentage would be (6.64 %) since the content words are about (768).

4.1.1.1.2 Expressions of liberalism

Another group of ideologically contested words linked to the presentation of human rights are those of liberalism. Expressions like: (freedom, free, liberty, property, and equal) are used distinctively in UDHR. Their use can signal the liberal ideology adopted in exhibiting human rights since they represent the basic principles of liberalism. 'Freedom' of speech, opinion, thought, movement, religion and others are concentrated upon. The following table and figure show their frequency and percentage:

Table 7: Frequency of occurrence and the percentage of liberal expressions

No.	Liberal Expressions	Frequency	Percentage %
1.	freedom	21	1.12 %
2.	free	7	0.4 %
3.	liberty	1	0.05 %
4.	property	3	0.16 %
5.	equal	11	0.6 %
Total use of liberal expressions		43	2.3 %
Total		1,873	100 %

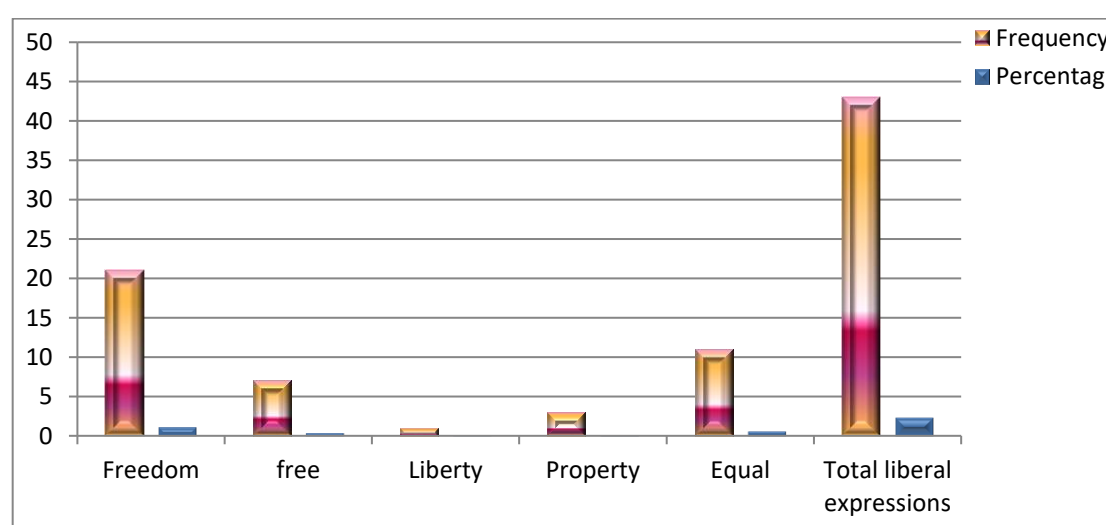


Figure (9) Frequency of occurrence and the percentage of liberal expressions in UDHR

In fact, if the percentage of the whole number of liberal expressions is counted with respect to the content words in UDHR only, it would be (5.6 %). The above-mentioned table and figure show that '**freedom**' is the most frequent liberal expression as it is used in the preamble and the articles (21) times making (1.12 %) of the total percentage. Such a focus indicates that living freely without any consideration of state or religion is a legislative right for all people. Some illustrative examples are given below:

5. Preamble's first recital

Whereas recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family is the foundation of **freedom**, justice and peace in the world.

6. Article 18

Everyone has the right to **freedom** of thought, conscience and religion.

'**Equal**' is the next liberal expression which is used (11) times making (0.6 %). Such use highlights the focus on the liberal view of equality of individuals. This equality is thought to be needed to put an end to any discrimination being based on racial, religious, political, social, or gender distinction depending on their view of rights as being natural. Some of the occurrences of the word '**equal**' are mentioned here:

7. Article 1

All human beings are born free and **equal** in dignity and rights. ...

8. Article 7

All are **equal** before the law and are entitled without any discrimination to **equal** protection of the law.

Finally, expressions in the two classification schemes mentioned above, namely, universality and liberalism are viewed as ideologically

contested words. They place the text in certain ideological frameworks which precludes other ideological frameworks. In other words, rights are framed in a universal rather than, for example, cultural-specific frame although some of these rights disagree with some principles of specific cultures.

4.1.1.2 Grammar

Within this level, two dimensions are going to be investigated: transitivity and modality.

4.1.1.2.1 Transitivity Analysis

It is mentioned earlier that this level of analysis is carried out according to Halliday and Matthiessen (2014) who divided the clause into three elements, namely, process, participant, and circumstance. The first two represent the central elements whereas the third represents the peripheral one. In the present study, the process types in which 'man' takes role, as a direct or indirect participant, are examined to show the more frequent role devoted to 'man' in the UDHR. 'Man' is taken to refer to expressions used in the text like: human beings, all, everyone, no one, or pronouns like: he, him, and they. The outcome of transitivity analysis to UDHR is manifested in table (8) and figure (10):

Table 8: Transitivity analysis of UDHR

No.	Process types		Participants		Frequency	Percentage %
1.	Material		Directly involved	Actor Goal	2 11	% 3.64 % 20
			Obliquely involved	Recipient	8	% 14.54
2.	Mental		Directly involved	Senser	2	% 3.64
3.	Relational	Attributive	Directly involved	Carrier	30	% 54.54
			Obliquely involved	Beneficiary	1	% 1.82
		Identifying	Directly involved	Token	1	% 1.82
Total					55	%100

(After Halliday and Matthiessen (2014))

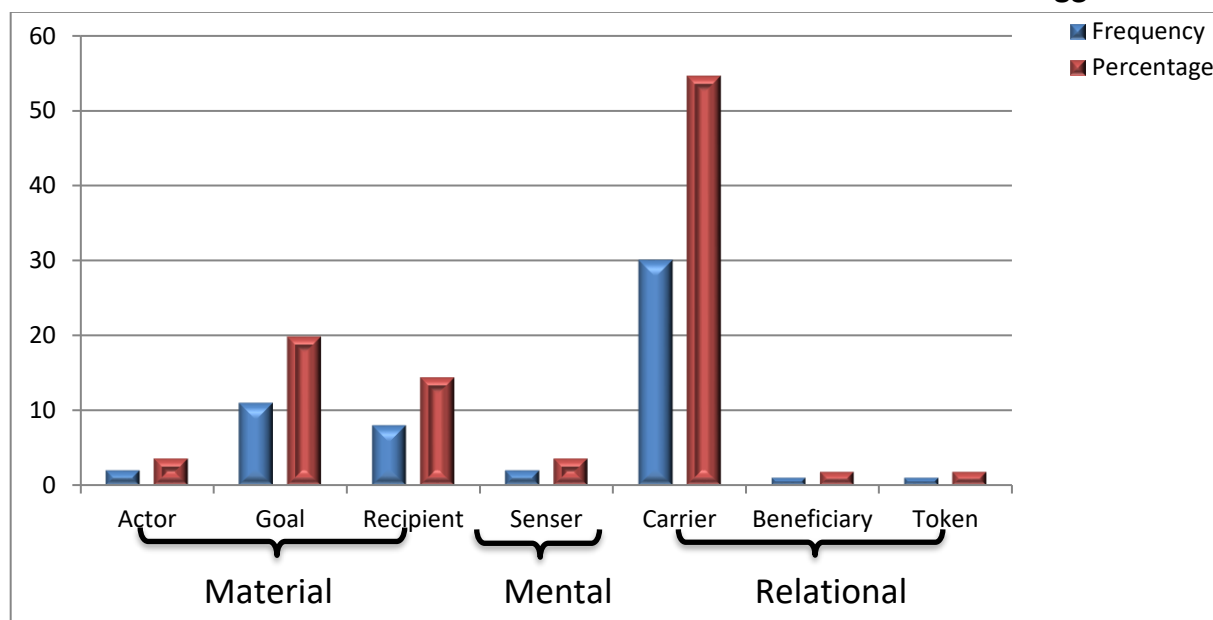


Figure (10) Frequency and percentage of process types and participants in UDHR

The frequency of occurrence show that the process type that prevails in the text is the relational attributive, specifically with the participant role as a carrier. This role is repeated (30) times out of (55) making (% 54.54) of the full percentage. After investigating these 30 uses, it is found that (25) of them are in the possessive type of relation. Examples are like:

9. **Everyone** has the right to life, liberty and security of person
10. **Everyone** has the right to a nationality.

Relational clauses serve to "characterize and to identify", as pointed out by Halliday and Matthiessen (2014: 204), that is why authors of UDHR draw on the resources of 'relational' clauses when presenting human rights. Most of the sentences are attributive mode of relational clauses with the types possessive and intensive. Furthermore, the tense that prevails is the simple present which represents the unmarked tense of relational process types.

The role of goal in material process type makes (% 20). Less frequently is the role of recipient in material process type as an indirectly involved participant making (% 14.54). The roles of actor in material processes and

senser in mental processes where each makes (% 3.64). Finally, the roles of beneficiary and token in relational processes each making (% 1.82). The following are examples of these instances respectively:

11. **No one** may be compelled to belong to an association.
12. **All** are entitled to equal protection against any discrimination in violation of this Declaration and against any incitement to such discrimination.
13. **They** are endowed with reason and conscience and should act towards one another in a spirit of brotherhood.
14. **All** children, whether born in or out of wedlock, shall enjoy the same social protection.
15. Higher education shall be equally accessible to **all** on the basis of merit.
16. **Everyone** shall be subject only to such limitations as are determined by law.

As stated above, the possessive type of relation is the dominating one. The prevalence of this type serves highlighting the fact that these rights are inherent in man's nature and not being endowed by others. The next- frequent role is when 'man' occurs as a goal in action clauses which are mostly in receptive or passive voice in all of its cases which in its turn leaves agency vague and adds to the quality of impersonality. Consequently, this can reinforce the generalised and universal identity intended by the text.

From what precedes, it can be discerned that the types of process used for conveying man's role in all of the (55) clauses belong to the major processes that are material, mental, and relational whereas no use of behavioural, verbal, nor existential process types.

4.1.1.2.2 Modality

Below, the meanings of modals are investigated to mark the prevailing meaning and the dominating modal verb. A number of modal verbs are used in the text under study expressing obligation, permission, and ability among other senses. Below is the frequency of modals:

Table 9: Frequency of occurrence and percentage of modal verbs in UDHR

No. of modal meanings	Meanings of modals	Modal verbs	Frequency	Percentage %
1.	Permission	May	4	% 11.4
2.	Possibility (Ability)	Can	1	% 2.9
3.	Obligation	Should	2	% 5.7
		Shall	28	% 80
Total			35	% 100

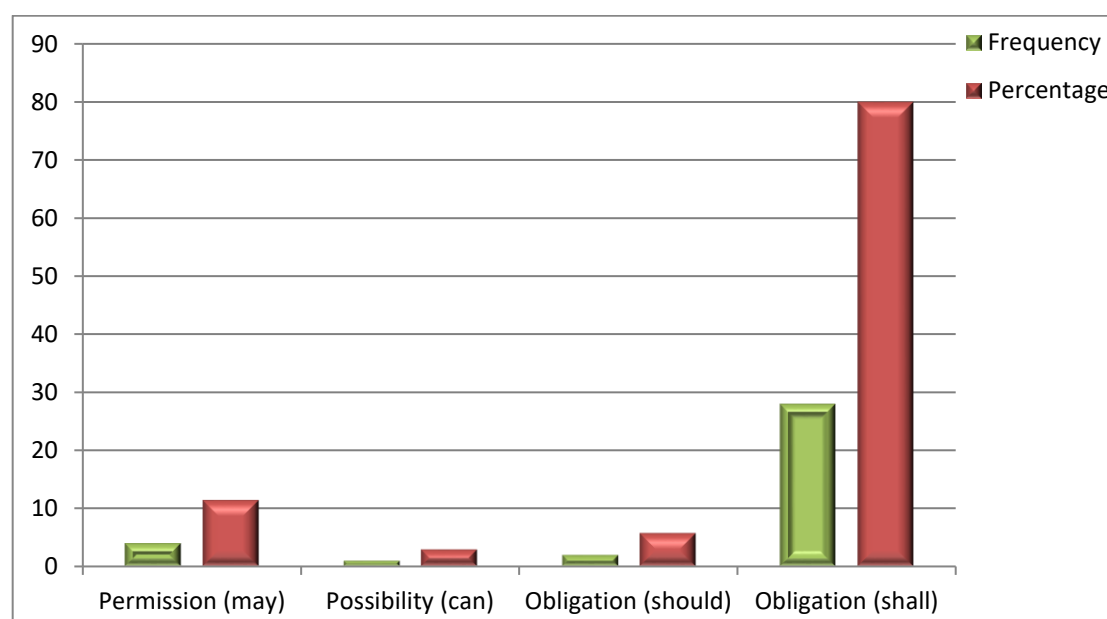


Figure (11) Frequency and percentage of modal meanings in UDHR

Table (9) and figure (11) above show that the use of modal meanings in the text under study is limited to permission, ability, and obligation. The highly prevailing meaning is that of **obligation** through the use of 'shall' making (80 %). Actually shall occurs normally with meanings of volition and prediction but Quirk et.al (1985: 230) mentions

an additional constrained use of 'shall' when it comes as a verb to a third person subject in legitimate or quasi-legitimate text for demanding conventions or legal necessities. In such cases, it carries the meaning of 'must'. That is why 'shall' is gathered here with 'should'. An example of shall in UDHR is the following:

17. No one **shall** be arbitrarily deprived of his property.

The second frequent meaning is **permission** through using 'may' making (11.43 %) as in:

18. These rights and freedoms **may** in no case be exercised contrary to the purpose and principles of the United Nations.

and **ability** through using 'can' making (% 2.86) as in:

19. Everyone is entitled to a social and international order in which the rights and freedoms set forth in this Declaration **can** be fully realized.

The results also indicate that meanings of **permission**, **ability**, and **obligation** are the only ones used whereas the other meanings like: possibility, volition, and prediction have not occurred.

Although the text under study is a declaration and not a binding covenant, obligation constitutes the fundamental meaning in its clauses. This indicates the high importance of these rights and the insistence on their preservation.

4.1.1.3 Textual Structure

In this level, the analysis will be carried out through investigating the larger scale structures of the text. This level corresponds with the component message content in Hymes' model of speaking in Chapter Two (cf. 2.2.4). UDHR consists of two main parts which are the preamble and the (30) articles. Actually these two parts are necessarily found in

most, if not all, of the international and local charters of human rights. Examples of the international charters are: the Charter of the UN which consists of a preamble and (111) articles; the International Covenant on Civil and Political Rights which consists of a preamble and (53) articles; the International Covenant on Economic, Social and Cultural Rights which consists of a preamble and (31) articles; and some others. On the other hand, the local charters are like: the American Convention on Human Rights which comprises a preamble and (82) articles; the African Charter on Human and Peoples Rights which includes a preamble and (68) articles; and some others. As such, the preamble can be considered as a cornerstone in modern human rights law since it states the purposes for which the committee is addressing the topic and sometimes it serves in highlighting past international action on the issue.

In UDHR, the preamble involves eight recitals where the first seven ones start with **whereas** and end with a comma, 'whereas' is a coordinating conjunction that, in the law, is used as the introductory word to a recital in a formal document or a legislative bill carrying the meaning of 'since' or 'because of the fact that...' ('Whereas', 2016: Para. 4). In this case, it is followed by an explanation for the enactment of the legislation. These seven recitals include: a reference to the UN Charter; some recommendations for nongovernmental organizations to make a joint effort in dealing with the issue; and showing its significance and its impact. A major aim of UDHR has been the prevention of the recurrence of barbaric acts which have spread during II World War as stated in the second recital. The final recital embodies the proclamation of the declaration and the procedures to be taken as a result to this proclamation. The second part contains (30) articles which can be grouped under four headings: introductory articles; civil and social, political, cultural, and economic rights; and concluding articles. The two main parts along with their divisions will be discussed in detail in 4.2.1.4.

4.1.2 Interpretation Stage of UDHR

As stated in chapter three, the interpretation of UDHR will be carried out with respect to the following four components:

4.1.2.1 Situational Context

It is mentioned previously that, for the analysis of situational context, Fairclough (1989: 147) has suggested four questions that correspond with four dimensions of situation. These four questions are the following:

4.1.2.1.1 What's going on?

The contents of discourse can be subdivided into: activity type, which has a recognised larger scale textual structure, topic, and purpose. The activity type to which the UDHR belongs is that of International Human Rights Declarations. The topics that are constrained in this activity are said to represent human's inherent rights which can be summed up under five groups: civil, political, cultural, social, and economic. The purpose is to put an end to any disregard or contempt for these rights.

4.1.2.1.2 Who's involved?

The social identities of the participants in this discourse are: the committee of the UDHR who resembles the addressers includes eighteen associates having different political, religious, and cultural experiences. The addressees are the governments of the member states whom the preservation of human rights situates within their responsibility.

4.1.2.1.3 In what relations?

The social relations that control the discourse are those of legal statuses. This point is asserted by Brown (2016: 34) who points out, when referring to its legitimate status, that UDHR has not been originally framed as a legally binding document; rather, as a 'soft law'. Yet, it has

been supplemented by two treaties which have legal binding status. These covenants are: International Covenant on Civil and Political Rights and International Covenant on Economic, Social and Cultural Rights. As such, the Commission on Human Rights can be considered as the legislature while the governments represent the executive authority with respect to this text. In other words, the governments are the rights-preservers or the rights-givers whereas people are the rights-bearers.

4.1.2.1.4 What's the role of language?

Language has been used as a means for the formulation of a charter that consists of the fundamental human rights. Through language, this declaration has been distributed among the Member States and has stayed of use till this time.

4.1.2.2 Intertextuality

Since a discourse can be better defined through its relation with other discourses, it is necessary to examine the other texts that UDHR draws upon. One text that UDHR adopts, and which can be considered as its historical context is DRMC which represents the French charter of human rights. In fact, the beginning of Article (1) in UDHR is a near rephrase of Article (1) in DRMC. The 1789 French sentence, as mentioned by Robertson (2004: 249), says that all "Men are born and remain free and equal in rights" while the 1948 UN sentence says that "all human beings are born free and equal in dignity and rights." Another instance is when referring to arrest. In DRMC, it is said that "every man is presumed innocent until declared guilty" Robertson (ibid.) whereas in Article 11 in UDHR "[e]veryone charged with a penal offence has the right to be presumed innocent until proved guilty". The American Civil Liberties Union which was founded in 1920 can be regarded as another source for UDHR. It agrees with UDHR in that they both pursue a secular line since The American Civil Liberties, as is stated by Robertson (ibid.:

9), "focuses on freedom of speech and religious freedom". These are examples of manifest intertextuality. The following is concerned with the second type of intertextuality, the constitutive one. The Composition of UDHR or the main parts that make it; the preamble and the articles, is taken from the previous political documents mainly the Constitution of the United States, 1789, DRMC, 1789 as well as some other international and local charters of human rights, which are mentioned in section (4.1.1.3) above.

4.1.2.3 Speech Acts

As stated previously, within this domain of pragmatics, UDHR is going to be analysed to investigate its use of as well as subsequent SAs using an eclectic model presented in Chapter Three.

4.1.2.3.1 Speech Acts

Four types of SAs are used in UDHR. First, SA of proclamation that belongs to **Declaration SAs** has been used in the preamble:

20. Now, therefore THE GENERAL ASSEMBLY **proclaims** THIS UNIVERSAL DECLARATION OF HUMAN RIGHTS as a common standard of achievement for all peoples and nations, [emphasis is in origin]

This example represents an instance of declaration SA, specifically, direct proclamation. It is so because it leads to some change in the world, to put it differently, before setting this document nothing could be regarded as a standard of achievement for all people. Furthermore, declaration SAs require some authority from the speaker to state his utterance and the speaker in this example is the general assembly which is well qualified to declare such an institutionalised statement. The FCs for this example are the following:

1. PCC

The general assembly is proclaiming UDHR as a standard of achievement for all people.

2. PC

The general assembly believes that the declaration is well qualified to be considered as a standard of achievement for all people.

3. SC

No sincerity condition is set for declarations (Searle, 1979: 19).

4. EC

The general assembly intends to inform all people of the proclamation of UDHR as a common standard of achievement for all people.

The text under study is in fact a document which includes a list of human rights so proclaiming it as in the preceding example is necessary and beneficial to emphasise its universality. In other words, the addressers intend to declare the nature of this document.

Second, the authors have included uses of **Assertive SAs** as in the following example found in the preamble which shows how the authors report the pledge between the UN and Member States. In so doing, they commit themselves to the truth of such a proposition:

21. Whereas Member States **have pledged themselves** to achieve, in co-operation with the United Nations, the promotion of universal respect for and observance of human rights and fundamental freedoms,

The FCs for this example according to Searle's (1969: 66) rules of assertion are as follows:

1. PCC

The authors of UDHR report the pledge that the Member States and UN have set of respecting human rights.

2. PC

a. The authors of UDHR are confident of the truth of this proposition and have reason for that confidence which can be the presence of the pledge itself.

b. It is not obvious that the addressees of the declaration know about this proposition.

3. SC

The authors of UDHR believes in this proposition.

4. EC

The authors of UDHR express an actual state of affairs.

Third, **Commissive SA** of promising can be figured in the following example:

22. [A]ll peoples and all nations . . . keeping this Declaration constantly in mind, shall **strive** by teaching and education **to promote respect** for these rights and freedoms [Emphasis added]

The authors, being members of the peoples and nations mentioned in this example, commit themselves to a future course of action that is striving 'to promote respect...'. They promise to respect the rights set in UDHR. The FCs of promising, as cited in (Al-Hindawi, 1999: 17-18), are applicable here:

1. PPC

a. The authors of UDHR express in their utterance the proposition of promise that they as well as all peoples and all nations will promote respect for human rights.

- b. They in saying so predicate a future act that is their contention through teaching and education to promote such respect of rights.

2. PC

- a. They believe that doing this act is in the interest of the addressee. They (i.e. the addressees) prefer people's doing of that act to not doing it.
- b. It is not obvious to both the authors of UDHR and the addressees that this act will be done in the normal course of action.

3. SC

The authors of UDHR intend to make their addressees believe in this promise which they will be responsible for.

4. EC

The utterance of this promise will place the authors of UDHR under the obligation of doing that act.

Fourth, the last type here is **directive**. two subtypes of directives occur in UDHR, namely, **command** and **prohibition**. In Article (26) there is an instance of **command**:

23. All human beings are born free and equal in dignity and rights.
They are endowed with reason and conscience and **should act** towards one another in a spirit of brotherhood.

According to Searle (1969:66), command has the same FCs of request except for the following added third preparatory rule:

- c- The speaker must be in a position of authority over the hearer.

As such, the FCs for command in this example are:

1. PCC

The authors of UDHR predicate that all human beings should act towards one another in a spirit of brotherhood.

2. PC

- a. All human beings are able to act as such and the authors of UDHR believe that they are able to do so.
- b. It is not obvious to both the authors of UDHR and all human beings that all human beings will do that act.
- c. The authors of UDHR are in a position of authority over humans.

3. SC

The authors of UDHR want all humans to act in a spirit of brotherhood.

4. EC

The utterance of the authors of UDHR counts as an attempt to get humans to act towards each other in a spirit of brotherhood.

Article (4) is a representation of a **prohibition**:

24. No one shall be held in slavery or servitude; slavery and the slave trade shall be prohibited in all their forms.

It is pointed out by Jawad (2012: 7) that prohibition is a negative command. In this example there is an explicit use of the speech act prohibit which implies not to do things. Consequently, the FCs of this SA could be:

1. PCC

The authors of UDHR predicate that people should not get into any slave trade.

2. PC

- a. people are able to avoid doing slave trade and the authors of UDHR believe that they are able to do so.
- b. It is not obvious to both the authors of UDHR and people that people will avoid doing slave trade.

- c. The authors of UDHR are in a position of authority over humans.

3. SC

The authors of UDHR want people to leave doing slave trade.

4. EC

The utterance of the authors of UDHR counts as an attempt to get people not do slave trade.

Finally, it is clear now that among the five SAs only four are used; however, no use is there of expressive SA. This absence of expressive SAs could be linked to the nature of this document that is being a legislative one so not interested in expressing speaker's attitude to certain state of affairs.

4.1.2.3.2 Subsequent Speech Acts

Subsequent SAs which are proposed by Van Dijk (1977), as pointed out in chapter three, have Ø frequency of occurrence in this text since the authors restrict themselves to the use of macro SAs only. After completing the analysis of SAs, there will be a move to the third level of analysis within the interpretation stage, which is schema.

4.1.2.4 Schema of UDHR

The text under study is analysed as an activity type with respect to its superstructure. In other words, the text is interpreted through focusing upon its predictable elements and the predictable sequence which they follow. This dimension of analysis accords with the last component in the description stage that is textual structure (cf. 4.2.3). The following table shows the overall schemata of UDHR:

Table 13: Classification of rights in the UDHR

The preamble	The purposes behind the formulation of this document	
Introductory Articles	Article 1	Right to Equality
	Article 2	Freedom from Discrimination
Civil and Political Rights	Article 3	Right to Life, Liberty, Personal Security
	Article 4	Freedom from Slavery
	Article 5	Freedom from Torture and Degrading Treatment
	Article 6	Right to Recognition as a Person before the Law
	Article 7	Right to Equality before the Law
	Article 8	Right to Remedy by Competent Tribunal
	Article 9	Freedom from Arbitrary Arrest and Exile
	Article 10	Right to Fair Public Hearing
	Article 11	Right to be Considered Innocent until Proven Guilty
	Article 12	Freedom from Interference with Privacy, Family, Home and Correspondence
	Article 13	Right to Free Movement in and out of the Country
	Article 14	Right to Asylum in other Countries from Persecution
	Article 15	Right to a Nationality and the Freedom to Change It
	Article 16	Right to Marriage and Family
	Article 17	Right to Own Property
	Article 18	Freedom of Belief and Religion
	Article 19	Freedom of Opinion and Information
	Article 20	Right of Peaceful Assembly and Association
	Article 21	Right to Participate in Government and in Free Elections
Social, Economic, and Cultural Rights	Article 22	Right to Social Security
	Article 23	Right to Desirable Work and to Join Trade Unions
	Article 24	Right to Rest and Leisure
	Article 25	Right to Adequate Living Standard
	Article 26	Right to Education
	Article 27	Right to Participate in the Cultural Life of Community
	Article 28	Right to a Social Order that Articulates this Document
Concluding Articles	Article 29	Community Duties Essential to Free and Full Development
	Article 30	Freedom from State or Personal Interference

(After Flowers (1998))

Since UDHR belongs to charters of human rights, its major elements are: a preamble and a body. These two parts are put in an order that is intended to uncover the purpose behind putting the declaration; first, by starting with the preamble; then, presenting its content (i.e. the 30 articles). This is done through starting with the preamble which consists of the purposes set in eight recitals. These recitals are arranged in accordance with the importance of the purposes mentioned in each of them. As such, the first recital emphasises the significance of recognising these rights. The second mentions the results of disregarding them. The third focuses on the need for protecting them by the rule of law. The fourth centres upon the essentiality of having kind relationships among nations. The fifth stresses the attitude of the UN towards these rights in the Charter. The sixth and seventh recitals have concentrated upon the pledge among Member States which puts the promotion of human rights as in its focal point. Finally, the eighth recital as a consequence to these previous ones asserts the proclamation of this document. All of that has been for the first part which is the preamble.

The body of the document, which includes the 30 articles, approaches human rights in a tidy arrangement. The rights in these articles can be regarded as making four groups. The first and last are set up by introductory and concluding articles whereas the other two represent the civil and political, social, cultural, and economic rights. The introductory and the concluding articles occupy articles number: 1, 2, 29, and 30 respectively. Nevertheless, the civil and political rights uphold the protection of the individual freedom from the government as well as their capacity to contribute politically and civilly. They make (19) out of the total (30) articles or about two-thirds of them. Social, economic, and cultural rights making only (7), as is shown in table (9), advocate an individual's social, economic, and economic, and cultural entitlements like the right to adequate housing, education, work, and so on.

4.1.3 Explanation Stage of UDHR

Within this section, the ideology as well as the power of UDHR are discussed.

4.1.3.1 Ideology

The ideology of UDHR is examined by concentrating on the ideas that are conveyed in this text whether directly or indirectly. These ideas include: secularism, liberalism, universality, ethnocentrism, individualism, and collectivism. These are explained for the sake of uncovering the attitude that UDHR has.

4.1.3.1.1 Secularism

One of the fundamentals of universality here is **secularism**. The use of the term secularism dates back to the British writer George Jacob Holyoake in 1851. It claims that religion must not exceed being a private matter (Holyoake, 1896: V). In other words, it indicates a rejection of religion and religious considerations or neglecting its role in governments or public parts of the society. As مفتي والوكيل Mufti and Al-Wakeel (1992: 8) assert, the theory of natural human rights is linked to the political secularism. As a sequence to the establishment of nature as the authority political and social control.

The link between these two concepts (i.e. universality and secularism) is due to the fact that UDHR is intended to address mankind as a whole. Putting in mind that referring to rights as being awarded by Allah might arouse the disapproval of designations demonstrating about half of the world's populations, since the majority of the world's peoples were not religious, any reference to Allah is avoided by the commission of UDHR throughout the whole declaration. This point is referred to by Morsink (1999: 283) when saying that "[I]n a bargain to avoid any reference to God in the Declaration", the drafters "voted for a

thoroughgoing secular document". In another instance, Morsink (ibid.: 289) states, depending on its drafting history, that "the Universal Declaration is a secular document by intent." This could be seen in the following example which shows how the authors of UDHR stay neutral when a reference to the chief source of rights is required as in Article 1:

24. All human beings are born free and equal in dignity and rights. They are endowed with reason and conscience and should act towards one another in a spirit of brotherhood.

The passive voice is used in order to leave agency unclear and not to mention the fact that Allah is the one who endows human beings 'reason and conscience' and consequently their rights.

4.1.3.1.2 Liberalism

The philosophy of **Liberalism** along with its basic ideas has also been used as another ideology in this text. The following paragraphs will be devoted to the designation of this term and the impact it has upon the formalisation of rights in this text.

Liberalism is defined in Encyclopaedia Britannica as a:

political policy that considers defending and improving the individuals' freedom as the central concern of governments. Liberals archetypally consider governments responsible for protecting persons; but they also know that governments themselves might be held as a threat to liberty ("Liberalism", 2016: Para. 1).

Liberalism has also been derived from a feature related to Western culture that is the West's anxiety with individualism, as corresponding to the importance of custom, class, and rank in other cultures (ibid.: Para. 4).

Although dating back to much time earlier, in Europe, it has gone through two periods: classical liberalism which dates back to 17th century and modern liberalism that dates back to late 19th century. John Locke, an English philosopher and one of the Enlightenment thinkers, can be considered as a representative figure in classical liberalism. Locke's philosophy of liberalism is designated in his view of political authority as to the protection of individuals and the guarantee of their natural rights mainly: life, liberty, and property. According to him, liberty rights include freedom of thought; speech and worship. He actually finds these rights as obligations that when the sovereign fails to fulfil, a revolution is justified. For the liberals, there has been the problem of reconciling the principle of majority which could be treated by limiting the authority of the majority. One of their solutions has been the straightforward pledge to the preservation of liberty and honor of individuals. This mainly includes freedom to associate, freedom from fear, protection from arbitrary arrest and punishment, and preserving person's privacy ("Liberalism", 2016: Para. 4).

The above-mentioned rights which have been propagandised by liberalism are embraced by DRMC, 1789. Accordingly, they are included in UDHR since DRHC represents one of its major sources.

Locke's previously mentioned the philosophy of natural rights mainly of life; liberty, including freedom of thought, worship, speech, property, and revolution is included in the preamble, Articles 3, 17, 18, and 19 respectively.

25. Article 3

Everyone has the right to life, **liberty** and security of person.

The embodiment of such right has been as a consequence of the huge crimes committed during II World War and by the Nazis since this right has been tremendously violated.

26. Article 18

Everyone has the right to **freedom of thought**, conscience and religion; this right includes **freedom to change his religion** or belief, and freedom, either alone or in community with others and in public or private, to manifest his religion or belief in teaching, practice, worship and observance.

In spite of the need for religion for the linkage of a nation, UDHR rejects any link between it and politics. Moreover, it gives everyone the freedom of religion, of being secular (even though implicitly), and of changing his religion as is indicated in this Article. The latter is a point of controversy for Muslims and it will be discussed later in this section.

27. Article 19

Everyone has the right to **freedom of opinion and expression**; this right includes freedom to hold opinions without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers.

Locke's right to freedom of speech can be seen as compositing freedom of 'opinion and expression' set in the previous Article.

28. Article 17

1. Everyone has the right to own **property** alone as well as in association with others.
2. No one shall be arbitrarily deprived of his **property**.

The right to own property is one of the natural rights set up by the liberal philosophers, mainly John Locke. In explaining property, Locke, in his *Two Treatises of Government* which is edited by Laslett (1988: 287), argues that since "man has a property in his own person", consequently, "the labour of his body and the work of his hands ... are strictly his." As such, when he mixes his labour with something that he has taken from

nature, in this way, he makes it his property. The right to property and not to be deprived of it is proclaimed in this Article.

29. Whereas it is essential, if man is not to be compelled to have recourse, as a last resort, to **rebellion** against tyranny and oppression, that human rights should be protected by the rule of law, "Emphasis added"

Locke's idea of revolution is explicitly asserted in the third recital of the Preamble yet it is mitigated by the clause 'as a last resort'. The inclusion of such right can be looked at as a warning to authorities in case human rights are violated. Morsink (1999: 302) points out that when discussing such an issue, this right has "a common origin in the Enlightenment proposition that governments are instituted to protect human rights." This implies that the major duty of governments is the protection of human rights, as such; any denial of this duty might lead people to withdraw their support to the government and consequently set up another government. This could be seen as a logical result to the view of government that has been announced in the third section in Article 21 which reads:

30. The will of the people shall be the basis of the authority of government; this will shall be expressed in periodic and genuine elections which shall be by universal and equal suffrage and shall be held by secret vote or by equivalent free voting procedures.

Beside Locke's natural rights, there are some other rights, mentioned earlier, which are put by liberals for the sake of delimiting the power of the majority, such rights are included in the second recital of the Preamble and Articles: 5, 9, 12, and 20.

31. Whereas disregard and contempt for human rights have resulted in barbarous acts which have outraged the conscience of mankind, and the advent of a world in which human beings shall enjoy

freedom of speech and belief and **freedom from fear** and want has been proclaimed as the highest aspiration of the common people.

"Emphasis added"

Freedom from fear in addition to being one of the rights proclaimed in classical liberalism, it constitutes one of the four kinds of freedom, namely, freedom from fear and want, of speech and belief, all of which are mentioned in the second recital of the Preamble and are announced beforehand by "President Franklin Roosevelt in his 1941 message to Congress" (Morsink, 1999: 313).

32. Article 9

No one shall be subjected to arbitrary arrest, detention or exile.

This article represents one of the legal human rights which constitute seven out of the Declaration's thirty articles. Legal rights include: the right to legal personality, equality before the law, fundamental constitutional rights, rejection of arbitrary arrest, independent judiciary, assertion of the assumption of innocence, and privacy. These rights are asserted separately to emphasise their importance for the legal system of any nation.

33. Article 12

No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence, nor to attacks upon his honor and reputation. Everyone has the right to the protection of the law against such interference or attacks.

This is also one of the legal rights mentioned above. Human's privacy needs to be considered as inviolable, although such a term is not used here exactly, at least, one can be protected by law against illegitimate intrusion into his personal life, home, or correspondences. This right is clearly linked to human's dignity.

34. Article 20

1. Everyone has the right to freedom of peaceful assembly and association.
2. No one may be compelled to belong to an association.

This right gives people the freedom to belong to associations for various purposes: political, religious, cultural, scientific, and the like with no restrictions except for their peaceful property.

Though the two notions look diverse from afar, referring to human rights and Western liberal democracy, Mutua (1996: 592) states, each one could be regarded as a demystified variety of the next; the former epitomises the endeavoured dispersal and further expansion at the latter. He further claims that the widespread philosophy of human rights corpus is essentially European. These ideas along with the liberalistic idea of individuality are clearly presented in the previously discussed articles.

4.1.3.1.3 Universality versus Ethnocentrism

One of the main ideologies represented in this text can be considered as the idea of universality of this declaration to which the above-mentioned philosophies are attached. The philosophy of **universality** approved here encompasses demanding the rights of all human beings irrespective of their individualistic differences regarding their cultural, ethnic, or religious background.

UDHR, although claiming universality, is actually implying Western ethnocentrism. Morsink (1999: x, xiii), when reporting the worries expressed by the American Anthropological Association says that the UDHR "was indeed a product of Western ethnocentrism". He adds, "with all this respect and attention, it is still constantly being charged with the crime of ethnocentrism." This view actually is agreed upon by other critics and scholars like An-Na'im (1992), as an Islamic scholar, says that after spending ten years in an attempt to identify struggles and strains between global criteria of human rights and principles of Islamic Shari`a,

he has reached to a certainty that "international standards of human rights" and consequently of the UDHR are "bias"(p: 427). UDHR is created with an ethnocentric bias for being "initially based on Western cultural and philosophical assumptions" (ibid.: 428) in contrast to its claimed universal intentions as is mentioned in the last recital of the UDHR preamble:

24. Now, Therefore THE GENERAL ASSEMBLY proclaims THIS UNIVERSAL DECLARATION OF HUMAN RIGHTS as a common standard of achievement for all peoples and all nations,

Universality, in addition to being claimed from the early beginning of the text, in the title, it is asserted along all of the articles throughout the use of expressions such as (*everyone, all, no one*) (cf. table 6 and figure 8). Three Articles are elucidated regarding this issue, for example:

25. Article 6

Everyone has the right to recognition everywhere as a person before the law.

26. Article 7

All are equal before the law and are entitled without any discrimination to equal protection of the law. All are entitled to equal protection against any discrimination in violation of this Declaration and against any incitement to such discrimination.

27. Article 12

No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence, nor to attacks upon his honor and reputation. Everyone has the right to the protection of the law against such interference or attacks.

UDHR is criticised for having a perspective which is absolutely opposing to universality that is ethnocentrism or more specifically, Western ethnocentrism. As Pollis and Schwab (1980: 1) point out, the

"Western political philosophy upon which the Charter and the Declaration are based ...may not be successfully applicable to non-Western areas for several reasons" such as: "ideological differences" and "cultural differences". This attitude is asserted in another instance as they see the Universal Declaration as an "articulation and reinforcement of political values that had prior existence" in Western Europe and the United States and therefore with limited applicability in other non-Western states (ibid.: 7).

Some of the rights which are propagandised by liberalism and later on being embraced by the UDHR are indeed far from being universal, at least with respect to the Islamic religion. Among these is the right to change religion which is mentioned in Article 18 on the one hand, Islam has preserved the freedom of religion as in the following ayahs and some others:

"لَا إِكْرَاهَ فِي الدِّينِ قَدْ تَبَيَّنَ الرُّشْدُ مِنَ الْغَيِّ فَمَنْ يَكْفُرْ بِالطَّاغُوتِ وَيُؤْمِنَ بِاللَّهِ فَقَدِ اسْتَمْسَكَ بِالْعُرْوَةِ
الْوُثْقَىٰ لَا انْفِصَامَ لَهَا وَاللَّهُ سَمِيعٌ عَلِيمٌ"

"Let there be no compulsion in religion: Truth stands out clear from Error: whoever rejects evil and believes in Allah hath grasped the most trustworthy hand-hold, that never breaks. And Allah heareth and knoweth all things." [The Glorious Quran, Baqara 2: 256]

""وَقُلِ الْحَقُّ مِنْ رَبِّكُمْ فَمَنْ شَاءَ فَلْيُؤْمِنْ وَمَنْ شَاءَ فَلْيُكْفُرْ ؕ

"Say, 'The truth is from your Lord': Let him who will believe, and let him who will, reject [it]" [The Glorious Quran, Kahf 18: 29]

This freedom is preserved to non-Muslims. On the other hand, it is not allowed for Muslims to change their religion (i.e. to become apostate) as is asserted in the following ayah:

"وَمَنْ يَبْتَغِ غَيْرَ الْإِسْلَامِ دِينًا فَلَنْ يُقْبَلَ مِنْهُ وَهُوَ فِي الْآخِرَةِ مِنَ الْخَاسِرِينَ"

"If anyone desires a religion other than Islam [submission to Allah], never will it be accepted of him; and in the Hereafter He will be in the ranks of those who have lost [All spiritual good]"[The Glorious Quran, Al-i-Imran 3:85].

Article 18 along with Article 16 has caused the Saudi Arabian delegate to withhold from voting lastly. Morsink (1999) reports the Saudi delegation, Jamil Baroody's comment on Article 16 in which "Jamil Baroody 'emphasizes that seemingly the authors of UDHR have been considering merely the principles familiar to Western society and have been discounting other ancient cultures. Furthermore, the Commission's task has not been the proclamation of the supremacy of one society over others nor the creation of identical principles for all countries (p: 24).

Article 16 consists of two points of departure with Islamic culture and consequently is far from being universal. The first section of which reads as follows:

28. Men and women of full age, without any limitation due to race, nationality or religion, have the right to marry and to found a family. They are entitled to equal rights as to marriage, during marriage and at its dissolution.

It conflicts with marriage laws of Muslim cultures. Whereas it is prohibited that a Muslim woman marries a non-Muslim man, this Article asserts marriage choice without paying attention to cultural differences. The other point is equality of rights of men and women before, during, and at the dissolution of marriage. In Islam, complementarity is what governs the husband and wife roles which is due to the man and woman nature. Each one has rights that are incumbent upon the other and duties towards the other. For example, the husband is legally responsible for ensuring living requirements while the wife is physically responsible for pregnancy.

4.1.3.1.4 Individualism versus Collectivism

Individuality is highly asserted in the text since it is built upon the classic liberal approach which overemphasises individual rights over collective or group rights. In UDHR, individuals are granted the power to behave to their will without putting in mind the behalf of the group or society within which they live. If put differently, an individual might carry out his will regardless of the will of others. If this view of individuality is associated with the universality of this document, it could result in a controversy with some communities in which the favours of groups are more preferential. As Rehman and Breau (2007: 173) state, "[t]he individualistic nature of human rights is also sometimes invoked as a proof of their irrelevance in Islam. The Islamic community is organised around the *ummah* or community of believers which are superior to individuals' interests". Thus, collectivism is not considered in UDHR. To the contrary, individualism represents a basic issue here.

4.1.3.1.5 Rights versus Duties

Actually, UDHR revolves around individuals' rights that are incumbent upon their governments while the other end, that is, duties is disregarded. Lacking any reliance on religion or any hint to morality, it makes it unsurprising for the UDHR not to include a real reference to individuals' duties towards each other, their society, or their states. Twiss (2004) postulates that the drafters of UDHR have followed another way, highlighting individuals' rights to crucial economic, civil, social, and political, circumstances along with their equality in such fortifications, without paying attention to groups' power (p: 42). Although Article 29 has allocated some effort concerning this issue (i.e. of duties), it is not as enormously emphasised as the issue of rights truly is along the whole declaration. What is more, introducing duties which are owed by individuals to states could lead to a balance to those duties that are owed

by states to respect individuals' rights, then; such an approach might confine human rights law.

Depending on what precedes, the nature of the UDHR can be considered to be grounded upon the theme of liberalism linked to some ideas of secularism, individualism, and universality. Going deeply into the articles of this declaration, they confine governments to the fulfilment of rights that are set to save future generations from the destruction of international conflict.

4.1.3.2 Power

It is stated in Chapter Three that the power of UDHR will be taken into consideration through examining the source of power as well as the authority in this text.

4.1.3.2.1. Source or Origin

UDHR is noticeably based on a positive or human origin since it lacks any reference to Allah and He is not taken as its source. Rather, it takes its rules from previous documents on human rights, namely, DRMC which in its turn is written by humans depending on what they regard as natural human rights. UDHR is derived from a positive law or is based upon positive principles. In other words, the addresser and the addressee, the ruler and the ruled are both humans.

4.1.3.2.2. Authority

There is an authority to the authors of UDHR which is clearly found in the way they present rights. More specifically, their authority appears throughout their extensive exposition of the use of obligation meaning within modality, as is found in table (9) and figure (11). Furthermore, the instructive nature of UDHR is quite obvious in the use of different representations of directive speech acts. Another instance of their authority might be linked to their claim of the universality of this document to all people and all nations regardless of their origin, culture, or religion.

4.2 Analysis of RH

4.2.1 Description Stage of RH

The second part of the description stage is devoted to the analysis of RH through examining its vocabulary, grammar, and textual structures as follows:

4.2.1.1 Vocabulary

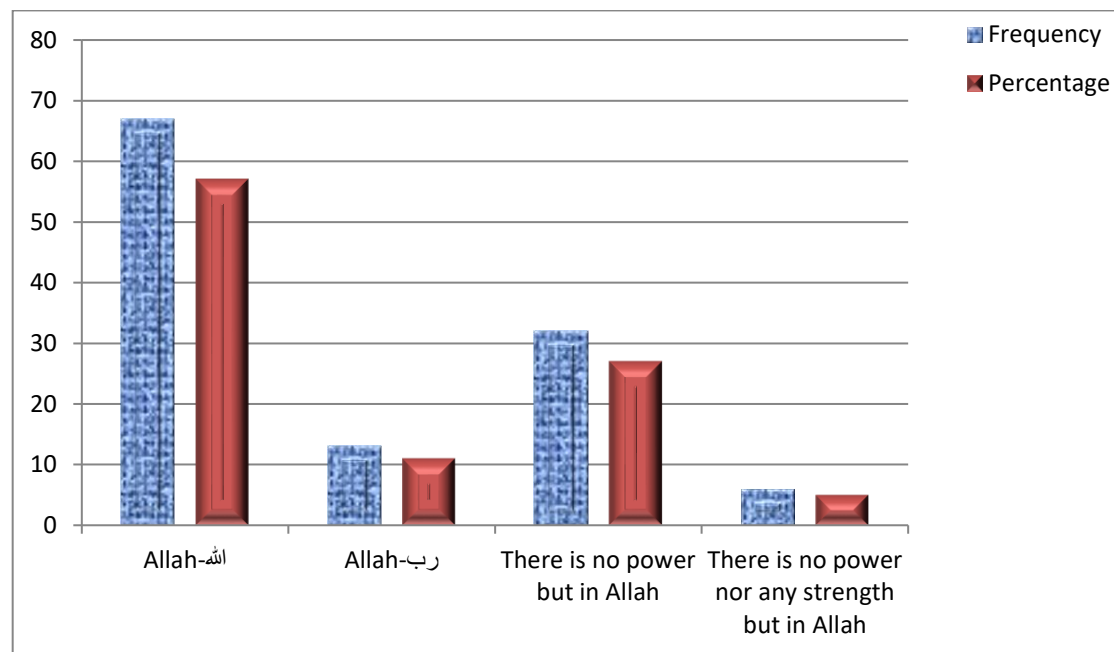
Similarly to the vocabulary analysis done for UDHR, RH's vocabulary is analysed with respect to the experiential value of words, mainly through extracting the ideologically contested words and examining their ideological significance for the introduction of rights. Generally speaking, religion and especially Islam constitutes the ideology adopted in the text under study here, namely, RH. This has been indicated through references to Allah, references to Islamic rituals, mentions to the Quranic ayahs, and citations of the Prophet Mohammed's (p.b.u.h.) traditions.

4.2.1.1.1 References to Allah (Glorified and Exalted be He)

Allah has been mentioned repeatedly in RH either alone or within expressions as those mentioned in table (10) and figure (12) as follows:

Table 10: Frequency of occurrence and percentage of references to Allah

No.	Allah references	Frequency	Percentage %
1.	الله - Allah	67	1.81 %
2.	رب - Allah *	13	0.35 %
3.	لا قوة الا بالله - there is no power but in Allah	32	0.86 %
4.	ولا حول ولا قوة الا بالله - there is no power nor any strength but in Allah	6	0.16 %
Total References to Allah		118	3.18 %
Total		3,704	100 %

**Figure (12)** Frequency of occurrence and percentage of references to Allah

(*) It is worth mentioning that (الله , رب) are both translated as God in RH but the researcher when referring to them uses (Allah).

Table (10) and figure (12) show that the expression Allah 'الله' and its derivations by Allah 'بالله' and for Allah 'لله', can be considered the most frequent all over the whole text. 'الله' has been used (67) times making (1.81 %) of the whole percentage as in the following examples:

1. فَطُوبَى لِمَنْ أَعَانَهُ اللَّهُ عَلَى قَضَاءِ مَا أُوجِبَ عَلَيْهِ مِنْ حُقُوقِهِ وَوَفَّقَهُ وَسَدَّدَهُ.

1. Therefore blessed be the one whom **God** helps fulfill the rights that He has made incumbent upon him and whom He grants success therein and guides him.

2. فَأَمَّا حَقُّ الصَّلَاةِ: فَأَنْ تَعْلَمَ أَنَّهَا وَفَادَةٌ إِلَى اللَّهِ، وَأَنْتَ قَائِمٌ بِهَا بَيْنَ يَدَيِ اللَّهِ

2. Then the right of your ritual prayer is that you should know that it is an arrival at the threshold of **God** and through it you are standing before **God**.

The next frequent expression is (لا قوة الا بالله) - there is no power but in God); it has been used (32) times making (0.86 %). It occurs at the end of most of the rights. Less frequent are expressions: (رب God) and its derivations, (ربك your Lord) and (ربه his Lord); and (لا حول ولا قوة الا بالله) (there is no power but in God) making (0.35 %) and (0.16 %) respectively. The following are examples of each: redundant

3. وَأَمَّا حَقُّ الْمُؤَذِّنِ: فَأَنْ تَعْلَمَ أَنَّهُ مُذَكِّرُكَ بِرَبِّكَ.

3. And the right of your caller to prayer is that you should know that he is the one reminding you of **your Lord**.

4. وَتُعَاشِرُهُ مُعَاشِرَةً كَرِيمَةً. وَلَا حَوْلَ وَلَا قُوَّةَ إِلَّا بِاللَّهِ.

4. And associate with him in an honourable manner. **And there is no power nor any strength but in God.**

If the percentage of the occurrences of Allah is counted in relation to the content words only, it would be (6.4 %). In fact, Allah has been referenced along the text for more than one aim. Sometimes He is referenced to assert that He is the source of rights, He has endowed

humans with them. Another aim is to focus on the fact that the fulfilment of these rights is highly linked to His help. Finally, in some instances, Al-Sajjad (p.b.u.h.) advises people to devote all their good deeds to Him and make His content their maximum goal.

4.2.1.1.2 References to Islamic Rituals

All of the rights of deeds, which constitute five out of fifty rights, represent the Islamic rituals. They include: praying, fasting, pilgrimage, charity, and offering. Inclusion of such rights enhances the religious ideology adopted in presenting rights. In addition to that, it reveals three distinctive features of RH. The first of which is that this text is not interested only in presenting rights; rather, rights of deeds which imply humans' duties. Second, RH does not stop at introducing human rights; rather, it proceeds in announcing other rights among which are rights of deeds. Third, they are humans not necessarily only Muslims who can be addressed here since in the preface Al-Sajjad (p.b.u.h.) after mentioning these five rights, he adds to them rights of deeds:

5. ثم جعل عز وجل لأفعالك عليك حقوقاً فجعل لصلاتك عليك حقاً ولصومك عليك حقاً ولحجك عليك حقاً ولصدقتك عليك حقاً ولهديك عليك حقاً ولأفعالك عليك حقاً.

5. Then the Mighty and the High established for your deeds rights incumbent upon you. Then He established for your ritual prayer a right incumbent upon you, and your fasting a rights incumbent upon you, and your pilgrimage a right incumbent upon you, and your charity a right incumbent upon you, and your offering a right incumbent upon you, and your deeds a right incumbent upon you.

4.2.1.1.3 References to Quranic Ayahs

Along the text, in some cases the Glorious Quran is cited explicitly, through using specific ayahs, or implicitly, through deriving its meanings or some Qur'anic expressions. Explicit citations are like the one mentioned in the right of him who wrongs you:

6. "لَمَنِ انْتَصَرَ بَعْدَ ظُلْمِهِ فَأُولَئِكَ مَا عَلَيْهِمْ مِّن سَبِيلٍ (41) إِنَّمَا السَّبِيلُ عَلَى الَّذِينَ يَظْلِمُونَ النَّاسَ وَيَبْغُونَ فِي الْأَرْضِ بِغَيْرِ الْحَقِّ أُولَئِكَ لَهُمْ عَذَابٌ أَلِيمٌ (42) وَلَمَن صَبَرَ وَغَفَرَ إِنَّ ذَلِكَ لَمِنْ عَزْمِ الْأُمُورِ (43)".

6. "But indeed if any do help and defend themselves after a wrong [done] to them, against such there is no cause of blame (41) The blame is only against those who oppress men and wrong-doing and insolently transgress beyond bounds through the land, defying right and justice: for such there will be a penalty grievous (42) But indeed if any show patience and forgive, that would truly be an exercise of courageous will and resolution in the conduct of affairs(43)." [The Glorious Quran Shura 42: 41-43]

An instance of the implicit reference to Quranic ayahs is in the right of the mother which represents an instance of intertextuality (cf. 4222). Such references entail Al-Sajjad's (p.b.u.h.) reliance on Quran in conveying his ideas and supporting them. Furthermore, they add to the religious ideology followed in this text.

4.2.1.1.4 Citations of the Prophet Mohammed's Traditions

Similar to the purpose of citing Quranic ayahs, there are some occasions in which Al-Sajjad (p.b.u.h.) uses Prophet Mohammed's traditions. These instances are like those used in the right of fast and of creditor which are going to be mentioned respectively:

7. وهكذا جاء في الحديث " الصوم جُنَّةٌ من النار".

7. This meaning is asserted in the tradition: "fasting is an armor against the fire."

8. فَأَنَّ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَآلِهِ وَسَلَّمَ – قَالَ – "مَطْلُ الْغَنِيِّ ظُلْمٌ".

8. The Prophet, may God's peace be upon him and his household, said: "procrastination is oppression for the rich."

4.2.1.2 Grammar

This level of analysis embraces two parts; the first part is concerned with transitivity whereas the second one is concerned with modality.

4.2.1.2.1 Transitivity

The clauses, along the whole text under study, in which 'man' or the addressee serves as a participant, whether directly or indirectly involved, are investigated to find out the major role 'man' occupies. The results of this investigation are handled in table (11) and figure (13) below:

Table 11: Transitivity analysis of RH

No.	Process types		Participants		Frequency	Percentage %
1.	Material		Directly involved	Actor Goal	108 20	45.96 % 8.51 %
			Obliquely involved	Recipient Client	4 1	1.7 % 0.43 %
2.	Mental		Directly involved	Senser	51	21.7 %
3.	Verbal		Directly involved	Sayer	22	9.36 %
4.	Relational	Attributive	Directly involved	Carrier	16	6.8 %
			Obliquely involved	Attributor	4	1.7 %
		Identifying	Directly involved	Token	6	2.55 %
			Obliquely involved	Assigner	2	0.85 %
5.	Existential		Directly involved	Existent	1	0.43 %
Total					235	100 %

(After Halliday and Matthiessen (2014))

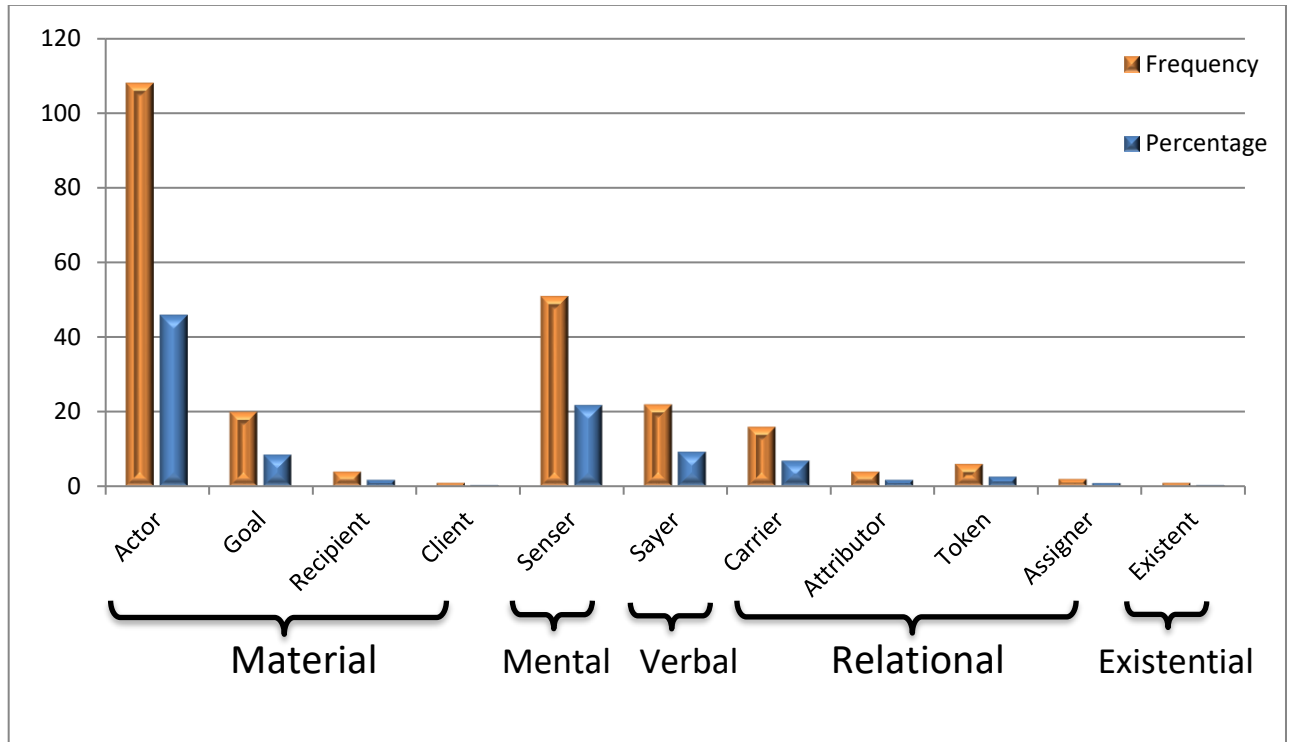


Figure (13) Frequency and percentage of process types and participants in RH

Table (11) and figure (13) show that the roles occupied by 'man' throughout the text are (235). These roles are distributed among the major process types that are: material, mental, and relational in addition to two of the minor types: verbal and existential. The prevailing role has been that of an 'Actor', a direct participant in material processes, which constitutes (108) out of (235) making (45.96 %). This highlights the importance of 'man' and his doing in the preservation as well as fulfilment of the rights mentioned in RH. The following are two instances in which man serves as an actor:

10. وَأَمَّا حَقُّ الشَّرِيكِ: فَإِنْ غَابَ كَفَيْتَهُ.

10. And the right of the partner is that you should take care of his affairs in his absence.

11. وَأَمَّا حَقُّ الْمَالِ: فَإِنْ لَا تَأْخُذْهُ إِلَّا مِنْ حِلِّهِ.

11. And the right of your property is that you should not attain it except by legitimate means.

The role of a 'Senser', a direct participant in mental process, which occurs (51) times making (21.7 %). In mental processes, there are four types: perception, cognition, desideration, and emotion all of which are used. The most dominating one is cognition mainly through the use of the verb 'تعلم', 'know' because Al-Sajjad (p.b.u.h) regards man's acquaintance of these rights as the first step in their maintenance. That's why this verb begins fifteen of the rights as in the following example:

12. فَحَقُّ أُمِّكَ: فَإِنَّ تَعْلَمَ أَنَّهَا حَمَلَتْكَ حَيْثُ لَا يَحْمِلُ أَحَدٌ أَحَدًا.

12. Then the right of your mother is that you should **know** that she carried you where no one carries anyone.

The third and fourth frequent roles are: 'Sayer' and 'Goal' which are used (22) and (20) times making (9.36 %) and (8.51 %) respectively. The use of the role of 'Sayer' is due to Al-Sajjad's (p.b.u.h.) focus on the man's showing gratitude towards Allah and others since one of the benefits of that is the continuity of kindness. Therefore, (13) out of these (22) are verbs of thanking: (تشكر, تحمد) as, for example, that in the right of adviser:

13. فَإِذَا وَاظَفَكَ حَمِدْتَ اللَّهَ.

13. And if it was appropriate for you, you should **thank** God for it.

Example of another verb of saying is like the one in the right of counselee:

14. وَتُكَلِّمُهُ مِنَ الْكَلَامِ بِمَا يُطِيفُهُ عَقْلُهُ.

14. And you should talk with him with such gentle words that his intellect can understand.

Regarding the role of 'Goal', its frequency can be linked to the fact that in some of the rights 'man' has been the goal of the impact of others.

Focusing on the importance of actors in these cases, all of them are in the active voice, For example, the following two clauses in the material processes from the right of mother:

15. وأطعمتك من ثمرة قلبها ... وأنها وقتك بسمعها وبصرها ويدها ورجلها وشعرها وبشرها.

15. And she fed you with the fruit of her heart ... and she protected you with her hearing and sight, and her hands and legs, and her hair and skin.

These uses (i.e. of Sayer and Goal) although are not high frequent, yet they are so if compared with the other following cases. The less frequent roles are: Carrier making (6.8 %), Token making (2.55 %), Recipient making (1.7 %), Attributor making (1.7 %), Assigner making (0.85 %), Existential making (0.43 %), and Client making (0.43 %) frequencies of occurrence.

According to the findings, 'man' occupies the role of a direct participant in (224) times making (95.32 %) out of the total number of participations which is (235) since there are only (11) indirect participations making (4.68 %).

4.2.1.2.2 Modality

For analysing modality in RH, Khalil's (1999: 215-229) model is followed, as pointed out in Chapter three. While modal meanings are realised by distinct modal verbs in English, in Arabic, they are realised by lexical verbs like, (can) يقدر ; phrases like, (should) من الواجب; and particles like, (may) قد (Khalil, ibid.). Table (12) and figure (14) show the findings of modality analysis along the whole text of RH.

Table 12: Modality analysis of RH

No.	Meanings of modals	Modals	Frequency		Percentage %	
1.	Possibility (ability)	(can) يقدر	3	4	27.3%	36.4%
		(could) ان امكن	1		9.1%	
2.	Necessity	(must) لابد	1		9 %	
3.	Obligation	(must) يلزم	4	6	36.4 %	54.6 %
		(should) يجب	2		18.2 %	
Total			11		100 %	

(After Khalil (1999))

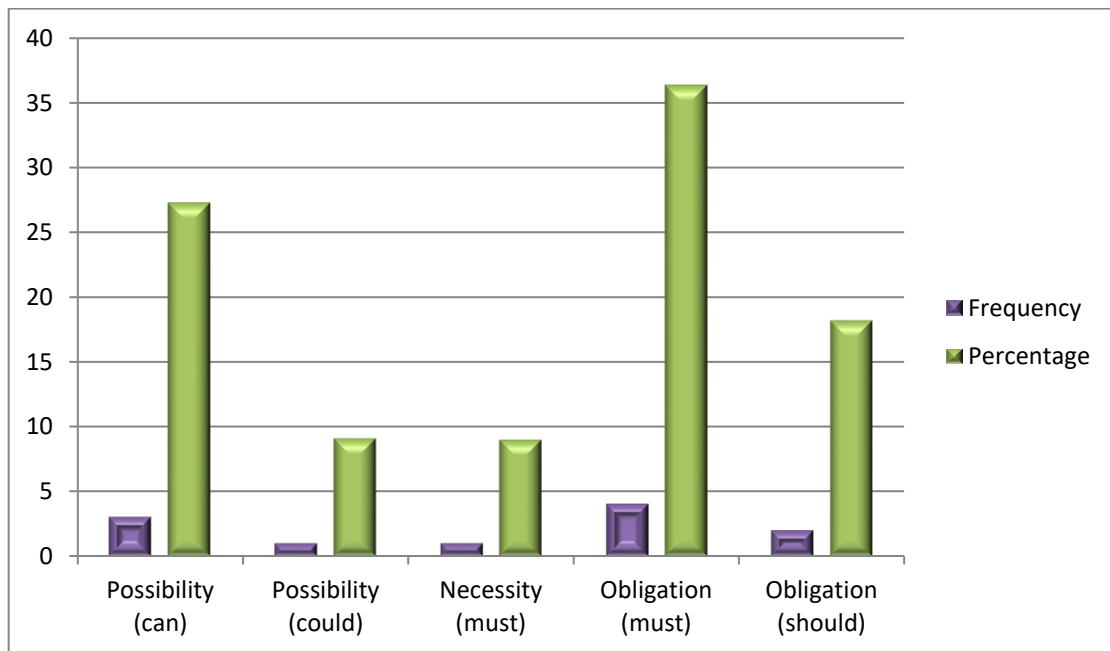
**Figure (14)** Frequency and percentage of modal meanings in RH

Table (12) and figure (14) indicate that modality has been used (11) times in RH. These uses are distributed among only three modal meanings, namely, **possibility**, **necessity**, and **obligation**. The most frequent of them is **obligation** which is used (6) times making (54.6 %) frequency of occurrence. This meaning is conveyed through the use of two lexical verbs: (must) يلزم and (should) يجب. The domination of this meaning designates the authority of Al-Sajjad (p.b.u.h.) through which he transfers

his speech and the importance of the points emphasised through the use of such meanings. It has occurred in the right of: teacher, owner, wife, companion, and in the concluding remark. The following are examples from the right of teacher and the concluding remark, respectively:

16. فَلَزِمَكَ حُسْنُ التَّأْدِيَةِ عَنْهُ الْيَوْمَ.

16. Therefore, **it is binding** upon you to render on his behalf properly.

17. يَجِبُ عَلَيْكَ رِعَايَتُهَا وَالْعَمَلُ فِي تَأْدِيَتِهَا

17. **It is incumbent** upon you to honour them and exert all efforts to fulfil them.

Possibility or ability meaning is the second in frequency which has been used (4) times making (36.4 %) frequency of occurrence. (can-يقدر), (could-ان امكن) are the expressions used for performing this meaning as in the following examples from the right of who deals with you kindly and of the mother, respectively:

18. ثُمَّ إِنْ أُمِنَ مَكَافَأَتُهُ بِالْفِعْلِ كَأَفَاتِهِ

18. Then if you are **able** to practically recompense him, do recompense him.

19. فَتَشْكُرْهَا عَلَى قَدَرِ ذَلِكَ وَلَا تَقْدُرْ عَلَيْهِ إِلَّا بِعَوْنِ اللَّهِ وَتَوْفِيقِهِ.

19. Then you should thank her for all that. You will **not be able** to show her gratitude unless through God's help and His granting you success.

In the latter example, the possibility meaning is negated by the use of (not) لا which implies the **impossibility** or the **inability** to thank the mother with regard to her enormous sacrifice and value as denoted by Al-Sajjad in this right.

The last and less frequent meaning of modality used here is **volition** or **necessity**. It is presented through the use of the expression (must) لا بد in the right of the wife:

20. وَمَوْضِعُ السُّكُونِ إِلَيْهَا قَضَاءُ اللَّذَّةِ الَّتِي لَا بُدَّ مِنْ قَضَائِهَا

20. You should care for her through consummation of the lust that **must** be consummated.

The previous example indicates the end of this section, modality. The following is the last dimension of analysis of RH with respect to description stage.

4.2.1.3 Textual Structure

As mentioned in the description of RH in section 2.2.4, this text includes three main parts. It is prefaced by a preliminary statement that sets forth the purpose and scope of this treatise. The rights are indexed in the preface, first; then, they are detailed one by one under seven groups of rights: right of Allah, self, deeds, leaders, subjects, womb, and of others. Finally, the number of these rights that is fifty is pointed out in the concluding remark which represents the end of the treatise. Dividing it into these parts is purposeful since the number of rights is not small and for the sake of simplifying the matter for the reader, they are summed up at the beginning. Another reason for the preface could be to make the reader aware of what is supposed to come after. For the conclusion, it is possible to be set, in addition to showing the exact number of these rights, for the sake of emphasising what is mentioned at the early beginning that is the necessity of these rights and the fact that they surround man. This point is clearly found in the beginning and end of the treatise as in the following examples:

21. إِغْلَمْ رَحِمَكَ اللَّهُ أَنَّ اللَّهَ عَلَيْكَ حُقُوقًا مُحِيطَةً بِكَ فِي كُلِّ حَرَكَةٍ تَحْرُكُهَا، أَوْ سَكَنَةٍ سَكَنْتَهَا أَوْ مَنَزَلَةٍ نَزَلَتْهَا، أَوْ جَارِحَةٍ قَلَبَتْهَا وَآلَةٍ تَصَرَّفَتْ بِهَا.

21. Know – God have mercy upon you – that God has rights incumbent upon you and that these encompass you in every motion through which you move, every rest which you take, every way station in which you reside, every limb which you employ, and every instrument which you use.

22. فَهَذِهِ خَمْسُونَ حَقًّا مُحِيطًا بِكَ لَا تَخْرُجُ مِنْهَا فِي حَالٍ مِنَ الْأَحْوَالِ، يَجِبُ عَلَيْكَ رِعَايَتُهَا وَالْعَمَلُ فِي تَأْدِيتِهَا وَالِاسْتِعَانَةُ بِاللَّهِ جَلَّ تَنَازُلُهُ عَلَى ذَلِكَ.

22. These were the fifty rights that surround you and you cannot evade under any circumstance. It is incumbent upon you to honour them and exert all efforts to fulfil them. You should seek God the Majestic's help in this respect.

After completing the description analysis of UDHR and RH, a contrast between these two texts is made in relation to this stage in order to see to what extent they assimilate each other and to what extent they depart.

4.2.2 Interpretation Stage of RH

After dealing with the linguistic features of the texts, it is time to analyse them with respect to the second stage in the procedure of analysis, interpretation. The analysis is carried out through investigating four components that are: situational context, intertextuality, SAs, and schemata.

4.2.2.1 Situational Context

Similar to the analysis of the situational context of UDHR, the situational context of RH can be analysed by means of the following four questions:

4.2.2.1.1 What's going on?

The activity type to which RH belongs is that of 'constitutions'. It is so since it ingathers moral, social, political, and many other matters that govern man's life (cf. 4.3.2.1). Concerning the topics which are constituted in these activities, they are variant and they include mainly rights that are incumbent upon humans. They can be abbreviated to seven groups: rights of God, the self, deeds, leaders, subjects, kin relatives, and rights of others (cf. tables 14 and 15). The purpose of presenting these rights is grasping man's attention for his rights and duties and can serve as a call for their preservation.

4.2.2.1.2 Who's involved?

The social identities of the participants that govern this discourse are two. Imam Al-Sajjad (p.b.u.h.) is the one who resembles the addresser and the addressees who can be all human beings if the focus is put only upon the idea of rights or those who are supposed to be Muslims if emphasis is put upon the instances of the citations of Islamic religion.

4.2.2.1.3 In what relations?

The social relations that dominate in the discourse are many with respect to the many purposes the text under study conveys. They can represent, for example, relations between a principal religious leader and Muslims.

4.2.2.1.4 What's the role of language?

The role of language here is to be as a means for transmitting this valuable treatise over about fourteen century which includes the guidance for a good life.

4.2.2.2 Intertextuality

Two types of intertextuality that figure in TR: manifest and constitutive. Examples of manifest intertextuality are like referring to the Quranic ayahs explicitly and implicitly. An explicit case is found in the right of him who wrongs you:

23. "وَإِنْ عَاقَبْتُمْ فَعَاقِبُوا بِمِثْلِ مَا عُوقِبْتُمْ بِهِ وَلَئِنْ صَبَرْتُمْ لَهُوَ خَيْرٌ لِلصَّابِرِينَ (126)"

23. "And if ye do catch them out, catch them out no worse than they catch you out: But if ye show patience, that is indeed the best [course] for those who are patient (162)" [The Glorious Quran, Nahl 16: 126].

An implicit instance is in the right of mother as follows:

35. فرضيت ان تشبع وتجوع هي وتكسوك وتعري وترويك وتظماً وتظلك وتضحى.

24. She did not care if she went hungry as long as you ate, and if she was naked as long as you were clothed, and if she was thirsty as long as you drank, and if she was in the sun as long as you in the shade

These meanings and expressions are actually found in the Glorious Quran:

"إِنَّ لَكَ أَلَّا تَجُوعَ فِيهَا وَلَا تَعْرَى (118) وَأَنَّكَ لَا تَظْمَأُ فِيهَا وَلَا تَضْحَى (119)"

"There is therein [enough provision] for thee not to go hungry nor to go Naked, (118) nor to suffer from thirst, nor from the sun's heat. (119)." [The Glorious Quran, Taha 20: 118-119]

It is clear that the previous example is based on a ayah in the Glorious Quran in which Allah describes Heaven for Adam in surat Taha,

ayahs (118-119). By saying so, Al-Sajjad (p.b.u.h.) implies that the mother tries her best for making her son's life as good as Heaven.

Another example of manifest intertextuality is when mentioning traditions of Prophet Mohammed like that in the right of non-Muslims in Islamic states:

24. فَإِنَّهُ بَلَّغَنَا أَنَّهُ قَالَ: " مَنْ ظَلَمَ مَعَاهِدًا كُنْتُ خَصْمَهُ "

24. It is reported that he said: "I am the adversary of whoever oppresses one who has a treaty."

A further instance is when Al-Sajjad (p.b.u.h.) in the rights of counselee and adviser resorts to Imam Ali's (p.b.u.h.) saying:

"لَا ظَهِيرَ كَالْمُشَاوَرَةِ."

"There is no aid like consultation." (Peiravi and Morgan, 2002: 419)

The other type of intertextuality, that is the constitutive one, denotes the texts that share with the current one their overall structure and the way they appear in it. In fact, the form in which this text is put, that is starting with enumerating rights; then, stating them in detail; and finally, ending with the conclusion, has no similar preceding sample. Rather, this method has been later assigned to the school of Gestalt. *Gestalt* is a German word that indicates the way in which a thing has been "put together" or "placed". The usual translations of this term are "form" and "shape". It is frequently taken to mean, in psychology, "configuration" or "pattern" ("**Gestalt Psychology**" 2016: Para. 1). As such RH is based upon an educational and psychological approach that enables the receiver to know the exhaustive unity of the topic; then, he speculates the partial details one by one. Through applying the Gestalt School to the text, it is found out that this school accords with the patterning of RH.

4.2.2.3 Speech Acts

For analysing RH with respect to its macro and subsequent SAs, Searle's (1979) five groups of macro SAs and Van Dijk's (1977) eight subsequent SAs will be followed, similar to what is done with UDHR.

4.2.2.3.1 Macro Speech Acts

Four out of the five macro types of SAs show occurrences in RH. They include the following: First, **Assertive SA** in the right of the mother when Al-Sajjad (p.b.u.h.) reports the sacrifice she offers for her child.

25. حملتك حيث لا يحمل أحد أحداً وأطعمتك من ثمرة قلبها ما لا يطعم أحد أحداً ،
وأنتها وقفتك بسمعها وبصرها ويدها ورجلها وشعرها وبشرها و جميع جوارحها
مستبشرةً بذلك.

25. she carried you where no one carries anyone, and she fed you with the fruit of her heart -that which no one feeds anyone, and she protected you with her hearing and sight, and her hands and legs, and her hair and skin and all her other organs. She was highly delighted to do so.

The FCs for such speech could be:

1. PCC

Al-Sajjad (p.b.u.h.) reports the treatment the mother offers for her child, including, carrying him, feeding him, protecting him, and others.

2. PC

- a. Al-Sajjad is so confident of the truth of this proposition.
- b. He predicates a future event, for it is best for the addressee to take heed of this assertion.
- c. He thinks that the addressee needs to be reminded of that treatment.

3. SC

He believes in this proposition.

4. EC

He expresses an actual state of affairs.

Second, Al-Sajjad (p.b.u.h.) expresses his gratitude once towards Allah at the end of the text in an **Expressive SA** of thanking by saying:

26. والحمد لله رب العالمين.

26. And all praise is due to God the Lord of the Two Worlds.

For thanking SA, the following FCs according to Searle (1969: 67) are applicable:

1. PCC

At the end of the text, Al-Sajjad (p.b.u.h.) expresses thanks Allah (Glorified and Exalted be He) for His endowing his creatures with these rights.

2. PC

The endowment of rights benefits Al-Sajjad (p.b.u.h.) and he believes that it benefits him.

3. SC

Al-Sajjad (p.b.u.h.) feels grateful for this endowment.

4. EC

The proposition counts as an expression of gratitude.

Third, four **directive** SAs are used, namely, command, prohibition, advice, and warning. **Command** has occurred in the right of the people of your creed:

27. وانصرهم جميعا بنصرتك.

27. And back all of them up with your support.

The FCs for this speech are as follows:

1. PCC

Al-Sajjad (p.b.u.h.) predicates that the addressee should help all people of his creed by supporting them.

2. PC

a. The addressee is able to act as such and Al-Sajjad (p.b.u.h.) believes that he is able to do so.

b. It is not obvious to both Al-Sajjad (p.b.u.h.) and the addressee that the addressee will do that act.

d. Al-Sajjad (p.b.u.h.) is in a position of authority over the addressee.

3. SC

Al-Sajjad (p.b.u.h.) want the addressee to help all people of his creed by supporting them.

4. EC

The utterance of Al-Sajjad (p.b.u.h.) counts as an attempt to get the addressee to help all people of his creed.

Prohibition, being the opposite of command or the 'negative order', is used in many cases like in the right of the slave:

28. و لا تكلفه ما لا يطيق.

28. And do not burden him with what he cannot withstand.

Al-Sajjad (p.b.u.h.) in this example is prohibiting treating the slave badly. The FCs for this speech could be:

1. PCC

Al-Sajjad (p.b.u.h.) predicates that the addressee should not burden the slave with what he cannot withstand.

2. PC

a. The addressee is able to avoid burdening the slave with what he cannot with stand Al-Sajjad (p.b.u.h.) believe that he is able to avoid doing so.

- b. It is not obvious to both Al-Sajjad (p.b.u.h.) and the addressee that the addressee will avoid mistreating the slave.
- c. Al-Sajjad (p.b.u.h.) is in a position of authority over the addressee.

3. SC

Al-Sajjad (p.b.u.h.) wants the addressee to leave mistreating the slave.

4. EC

The utterance of Al-Sajjad (p.b.u.h.) counts as an attempt to get the addressee not burden the slave with what he cannot withstand.

Advice is the other kind of directives which is used heavily in the text due to its importance and the impact it leaves in the addressees since being said by such a magnificent figure like Al-Sajjad (p.b.u.h.). An example is that which is found in the right of the claimed adversary:

29. ولم تتشأغل عن حجَّتكَ بمنازعتَه بالقليل والقال، فتذهب عنك حجَّتُكَ.

29. And you should not dispute with him over gossip lest your proofs will be voided and you will lose the opportunity to prove them.

The FCs for advice are as follows:

1. PCC

Al-Sajjad (p.b.u.h.) expresses the proposition that disputing the adversary should be avoided as it leads to the addressee's losing his proofs.

2. PC

- a. Al-Sajjad (p.b.u.h.) believes that the avoidance of disputing the adversary will benefit the addressee.
- b. If the addressee if has a confidence in Al-Sajjad (p.b.u.h.), he will listen to this piece of advice and comply with it.

3. SC

Al-Sajjad (p.b.u.h.) believes that in listening to his advice, the addressee will gain great benefits.

4. EC

The utterance counts as an undertaking to the effect that this advice is in the addressee's best interest.

The last type of directive SAs is that of **warning** which is used in the right of the hand:

30. وَأَمَّا حَقُّ يَدِكَ : فَأَنْ لَا تَبْسُطَهَا إِلَى مَا لَا يَحِلُّ لَكَ، فَتَنَالُ بِمَا تَبْسُطُهَا إِلَيْهِ مِنَ اللَّهِ الْعُقُوبَةَ فِي الْأَجْلِ.

30. And the right of your hand is that you stretch it not toward that which is unlawful to you. Should you do so, you will be chastised by God in the future.

Success in issuing the SA of warning requires meeting Searle's (1969:63) FCs:

1. PCC

- a. Al-Sajjad (p.b.u.h.) expresses the proposition of warning the addressee from stealing since he will be chastised by Allah later.
- b. Al-Sajjad (p.b.u.h.) predicates a future event that the addressee might face.

2. PC

- a. The addresser is Al-Sajjad (p.b.u.h.).
- b. The addressee has a confidant in Al-Sajjad (p.b.u.h.).
- c. Al-Sajjad (p.b.u.h.) knows the addressee is able to adhere to this warning and that he is a mentally capable person.

3. SC

- a. Al-Sajjad (p.b.u.h.) wants the addressee to adhere to this warning.

- b. the addressee has interest to perform the act and listen to this warning.

4. EC

- a. The act is not in the addressee's best interest.
- b. Al-Sajjad (p.b.u.h.) believes that disregarding this warning is going to cause harm to the addressee.
- c. Al-Sajjad (p.b.u.h.) intends to make the addressee recognise that negligence is bad for him.

Al-Sajjad (p.b.u.h.), in presenting rights, has concentrated on edifying man about what to do and what to avoid for the sake of guaranteeing his preservation of these rights. As such, this justifies the direct and enormous use of directives.

To conclude, it is clear now that out of the five macro SAs, three types have been used in this text, namely, declaration, assertive, expressive, and directive. In addition, these uses alternate between direct and indirect instances serving the purpose of the treatise that is declaring the rights which are incumbent upon man and instructing him by showing the recommended way of well-behaving.

4.2.2.3.2 Subsequent Speech Acts

In addition to the macro SAs, Al-Sajjad (p.b.u.h.) has tended to use some subsequent SAs whose presence serves a role in the subordination of the macro SAs. The functions these subsequent SAs represent vary and lead to their different nominations. The first subsequent SA is of **explanation** which has been used in the right of:

34. وَأَمَّا حَقٌّ سَائِسُكَ بِالْعِلْمِ: فَالْتَعْظِيمَ لَهُ، وَالتَّوْقِيرَ لِمَجْلِسِهِ، وَحَسْنَ الْإِسْتِمَاعِ إِلَيْهِ، وَالْإِقْبَالَ عَلَيْهِ بَأَنْ تَفَرِّغَ لَهُ عَقْلَكَ، وَتَحْضِرْهُ فَهْمَكَ، وَتَرْكِي لَهُ قَلْبَكَ، وَتَجْلِي لَهُ بَصْرَكَ.

34. And the right of the one who trains you through knowledge is glorifying him, and respecting his meetings, and listening well to him, and being responsive to him . . . by freeing your mind for him, and presenting your understanding to him, and purifying your heart for him, and fixing your eyes on him.

Second, **justification** subsequent SA is used in the right of the claiming adversary:

35. وَأَلْقَيْتَ حَشْوَ الْكَلَامِ وَلُعْطَهُ الَّذِي لَا يَرُدُّ عَنْكَ عَادِيَةٌ عَدُوٌّكَ بَلْ تَبُوءُ بِإِثْمِهِ وَبِهِ يَشْحَذُ عَلَيْكَ سَيْفٌ عِدَاوَتِهِ لِأَنَّ لَفْظَةَ السُّوءِ تَبْعَثُ الشَّرَّ.

35. Avoid using indecent words and yelling at him since this will not eliminate the animosity of your enemy but **it will result in your suffering from the sin he commits against you.**

Third, **condition** subsequent SA is used in the right of adviser:

36. فَإِذَا وَافَقَكَ حَمَدَتِ اللَّهِ.

36. And if it was appropriate for you, you should thank God for it.

Finally, **addition** subsequent SA is used in the right of the associate:

37. وَأَمَّا حَقُّ الْخَلِيطِ: فَإِنْ لَا تَغُرَّهُ وَلَا تَغْشَاهُ وَلَا تَكْذِبُهُ وَلَا تَغْفِلُهُ وَلَا تَخْذَعُهُ.

37. And the right of the associate is that you should not mislead, or cheat him, lie to him or fool him, and you should not trick him.

Uses of these SAs indicate that RH is made up of a series of SAs that supports each one the other to reach to this interconnected text.

4.2.2.4 Schema of RH

The schema of RH is shown in the following tables which portrait the rights in RH in an abbreviated form:

Table 14: Classification of rights in RH in the source language.

تبيان لمدى رسالة الحقوق (سرد للخمسين حقاً)		مقدمة
حق 1	حق الله الاكبر	حقوق النفس
حق 2	حق النفس	
حق 3	حق اللسان	
حق 4	حق السمع	
حق 5	حق البصر	
حق 6	حق الرجل	
حق 7	حق اليد	
حق 8	حق البطن	
حق 9	حق الفرج	
حق 10	حق الصلاة	حقوق الافعال
حق 11	حق الصوم	
حق 12	حق الحج	
حق 13	حق الصدقة	
حق 14	حق الهدى	حقوق الانمة
حق 15	حق السائس بالسلطان	
حق 16	حق المعلم	
حق 17	حق السائس بالملك	حقوق الرعية
حق 18	حق الرعية بالسلطان	
حق 19	حق المتعلم	
حق 20	حق الرعية بملك النكاح	
حق 21	حق الرعية بملك اليمين	حقوق الرحم
حق 22	حق الام	
حق 23	حق الاب	
حق 24	حق الولد	
حق 25	حق الاخ	حقوق الاخرين
حق 26	حق المنعم	
حق 27	حق المولى	
حق 28	حق ذي المعروف	
حق 29	حق المؤذن	
حق 30	حق الامام في الصلاة	
حق 31	حق الجليس	
حق 32	حق الجار	
حق 33	حق الصاحب	
حق 34	حق الشريك	
حق 35	حق المال	
حق 36	حق الغريم	
حق 37	حق الخليط	
حق 38	حق الخصم: أ. المدعي عليك ب. المدعي عليه	
حق 39	حق المستشير	
حق 40	حق المشير	
حق 41	حق المستصح	
حق 42	حق الناصح	
حق 43	حق الكبير	
حق 44	حق الصغير	
حق 45	حق السائل	
حق 46	حق المسؤول	
حق 47	حق من سرك	
حق 48	حق من سائك	
حق 49	حق اهل الملة	
حق 50	حق اهل الذمة	
تبيان لعدد الحقوق المذكورة		الخاتمة

Table 15: Classification of rights in RH in the target language.

Preface	The scope of RH (i.e. the 50 rights enumerated)	
Right of God	Right 1	The greatest right of God
Rights of the Self	Right 2	Right of yourself
	Right 3	Right of your tongue
	Right 4	Right of your hearing
	Right 5	Right of your sight
	Right 6	Right of your legs
	Right 7	Right of your hands
	Right 8	Right of your stomach
	Right 9	Right of your private part
Rights of deeds	Right 10	Right of your prayer
	Right 11	Right of fasting
	Right 12	Right of the pilgrimage
	Right 13	Right of charity
	Right 14	Right of the offering
Rights of leaders	Right 15	Right of the possessor of authority
	Right 16	Right of the trainer through knowledge
	Right 17	Right of the trainer through ownership
Rights of subjects	Right 18	Right of subjects through authority
	Right 19	Right of subjects through knowledge
	Right 20	Right of the wife
	Right 21	Right of your slave
Rights of kin relations	Right 22	Right of your mother
	Right 23	Right of the father
	Right 24	Right of the child
	Right 25	Right of the brother
Rights of others	Right 26	Right of the master
	Right 27	Right of the freed slave
	Right 28	Right of him who treats you kindly
	Right 29	Right of the caller to prayer
	Right 30	Right of the ritual prayer leader
	Right 31	Right of your sitting companion
	Right 32	Right of the neighbour
	Right 33	Right of the companion
	Right 34	Right of the partner
	Right 35	Right of property
	Right 36	Right of the creditor
	Right 37	Right of the associate
	Right 38	Right of the adversary: a. Right of the claiming adversary b. Right of the claimed adversary
	Right 39	Right of him who seeks your advice
	Right 40	Right of him whose advice you seek
	Right 41	Right of him who seeks your counsel
	Right 42	Right of the counselor
	Right 43	Right of the older one
	Right 44	Right of the younger one
	Right 45	Right of him who begs from you
	Right 46	Right of him from whom you beg
	Right 47	Right of him by which God makes you happy
	Right 48	Right of him who wrongs you
	Right 49	Right of the people of your creed
	Right 50	Right of those under the protection of Islam
Conclusion	proclamation of the number of rights mentioned	

The schema in RH is to some extent similar to that of a narrative essay as it consists of three parts: introduction, or the preface; body, or the 50 rights; and conclusion. These three parts are intentionally put in this order since each has a purpose which it conveys in the position it occupies. RH, as mentioned in the textual structure of RH (cf. 4.2.2.3), is put in such a way that the whole text could be linked altogether. The large number of rights introduced in this text is treated through being indexed in the preface and their number being mentioned in the conclusion. As such, the preface represents the scope of the text, in which the major types of rights along with their subdivisions are included. Rights, generally speaking, are put orderly. They are classified vertically and horizontally. They are vertically arranged by starting from the supreme obligatory which is Allah's right to the least which is the right of non-Muslims in Islamic states. Horizontally, they are grouped in major types which are further classified into subtypes, as shown in tables (14 and 15). Even these subtypes of rights are ordered according to their uppermost type with respect to their incumbency. A prime example is what is stated in the preface:

38. وحقوق رَحِمَكْ كثيرة، متَّصلة بِقَدَرِ اتِّصالِ الرَّحْمِ فِي الْقَرَابَةِ فَأَوْجِبُهَا عَلَيْكَ حَقَّ أُمِّكَ، ثُمَّ حَقَّ أَبِيكَ، ثُمَّ حَقَّ وَلَدِكَ، ثُمَّ حَقَّ أَخِيكَ، ثُمَّ الْأَقْرَبُ فَالْأَقْرَبُ، وَالْأُولَى فَالْأُولَى.

38. And the rights of your relations of kin are multi-fold: they hold according to the degree of closeness of the relationship. Then the most incumbent one upon you is the right of your mother, then the right of your father, then the right of your child, then the right of your brother, then the next nearest, and then the next nearest, and the most worthy, and then the next most worthy.

It is clear that the rights are almost equally divided into these groups. In addition, everyone or thing with whom or which man gets in contact is included. This can justify the idea that RH can be considered as a constitution for all humans since no single corner of life is missed whether religious, social, political, moral, or even economic.

Rights in RH, in addition to being ordered purposefully, are linked to each other. In other words, they are duties that are incumbent upon man, as indicated in the beginning of the preface, that the preservation of each leads to the next or the fulfilment of each depends on the fulfilment of the preceding one. If one starts with the first and the supreme right, Allah's right, which is to obey Allah and consequently follow His guidance which requires fulfilling the duties set towards the different activities and organs of the person as they determine man's relationship to Allah. These activities or actions can only be accurate if man observes the rights of Allah's creatures as they form the context within which these actions occur.

Finally, it could be said that rights in RH are graded in a seriatim and set in a logical order starting from the most important and nearest to the less importance and distance. This, in fact, adds to its ideology or is ideologically significant.

4.2.3 Explanation Stage of RH

This stage has as an objective: the portrayal of any discourse as a fragment of a societal practice, as Fairclough (1989: 163) states, how discourse is shaped and shapes social structures, whether sustaining or changing them. As it is stated in section (3.1.3) previously, two analytical components are going to be considered, namely, ideology and power.

4.2.3.1 Ideology

Explaining RH requires much attention to be paid on the ideology that makes it. The ideology of RH is multidimensional. It could be observed though examining the rights chosen in this text since these choices reflect the ideology intended. Rights are ideologically presented through a number of dimensions some of which are: religious, political, moral, social, economic, or juristic. Generally, religious and moral attitudes or dimensions of RH, in addition to being associated to specific rights mentioned in it, are, in fact, overriding all over the text. In the matter of religious dimension, the fact that these rights are for Allah incumbent upon man is asserted in the preface, from the first sentence in the text, and being repeatedly emphasised by the use of expressions that affirms that man needs to seek God's assistance for the reservation of these rights. The following two examples show these two general indications of the religious attitude of RH.

39. أعلمَ رَحْمَكُ اللهُ انَّ اللهُ عَلَيْكَ حَقُوقاً مُحِيطَةً بِكَ فِي كُلِّ حَرَكَةٍ تَحْرُكُهَا، أَوْ سَكْنَةٍ سَكَنْتَها، أَوْ مَنْزِلَةٍ نَزَلْتَها، أَوْ جَارِحَةٍ قَلَبْتَها، أَوْ آلَةٍ تَصَرَّفْتَ بِها.

39. Know- God have mercy upon you- That God has rights incumbent upon you and that these encompass you in every motion through which you move, every rest which you take, every way station in which you reside, and every instrument which you use.

The above quotation uncovers the fact that these rights have exhaustive and unceasing nature since they are adhering to man. The clear idea that rights are endowed by Allah is connected to the fact that man could be seen as their giver and taker. Being the addressee in all of these rights, he represents the one responsible for preserving them.

40. وتستعين بالله على ذلك.

40. And you seek help from God in all that.

As to the moral dimension, rights are for the most of their part emphasising the right way of behaving while dealing with others. This attitude is applicable to all of the rights mentioned.

Before dealing with the dimensions of the ideology of RH, it is important to shed light on two points, both of which are concerned with the implication of the word 'rights' intended here. The first is that rights in this text are not limited to human rights; rather, they exceed them to include rights of God, body organs, deeds, and others. Second, rights are to be seen as human beings' duties towards their Creator, themselves, their deeds, and society or other people with whom they are in contact. Likewise, they are based on the idea that someone's right is someone's else duty so, as an example, when talking about the right of the teacher, it is the learner who is addressed and vice versa. This applies to the whole text.

4.2.3.1.1 Religious Dimension of RH

The religious dimension of the RH is clear and is realised in many instances. The first and most important realisation is when highlighting the fact that Allah (Glorified and Exalted Be He) is the centre of these rights since the Imam has restricted all the rights to the divine legislation as is mentioned in example (38) above as well as when saying:

41. ما اوجبه لنفسه تبارك وتعالى

41. What he has made incumbent upon you for Himself - the Blessed and Exalted –

42. ثم جعل عزَّ وجل لأفعالك عليك حقوقاً.

42. Then the Mighty and the high established for your deeds rights incumbent upon you.

The religion represented in this text, through referring to Allah and some religious deeds and ethics, is another realisation. Allah is referenced almost at the end of each right to indicate that the fulfilment of these rights requires Allah's assistance. This is manifested through the use of expressions as:

43. ولا قوة الا بالله.

43. And there is no power but in God.

The latter is mentioned at the end of twenty-nine rights while other derivations like (لا حول ولا قوة الا بالله) - there is no power but in God) is used seven times. In addition to those, there are some other instances (cf. table 5) for more expressions.

Some of the Islamic rituals referred to here are: prayer, fasting, pilgrimage, charity, and offering. These deeds are not the only ones denoted by Imam Al-Sajjad (p.b.u.h.). As it is stated in the preface, these constitute just part of human's deeds and he says after enumerating them:

29. ثم جعل (Y) لأفعالك عليك حقوقاً: فجعل لصلاتك عليك حقاً، ولصومك عليك حقاً، ولحجك عليك حقاً، ولصدقتك عليك حقاً، ولهدْيِك عليك حقاً، ولأفعالك عليك حقاً.

44. Then the Almighty and the High established for your deeds rights incumbent upon you. Then He established for your ritual prayer a right incumbent upon you, and your fasting a right incumbent upon you, and your pilgrimage a rights incumbent upon you, and your charity a right incumbent

upon you, and your offering a right incumbent upon you, and your deeds a right incumbent upon you.

These deeds are given rights and stressed in this text since five out of fifty rights are dedicated to them in addition to the generalization of all other deeds. As it is stated earlier, Allah is the source of legislation. Deriving all the rights mentioned from The Glorious Quran or Prophet Mohammed's traditions (cf. 4.2.2.1 for examples of this type), Al-Imam mentions these religious rituals which are asserted earlier by Allah in the Glorious Quran as obligations:

فَإِذَا قُضِيَتْ الصَّلَاةُ فَادْكُرُوا اللَّهَ قِيَامًا وَقُعُودًا وَعَلَىٰ جُنُوبِكُمْ فَإِذَا اطْمَأْنَنْتُمْ فَأَقِيمُوا الصَّلَاةَ إِنَّ الصَّلَاةَ كَانَتْ عَلَى الْمُؤْمِنِينَ كِتَابًا مَّوْقُوتًا (103)

“When ye pass (congregational) prayers, celebrate God's praises, standing, sitting down, or lying down on your sides; but when ye are free from danger, set up regular prayers: for such **prayers** are enjoined on believers at stated times.”[The Glorious Quran Nisaa 4:103]

يَا أَيُّهَا الَّذِينَ آمَنُوا كُتِبَ عَلَيْكُمُ الصِّيَامُ كَمَا كُتِبَ عَلَى الَّذِينَ مِن قَبْلِكُمْ لَعَلَّكُمْ تَتَّقُونَ (183)

"O ye who believe! **Fasting** is prescribed to you as it was prescribed to those before you, that ye may [learn] self-restraint." [The Glorious Quran, Baqarah 2: 183]

"إِنَّ أَوَّلَ بَيْتٍ وُضِعَ لِلنَّاسِ لَلَّذِي بِبَكَّةَ مُبَارَكًا وَهُدًى لِّلْعَالَمِينَ (96) فِيهِ آيَاتٌ بَيِّنَاتٌ مَّقَامُ إِبْرَاهِيمَ وَمَن دَخَلَهُ كَانَ آمِنًا وَلِلَّهِ عَلَى النَّاسِ حِجُّ الْبَيْتِ مَنِ اسْتَطَاعَ إِلَيْهِ سَبِيلًا وَمَن كَفَرَ فَإِنَّ اللَّهَ غَنِيٌّ عَنِ الْعَالَمِينَ (97)"

“The first House (of worship) appointed for men was that at Bakka: Full of blessing and of guidance for all kinds of beings: In it are Signs Manifest; (for example), the Station of Abraham; whoever enters it attains

security; Pilgrimage thereto is a duty men owe to God, - those who can afford the journey; but if any deny faith, God stands not in need of any of His creatures.” [The Glorious Quran, Al-i-Imran 3:96-97]

القباانجي Al-Qabaanchi (2002: 245) considers fasting as an obligatory poverty that sharia enjoins upon Muslims to reach to an intrinsic equality among them, whether those who possess a million, those who possess a pence, or those who possess nothing. In other words, equality, although not explicitly mentioned by the Imam, is anticipated throughout some rights. Actually, Al Imam gives a special importance to fasting by considering it the veil that prevents the body parts from engaging in sins as it is mentioned in part of the fasting right:

30. وَأَمَّا حَقُّ الصَّوْمِ: فَإِنْ تَعَلَّمَ أَنَّهُ حِجَابٌ ضَرَبَهُ اللَّهُ عَلَى لِسَانِكَ وَسَمْعِكَ وَبَصَرِكَ وَفَرْجِكَ وَبَطْنِكَ لِيَسْتُرَكَ بِهِ مِنَ النَّارِ فَإِنْ تَرَكَتَ الصَّوْمَ خَرَقْتَ سِتْرَ اللَّهِ عَلَيْكَ.

45. And the right of fasting is that you should know it is a veil, which God has set up over your tongue, your hearing and your sight, your private parts and your stomach, to protect you from the Fire.

In addition, man is given good news of God's rewarding him in case he preserves these rights faithfully. As it is asserted in the right of God:

31. فَأَمَّا حَقُّ اللَّهِ الْاَكْبَرِ فَأَنَّكَ تَعْبُدُهُ لَا تَشْرِكُ بِهِ شَيْئًا, فَإِذَا فَعَلْتَ ذَلِكَ بِإِخْلَاصٍ جَعَلَ لَكَ عَلَى نَفْسِهِ أَنْ يَكْفِيكَ أَمْرَ الدُّنْيَا وَالْآخِرَةِ وَيَحْفَظَ لَكَ مَا تَحِبُّ مِنْهُمَا.

46. He has made it binding upon Himself to give you sufficiency in the affairs of this world and the next and to keep for you whatever of them that you like.

Another indication of the religious dimension of RH is Al Imam's embodiment of Quranic ayahs and Prophetic traditions. These instances have been either explicit or implicit. Explicit and implicit references of this type are examples of manifest and constitutive intertextuality which are dealt with earlier (cf. 4.3.2.2). The following example is from the right of the associate in which Al Imam refers to one of Prophet Mohammed's traditions in this respect:

47. "غبن المسترسل ربا"

32. Cheating the intimate ones is like usury.

4.2.3.1.2 Political Dimension

In a discussion with السعيد Al-Sa'eed (1997: 33), Al Sha'rawi defines politics as, an administration of life motility. In another instance, when replying to the view of separating religion from the country's politics, he says that they say: no politics in religion nor religion in politics. This speech is fallacious and untrue, and those who have done this want to make temporal authority for themselves that submits to their fancies in order to do what they like. As such, Al Imam should not be considered as a religious man only; rather, he, through the inerrancy (isma) that Allah has endowed to him, is authorised to lead people to their piety in this life and the hereafter. Consequently, policy is one of the responsibilities of Al Imam even though he had not obtained the administration charge.

In this text, Al Imam has not restricted himself to the religious side of rights or to his duty as a religious man since he has tackled rights from many other perspectives. One of these perspectives has been the political one. Being highly qualified as a religious leader, he has advised people,

through mentioning rights of the possessor of authority and of the subjects through authority, to the best way of treating the subjects by the possessors of authority and vice versa. Two examples from the right of monarch and the right of citizens will be discussed below to show how they are treated in this text:

33. وَأَنْ تُخْلِصَ لَهُ فِي النَّصِيحَةِ وَأَنْ لَا تُمَاجِكُهُ وَقَدْ بُسِطَتْ يَدُهُ عَلَيْكَ فَتَكُونَ سَبَبَ هَلَاكِ نَفْسِكَ وَهَلَاكِهِ. وَتَذَلُّ وَتَلَطَّفُ لِأَعْطَائِهِ مِنَ الرِّضَا مَا يَكْفِيهِ عَنْكَ وَلَا يَضُرُّ بَدِينَكَ.

48. And you should sincerely provide him with your advice.

And you should not quarrel with him while he has full dominance over you, for thereby you cause your own destruction and his, too. And you should be humble and courteous for his gifts to attain his satisfaction with you, so that he will not harm your religion.

34. فَأَمَّا حَقَّ رِعْيَتِكَ بِالسُّلْطَانِ: فَإِنْ تَعْلَمَ أَنَّكَ إِنَّمَا اسْتَرْعَيْتَهُمْ بِفَضْلِ قُوَّتِكَ عَلَيْهِمْ فَإِنَّهُ إِذَا أَحْلَمَ مَحَلَّ الرِّعْيَةِ لَكَ ضَعْفَهُمْ وَذَلَّهُمْ.

49. Then the right of your subjects through authority is that you should know that you have authority over them due to your power over them, and that they have been made your subjects through their weakness and humility.

These two rights are derived partially from Al-Ashter's Epistle or Imam Ali's letter to his ruler of Egypt. They are presented in a skilful balance even though they converse each other. The standards between the rights of leaders and subjects asserted here require from the leader not to humiliate his subjects who have pledged him allegiance to them nor that do the subjects exaggerate in disputing with their leader.

4.2.3.1.3 Moral Dimension

Rights of body organs are among the rights in which morality is clearly emphasised. Imam Al-Sajjad gives instructions about the best way of using body organs effectively through utilising them to the benefit of humans and as Allah, Prophet Mohammed, and Imams have commanded them. These rights are seven; one of them is the right of the tongue which will be discussed here. The tongue is presented as a mirror or an evidence of the presence of understanding. In addition, man is demanded to cease using it in a wrong way by speaking abusive speech and to avoid over-talking:

35. وإِعْفَاؤُهُ عَنِ الْفُضُولِ الشَّنْعَةِ الْقَلِيلَةِ الْفَائِدَةِ الَّتِي لَا يُؤْمَنُ ضَرَرُهَا مَعَ قِلَّةِ عَائِدَتِهَا.

50. And refrain from any meddling in which there is little to be gained; and there is no security from its harm that accompanies its small benefits.

This, in fact, could be regarded to be taken from the following Prophet Mohammed's tradition:

"طُوبَى لِمَنْ أَمْسَكَ الْفُضْلَ مِنْ لِسَانِهِ وَأَطْلَقَ الْفُضْلَ مِنْ مَالِهِ."

"Blessed be the one who restrains his tongue from excessive speech and gives his excess wealth in charity to the needy" (Peiravi and Morgan, 2002: 73).

The point that the wrong use of tongue could result in harms for others, which is mentioned in the preceding example, could be obtained from Imam Ali's (p.b.u.h.) saying:

"اللِّسَانُ سَبْعُ إِنْ خُلِيَ عَقَرٌ."

“The tongue is a beast that will cause an injury when unleashed” (Peiravi and Morgan, 2002: 70).

Morality is taught as well by the Imam in many instances, for example when he initiates man to pardon the faults of children. This can be seen as is one of the chief ethical issues to be regarded in teaching children since it is more effectual to tolerate others' faults and behave as if they have done no wrong. The speech of Al Imam in this respect is included in the right of the younger one:

36. وَالْعَفْوُ عَنْهُ وَالسِّتْرُ عَلَيْهِ وَالرَّفْقُ بِهِ وَالْمَعُونَةُ لَهُ وَالسِّتْرُ عَلَى جَرَائِرِ حَدَائِثِهِ فَإِنَّهُ سَبَبٌ
لِلتَّوْبَةِ.

51. Pardon him, and cover up his faults, be gentle with him and help him, cover up the guilts of his juvenility because this will make him repent.

The moral effects of Praying are also asserted as it helps in eliminating man's wicked behaviours. It can be taken as a means of morally purifying oneself by confining it (i.e. the self) from reprehensible deeds. That is why the Imam gives instruction for the right way of behaving during praying, when he says:

37. كُنْتَ خَلِيقاً أَنْ تَقُومَ فِيهَا مَقَامَ الْعَبْدِ، الذَّلِيلِ الرَّاغِبِ الرَّاهِبِ الْخَائِفِ الرَّاجِي الْمُسْكِنِ
الْمُتَضَرِّعِ الْمُعْظَمِ مَنْ قَامَ بَيْنَ يَدَيْهِ بِالسُّكُونِ وَالْإِطْرَاقِ وَخُشُوعِ الْأَطْرَافِ وَلَيْنِ الْجَنَاحِ
وَحَسَنِ الْمَنَاجَاةِ لَهُ فِي نَفْسِهِ وَالطَّلَبِ إِلَيْهِ فِي فَكَائِكَ رَقَبَتِكَ.

52. Then you will stand in the station of him who is lowly, vile, beseeching, trembling, hopeful, fearful, and abased. And you will magnify Him Who is before you through stillness, and bowing of the head,¹ and humbleness of the limbs, and yielding of the wing, and .by saying the best supplications to Him in

yourself and beseeching Him to release (from punishment) your neck.

This meaning can be gotten also from the following ayah:

"إِنَّ الصَّلَاةَ تَنْهَى عَنِ الْفَحْشَاءِ وَالْمُنْكَرِ"

"...For Prayer restrains from shameful and unjust deeds..." [The Glorious Qur'an, al- Nabaa 29:45]

In addition, in RH there is a group of rights which could be regarded as a clear insight of moral and social attitudes of RH. This group is that of the rights of relations of kin. Within this group, the mother, the father, the child, and the brother are mentioned in the preface and particularly and separately stated in the body. Also, a generalisation for other relatives is stated in the preface as an emphasis on the importance of the reserving of the rights of such a group of people to man. The first of these rights, mother's right, will be given some attention to focus on its representation in this text. 'Mother' is given an enormous consideration and she is evoked as a great sacrificer who offers her life to her children without waiting for any retribution. Her offer does not only restrict her physical rest; rather, it extends to her spirit as well. Al Imam gives a citation to her sacrifice when saying:

53. فرضيت أن تشبع وتطعمك وتجوع هي، وتكسوك وتعري، وترويك وتظماً، وتظلك وتضحى، وتنعيمك بيوسها، وتلدذك بالنوم بأرقها.

38. She did not care if she went hungry as long as you ate, and if she was naked as long as you were clothed, and if she was thirsty as long as you drank, and if she was in the sun as long as you were in the shade, and if she was miserable as long as you were happy, and if she was deprived of sleeping as long as you were resting.

Furthermore, sociability, well-behaving, good neighbourliness, patience, forgiveness, and many other attitudes have been highly stressed throughout the wide range of rights included to highlight the moral perspective of RH.

4.2.3.1.4 Juristic Dimension

The juristic dimension of RH is conveyed through introducing the right of adversary, whether that of the claimed or the claiming. Yet, it has no reference to the judge or the law. Rather, it is presented morally by instructing the claiming person on one hand and the claimed on the other to the right way of treating his opponent. In other words, this right is just like other rights in the text under study represent 'man's' duty towards others rather than the duty of the government or the court towards him.

The first thing that is stressed in both of these two rights, the claimed and the claiming adversary, is the trueness of the claim. The following examples illustrate this point:

39. وَأَمَّا حَقُّ الْخَصْمِ الْمَدَّعِي عَلَيْكَ: فَإِنْ كَانَ مَا يَدَّعِي عَلَيْكَ حَقًّا، لَمْ تَنْفُسْخْ فِي حُجَّتِهِ وَلَمْ تَعْمَلْ فِي إِبْطَالِ دَعْوَتِهِ.

54. And the right of the adversary who has a claim against you is that if his claim against you is true, you should not nullify his proof or abolish his claim.

40. وَأَمَّا حَقُّ الْخَصْمِ الْمَدَّعَى عَلَيْهِ: فَإِنْ كَانَ مَا تَدَّعِيهِ حَقًّا أُجْمِلْتَ فِي مَقَاوِلَتِهِ بِمَخْرَجِ الدَّعْوَى.

55. And the right of the adversary against whom you have a claim is that if your claim against him is true, you should use pleasant words while you are filing your claim,

After verifying the validity of the claim, it is demanded from the claimed not to deny this claim and the claiming should speak to him kindly.

On the other hand, even if the claim is proved to be vain, they are commanded to transact each other in a good manner. The claimed adversary's duty then is as follows:

56. وَإِنْ كَانَ مَا يَدَّعِيهِ بَاطِلًا رَفَقْتَ بِهِ وَرَوَّعْتَهُ وَنَاشَدْتَهُ بِدِينِهِ وَكَسَرْتَ حَدَّتَهُ عَنْكَ بِذِكْرِ اللَّهِ.

41. But if what he claims against you is false, treat him with gentleness and remind him to fear God, and implore him by his religion. And by reminding him of God, you should help reduce his fury against you.

4.2.3.1.5 Social Dimension

Al-Sajjad in RH has classified society into four parts, namely, leaders, subjects, womb relations, and others. If counted, these rights comprise (35) out of the whole which is (50) rights making (% 70). Even this number is not limited or indicative since in each of these parts there are some extensions. For example, in the preface, when mentioning the rights of relations of kin, Al-Imam says:

57. وَحَقُّو رَحِمَكَ كَثِيرَةً، مَتَّصِلَةٌ بِقَدَرِ اتِّصَالِ الرَّحْمِ فِي الْقَرَابَةِ فَأَوْجِبُهَا عَلَيْكَ حَقَّ أُمِّكَ، ثُمَّ حَقَّ أَبِيكَ، ثُمَّ حَقَّ وَلَدِكَ، ثُمَّ حَقَّ أَخِيكَ، ثُمَّ الْأَقْرَبُ فَالْأَقْرَبُ، وَالْأُولَى فَالْأُولَى.

57. And the rights of your relations of kin are multi-fold: they hold according to the degree of closeness of the relationship. Then the most incumbent one upon you is the right of your mother, then the right of your father, then the right of your child, then the right of your brother, then the next nearest, and then the next nearest, and the most worthy, and then the next most worthy.

The above example shows that RH has not limited the rights of relations of kin to those nearest people to man, his family members, including the mother, the father, the child, and the brother. Rather, it has added to them others who are outside the family but still related to him. They might include, the uncle, the aunt, the grandmother, the grandfather, the cousin, and so on. However, what is stressed here is the order of these rights. In other words, if the rights of mother, father, brother, and others have competed, the preceding one would be of the mother.

This indicates the clear emphasis on society, first, the orderly and integral procedure of introducing rights, second, and the clear and enormous focus on the mother's rights for being antecedent of all social rights.

From another perspective, Al-Imam (p.b.u.h.), when mentioning the rights of those people, wants to stress their roles since each one occupies a role that is undeniable. For example, when one reserves the rights of others, this is necessary in strengthening his relationship with them. In addition, he is supposed to be treated similarly by them which is needed for the continuation of life in a good state due to man's continuous contact with others. The right of the companion highlights this point. In which Al-Imam (p.b.u.h.) says:

58. وأما حقّ الصاحب: فإنّ تصحبه بالفضل ما وجدت إليه سبيلاً، وإلاّ فلا أقلّ من الإنصاف، وأنّ تكرمه كما يكرمك، وتحفظه كما يحفظك، ولا يسبقك فيما بينك وبينه الى مكرمة، فإنّ سبقك كافأته.

58. And the right of the companion is that you should act as his companion with nobility as much as you can, otherwise you should at least treat him with fairness. Honor him as he honors you, and guard him as he

guards you, and do not let him precede you in generosity. And if he precedes you, then recompense him.

The mutual relationship as mentioned in the example above requires from man to treat his companion with goodness and kindness and to respect him.

Furthermore, the social rights, as stated earlier, are not limited, for example, to the rights of family and of friends; rather, one of others rights is the right of slave. It is put side by side to the right of the wife as they are both belong to the rights of subjects one through matrimonial and the other is through ownership. The slave is presented in this right as a consignment to be protected.

59. ثُمَّ سَخَّرَهُ لَكَ وَائْتَمَّنَكَ عَلَيْهِ وَاسْتَوْدَعَكَ إِيَّاهُ لِتَحْفَظَهُ فِيهِ وَتَسِيرَ فِيهِ بِسِيرَتِهِ فَتَطْعَمَهُ مِمَّا تَأْكُلُ وَتَلْبِسَهُ مِمَّا تَلْبِسُ وَلَا تَكْلِفْهُ مَا لَا يُطِيقُ.

59. Then He subjugated him to you, entrusted him to you, and provisionally consigned him to you so that you may protect him there, and treat him as well as He has treated you. So feed him with what you eat yourself, and clothe him with what you clothe yourself. And do not burden him with what he cannot withstand.

In fact, from this part of the right of slave, one can better comprehend the depth of Al-Sajjad's (p.b.u.h.) words regarding the best way of treating slaves. In it he stress the idea of dealing with them as good as Allah treats His creatures. Also, to be fed with what their possessor eats and to be clothed with what he wears in order to sustain their equality and abandon every kind of discrimination between the slave and his master. This point

has been mentioned by Prophet Mohammed in one of his traditions when he says:

"الْبِسُوهُمْ مِمَّا تَلْبَسُونَ وَأَطْعِمُوهُمْ مِمَّا تَأْكُلُونَ."

"Clothe them with what you wear yourselves, and feed them with what you eat." (Peiravi and Morgan, 2002: 290)

4.2.3.1.6 Economic Dimension

RH is concerned with the economic dimension of life. In this respect, Al-Sajjad (p.b.u.h.) along the whole text presents a number of instances of the right direction of spending money as well as a number of wrong directions to be avoided. Among the good ways of spending it is mentioned in the right of the master:

60. فأن تعلم انه انفق فيك ماله, . . . فملكك نفسك, وحل اسرك, . . . واحتمل بذلك التقصير في ماله, . . . فلا تؤثر عليه نفسك ما احتاج اليك.

60. That you should know that he has spent his property for you . . . and has given you ownership of yourself . . . And he has suffered a decrease in his fortune. . . . Therefore, do not prefer yourself to him regarding any of his needs.

In the right of the creditor Al-Sajjad (p.b.u.h.) recounts what is mentioned in one of the quranic ayahs, namely, the following:

"وَإِنْ كَانَ ذُو عُسْرَةٍ فَنَظِرَةٌ إِلَىٰ مَيْسَرَةٍ وَأَنْ تَصَدَّقُوا خَيْرٌ لَّكُمْ إِنْ كُنْتُمْ تَعْلَمُونَ"

"If the debtor is in a difficulty, grant him time till it is easy for him to repay. But if ye remit it by way of charity, that is best for you if ye only knew." [The Glorious Qur'an, al-Baqarah 2:280]

Being not the right thing to do postponing the repayment of a debt, He instructs the following:

61. وَأَمَّا حَقُّ الْغَرِيمِ الطَّالِبِ لَكَ، فَإِنْ كُنْتَ مُوسِرًا أَوْفَيْتَهُ وَكَفَيْتَهُ وَأَغْنَيْتَهُ وَلَمْ تَرُدُّهُ وَتَمُطِّلُهُ . . . وَإِنْ كُنْتَ مُعْسِرًا أَرْضَيْتَهُ بِحُسْنِ الْقَوْلِ وَطَلَبْتَ إِلَيْهِ طَلَبًا جَمِيلًا . . . وَلَمْ تَجْمَعْ عَلَيْهِ ذَهَابَ مَالِهِ وَسُوءَ مُعَامَلَتِهِ فَإِنَّ ذَلِكَ لَوُمْ.

61. And the right of him to whom you owe is that you should pay him back if you have the means to do so. You should meet his need, make him rich, and avoid putting him off and procrastinating. But if you are in hardship, you should satisfy him by using good words. You should gently ask him . . . You should not take his property and mistreat him too. That is meanness.

On the other hand, there are cases in which man is warned from spending money haphazardly or from gaining it from a suspicious source. The following are some examples:

62. وَأَمَّا حَقُّ الْمَالِ، فَإِنْ لَا تَأْخُذْهُ إِلَّا مِنْ حِلِّهِ وَلَا تَنْفَقْهُ إِلَّا فِي حِلِّهِ، وَلَا تَحْرِفْهُ عَنْ مَوَاضِعِهِ، وَلَا تَصْرِفْهُ عَنْ حَقَائِقِهِ، وَلَا تَجْعَلْهُ إِذَا كَانَ مِنَ اللَّهِ إِلَّا إِلَيْهِ وَسَبِيلًا إِلَى اللَّهِ.

62. And the right of your property is that you should not attain it except by legitimate means and you should only spend it for legitimate causes. You should not spend it improperly, you should not use it wrongfully, and you should not use what is from God in ways other than in His way and make it as a means to approach God.

4.2.3.1.7 Individualism versus Collectivism

In Islam individuals are viewed in a total context that is through considering their relationship with Allah and His creatures. As such, individualism is devalued while groups of whole societies are given much

value. This does not mean to devalue the individual himself, on the contrary, he is considered as the first brick of society. Consequently, collectivism is asserted and called for in this text through presenting rights of others, generally, and specifically throughout including rights of: counselee, adviser, the one seeking your counsel, and the counsellor. Giving and accepting advices are concentrated upon by Al-Sajjad (p.b.u.h.) as they strengthen relations among people and due to the fallible nature of humans which needs to be remedied by such an action.

4.2.3.1.8 Rights versus Duties

Although this text carries the title "Risalat Al Huquq" or if translated "Treatise on Rights" yet it is built upon a collection of duties upon man. That is why the one addressed in each right is not the possessor of that right, rather, he is its giver. It is so because if observed, each right has two members, one is the possessor and another is the giver. Both of them are human, except in the case of the rights of Allah, the self, and deeds.

In addition, this relationship, the one between the possessors and givers of rights, is interchangeable. In other words, in one case the son is addressed as the giver or the preserver of his parents' rights whereas in another case they are considered as the preserver of his right. Similarly, the rights of leaders, for example, are the duties of subjects and vice versa and so on.

4.2.3.2. Power

Power in RH is tackled through examining the origin and the authority of that text.

4.2.3.2.1 Source or Origin

RH is based upon a divine origin. It is grounded on the idea that Allah (Glorified and Exalted be He) endows His creatures with rights so that He represents the source of any right humans have. That is why it is found that the more frequently used word has been 'God' (cf. table 10 and figure 12). Furthermore, it is taken from ayahs from the Glorious Quran and Prophet Muhammad's traditions which indicate its divine roots, as indicated in manifest intertextuality in section (4.2.2.2). RH is obtained from a divine law which is permanent and is characterised by continuity through all the ages.

4.2.3.2.2 Authority

Al-Sajjad (p.b.u.h.) claims a divine authority. When he speaks, he takes his power from what Allah has endowed him. Such an authority could be seen in the way he introduces rights as being for Allah incumbent upon humans. Actually, the wide spreading use of obligation meaning is another indication. Similarly, his employment of various representations of directive SAs signals the instructive quality of his speech.

4.3 Contrastive Analysis of UDHR and RH

In this part of the study, the findings of the analysis of the two texts are contrasted regarding the three stages of analysis by referring to the tables and figures when available.

4.3.1 Contrastive Analysis of Description Stage

After analysing the two texts with respect to the description stage, points of similarity and difference between them are highlighted. Concerning vocabulary, implying different ideologies, UDHR and RH focus on completely different if not opposite spheres of expressions. While UDHR concentrates on universal and liberal expressions as in tables (1) and (2), RH centres upon variant but mostly religious ones as in table (5).

In relation to grammar, these two texts present man differently through placing him as a participant of different in frequency process types. In UDHR, he, for half of his participation, occupies the role of a 'carrier' since the most highlighted fact in this text is the presentation of rights that he possesses or is supposed to possess. On the other hand, in RH, the most frequent role has been that of an 'actor' as his duties towards God, himself, his deeds, and others are much more emphasised than his own rights (see table (8), figure (10) and table (11), figure (13), respectively). The other grammatical feature, that is modality, shows some sense of similarity in having obligation meaning the prevailing one in both of the two texts. The meaning of **possibility** comes second in the frequency of occurrence in both texts. The third meaning is different between them since in UDHR permission is used whereas in RH necessity.

Finally, in their structure, they differ in some points. First, the number of major parts, in UDHR, they are two: a preamble and the body which includes (30) articles; however, in RH, they are three: a preface, the body which includes (50) rights, and a conclusion. Second, they differ in the content of the first part, while UDHR focuses mainly on the purposes for setting the declaration, RH focuses on the scope of the treatise. Third, they differ in the number and types of rights set. As it is clear, UDHR is made up of (30) articles while RH is made up of (50) rights. In addition, the articles in UDHR can be mainly grouped under four types: introductory articles; civil and political; social, cultural, and economic rights; and concluding articles. Conversely, in RH, rights are in origin grouped under seven headings: of God, of self, of deeds, of leaders, of subjects, of relations of kin, and of others. In spite of these differences, the third main part of RH can be seen as similar, in position as well as in purpose to the last concluding articles in UDHR.

4.3.2 Contrastive Analysis of Interpretation Stage

The interpretation stage of the two texts reveals that although they are concerned with one issue, namely, rights, they diverge in many points. One of their points of discrepancy is that they differ in their situational context. While in UDHR rights are restricted to humans, in RH only one part is human rights whereas others are rights of Allah, oneself and his organs, and rights of deeds. This divergence is due to their discrepant aims. UDHR aims at putting an end to the barbarous acts that have been dominating during the II World War that have derogated humans and their rights. On the other hand, Al-Sajjad (p.b.u.h.) has aimed, by composing RH, at establishing a virtual society that is set upon staid moral and educational rules and behaviours. In short, UDHR has a reactive or emotive aim while RH has an effective one.

The other texts that UDHR draws upon directly, indirectly, or even through adopting the way in which they are constituted, are all political or legal governmental documents and most of which are concerned with the issue of human rights. Contrariwise, RH incorporates references, direct as well as indirect, of the Glorious Quran, Prophet Mohammed's traditions, and Imam Ali as examples of its manifest intertextuality. It also has a psychological and educational basis similar to those allocated to the Gestalt theory. Concisely, UDHR and RH belong to two different series of texts.

The analysis of the SAs, according to the eclectic model adopted, in the two texts under study reveals that four types of SAs are used in UDHR: declarations, assertives, commissives, and directives while in RH only three which are: assertives, expressives, and directives. However, although they agree in the presence of two kinds of SAs, they differ in one point. This point is that directive SAs, for example, are represented differently in the two texts. RH figures the use of the directive SA of advice in addition to the three SAs that are: command, prohibition, and warning. As such, RH intends to administer the mind much more than UDHR as it gives a real freedom for man to choose his way after clarifying what is right and what is wrong. In other words, RH advises and forewarns simultaneously while UDHR restricts itself to warning. For subordinating the macro SAs, Al-Sajjad (p.b.u.h.) has used subsequent SAs of explanation, justification, condition, and addition whereas the UDHR has lacked any use of subsequent SAs.

Finally, the schemata of the two texts under study disclose the deviation between them in the form in which they appear. UDHR carries the form of other political or legal charters having a preamble and a list of

articles as its main parts. RH, on the other hand, has a form of essays containing introduction, body, and conclusion. Briefly, the articles in UDHR are 30 and can be classified into four groups while the rights in RH are 50 and themselves are classified into seven types, these and more information about such topic can be found in the text structure of both of these texts and the schemata analysis of both. The schema of UDHR does not show a sense of gradation in the rights presented while in RH rights are chronologically ordered starting from the more important to the less important.

4.3.3 Contrastive Analysis of Explanation Stage

The major objective of this stage has been the observation of the ideologies and power of UDHR as well as RH that have given each of the texts its current appearance. On the one hand, the ideology of UDHR is reached to throughout examining the movements and philosophies implied in it or conveyed through it. On the other hand, the ideology of RH is arrived to through investigating its attitude by the choices of rights included since they are specific. This variation in the analysis is due to the difference in treatment of these texts to the issue of rights. Further, the genre to which UDHR belongs can be limited to a political dimension while the genre and consequently the ideology is multidimensional in RH. As such, the contrast will be devoted to some general points found as a result to the third stage of analysis. These points vary between those of similarity and those of difference.

No points of similarity hold between UDHR and RH whereas the points of difference between them are many. They include, first, universality; second, the base or origin; third, ideological authority; fourth, rights or duties; and fifth, individualism or collectivism.

First, in case of **universality**, universality of the rights included and their owners as well as the purposes or the aims behind setting such texts, RH is more comprehensive. It is so since rights in UDHR has been restricted only to those for man upon others. Others, here, refer to governments or any institution or organization sets the protection and preservation of human rights as its major responsibility. Thus, what is called for in UDHR is only human rights. RH, in contrast, includes four groups of rights, namely, Allah's rights, self-rights (including body organs rights), deeds rights, and human rights. Therefore, UDHR declares the rights which are among human individuals and governments whereas RH declares a wider range of rights and rights owners. Concerning their aims, UDHR has aimed at limiting the barbarous acts which have resulted from the II World War so that has an impressionistic purpose while RH has been issued to meet a more wide and deep needs hence has an efficacious purpose.

Second, concerning the aspect of the **origin** of the texts, UDHR is derived from a positive law or is based upon positive principles whereas RH is emanating from a divine origin and is obtained from a divine law. In the one hand, the divine law is permanent and is characterised by continuity through all the ages. In the other hand, human's nature is changeable due to the era during which he lives. As such, the laws that he sets are consequently unstable and need to be updated continuously. Thus, RH has a much more solid base than UDHR.

Third, another point of divergence between the texts under study is the **ideological authority** around which the two texts are formulated. It can be easily grasped that UDHR and RH belong to two contradicting ideological authorities. UDHR is built upon a secular view and a legal

authority as it lacks any reference to Allah and do not consider Him as the giver of these rights. RH, to the contrary, is centered upon a religious view and has a divine authority. This authority is endowed to Al-Sajjad (p.b.u.h.). In addition, Allah is considered as the source of his creatures' rights.

fourth, further difference is that UDHR concentrates on **rights** and neglects or pays a little attention to **duties** while RH focuses on both rights and duties. In fact, except in Article (29), there is no other reference to duties of individuals. Rather, it is only governments which are given such a responsibility. Conversely, RH as is mentioned above, puts the responsibility of reserving rights upon the individuals themselves.

Fifth, **individualism versus collectivism** has been an extra point of variance between UDHR and RH since the former deals with individuals solitarily rather than as members of unified society. In opposition, RH, aiming at establishing a society in which each member is performing an effective role, highlights the social rights that have a moral quality. Such type of rights has embraced the rights of relations through kin like the rights of parents and the motivation to honour and thank them. In addition to the right of neighbour, admiration of the teacher, advising the counsellor, the indulgence of the little, and many others. These are necessary for strengthening the relationship among the society members.

Finally, there are two points that represent a partial similarity between UDHR and RH. They are going to be discussed here even though they have not been dealt with in this stage. The first point is the treatment of slavery while the second is the treatment of women. The

texts under study assimilate each other in the inclusion of them but differ quantitatively and qualitatively.

First, the **treatment of slavery** in UDHR is limited to the prohibition of the act of slavery without trying to remedy such a case. In the case of RH, slavery is handled and given some remediation. Al-Sajjad's (p.b.u.h.) approaching has been through treating the slave as Allah's charge at the master. He (i.e. the master) should feed him with what he eats, dress him with whatever he dresses, and should not load him with what he cannot endure.

Second, the **treatment of women** in UDHR and RH arises some sense of divergence between them. Although women in UDHR and RH are portrayed in two instances only, namely, with regard to marriage and motherhood yet these portrayals differ greatly. In UDHR, she is equalised to man in the case of marriage whereas in the case of motherhood, she is put side by side with childhood and both are entitled special support and attention. Actually, even this reference has just been in a section within an article. On the other hand, Al-Sajjad (p.b.u.h.) has lend woman a more respectable attention as he describes wife as Allah's blessing to her husband that he (i.e. the husband) should regard her with respect and kindness. Concerning motherhood, Al-Sajjad (p.b.u.h.) depicts mother as a reflection to Heaven on earth due to the endless sacrifice she offers.

In short, the differences between UDHR with respect to this stage, explanation, are evidently more than the partial similarities which gives an implication that UDHR and RH have approached the issue of rights from obviously diverge perspectives.

Chapter Five

Conclusions, Recommendations and Suggestions for Further Research

5.1. Conclusions

The present study has come out with the following conclusions which can be grouped in the three parts:

5.1.1 Description Stage

- a. UDHR and RH draw upon different classification schemes. In UDHR, the classification schemes have emphasised universality and liberalism. In the case of RH, they have been mostly religious. As such, UDHR and RH are lexicalised differently.
- b. The analysis of transitivity of UDHR and RH shows divergence in the process types used in both. The processes appointed to 'man' in UDHR are only the major ones, namely, material, mental , and relational. A 'carrier' has been the prevailing role in UDHR since it is concerned with presenting man's rights. On the other hand, in RH, man has been treated as an effective part in society through receiving the primacy in being an 'actor' in almost half of the processes appointed to him. Besides, the processes allocated to him include: material, mental, verbal, relational, and existential.
- c. The most frequent modal meaning that is detected in both texts is that of obligation due to their instructive character. It makes about (% 82) frequency of occurrence in UDHR and about (%45) in RH.
- d. Concerning text structure, UDHR consists of two major parts: a preamble and the body which consists of 30 articles. The former presents the aims behind the establishment of UDHR besides some instructions for its application in teaching and education. The latter in

its turn can be divided into four parts: introductory article; civil and political rights; social, economic, and cultural rights; and concluding articles. RH, on the contrary, consists of three major parts, namely, a preface, the body, and a conclusion. The preface embodies the enumeration of the general types of rights and their subdivisions. The body consists of a detailed exhibition of 50 rights. Finally, the conclusion restates the number of rights included in addition to their obligation.

5.1.2 Interpretation Stage

- a. Regarding situational context, the purpose of the construction of UDHR is impressionistic and the relation between the addresser and addressees is that between legislature and executors. RH has an efficacious purpose and the relations that hold between the addresser and addressees are that between a principal religious leader and Muslims.
- b. With respect to intertextuality, manifest intertextuality shows that the types of texts that are reflected in UDHR and RH are primarily concerned with the issue of rights. UDHR has been mostly resorting to rights that are mentioned in previously in the Declaration of the Rights of Man and of the Citizen. The intertextual base of RH is much more extensive as it includes the Glorious Quran, Prophet Mohammed's traditions, and Imam Ali's sayings. Constitutive intertextuality reveals that UDHR uses a similar construction to some previous political documents mainly the Constitution of the United States of America while the way in which RH is composed represents a method that has been later assigned to the school of Gestalt.
- c. Directive speech acts figure in both texts but while UDHR employs command, prohibition, and warning directive speech acts, RH adds the

use of advice to them. As such, RH advises and warns simultaneously whereas UDHR limits itself to the task of warning. In addition, RH applies some subsequent speech acts that subordinate the macro ones while UDHR does not.

- d. UDHR does not follow a specific gradation in presenting rights whereas in RH rights are presented in a seriatim, starting from the greatest in importance and ending with the less important, they are arranged purposefully, vertically as well as horizontally.

5.1.3 Explanation Stage

- a. The ideology of rights in UDHR and RH is discrepant. In UDHR, it is based on a secular view and limited to political and juristic attitudes while in RH, it is religious and concerned with different aspects of life, including: religious, political, juristic, moral, economic, and social.
- b. The power of the two texts differs due to their different origins and bases; in UDHR power is human and depends on positive law whereas in RH power is divine and emanates from divine law.
- c. Women are treated differently in the two texts. In UDHR, they are considered equal to men in case of marriage and grouped with children and they both require special care. On the other hand, in RH, a wife is regarded as a blessing to her husband and is assimilated to Heaven in case of motherhood.
- d. Slavery, while being prohibited in UDHR, it is given some remedial treatment by Al-Sajjad (p.b.u.h.) in RH.
- e. Furthermore, UDHR has proved to be adopting a more individualistic perspective when dealing with rights on the time RH focuses a rather collective perspective.

- f. A major them in the issue of rights is the rights-duties concentration. In UDHR, a major if not a complete focus has been on the rights while a negligence is clear in relation to duties except in one article. On the contrary, mostly, there has been a balance between the rights and the duties and sometimes duties outbalance.
- g. Universality in UDHR is claimed as it overlaps with many instances of Western Ethnocentrism. This same concept if taken to refer to the comprehensiveness of the text, then RH would be more universal for the inclusion of much more human rights rather than those proposed in UDHR in addition to other rights like of Allah, organs, deeds, and of self.

5.2 Recommendations

The recommendations of the present study are two-fold. One side is compatible with the field of linguistics that is studied in this work, namely, CDA. The other side is invested to the issue of rights which constitutes the core of the texts under study. These recommendations involve the following:

1. The teaching of Risalat Al-Huquq is recommended in the curriculum of human rights in universities for its moral, political, religious, social, juristic, and economic practical effects.
2. Besides teaching it to students, RH should be taken into consideration by governments and leaders. Its benefit to them is ascribed to its treatment of policy and the presentation of the best way of leading countries through rights of leader through authority and subjects through authority. Human rights commissions

3. It is beneficial for the commissions of human rights to regard RH while working on the promotion and protection of human rights as it sheds light on the moral aspect of rights.
4. People, regardless of their religion, origin, or geographical belonging, can benefit from RH as it represents a constitution to their lives which if followed might lead them to an eternal comfortability, peace, and prosperity.
5. It could be recommended to rely on contrastive or corpus studies concerning any study within CDA as it lessens the subjectivity and gives more generalisable results than considering a single text.
6. For the social and critical side of CDA, it is needed to concentrate on texts whose study can provide some practical findings rather than those which have temporal effects.
7. Textbook writers should take into consideration human rights while setting their texts, leaving a way for students to study and analyze written texts in order to reveal the discursive sources of power, dominance, inequality and bias found in some documents of human rights.
8. Doing CDA should be taught to undergraduate students in order to make them aware of the power and ideologies implied in whatever discourse they are exposed to and to enhance their critical thinking.
9. Textbook writers could apply approaches of CDA on the curriculums followed nowadays in schools and universities to examine their ideologies.

5.3 Suggestions for Further Research

1. A similar study with the application of Van Dijk's socio-cognitive approach for the analysis of the texts can be carried out so as to investigate how these texts are influenced by the authors' mental models, knowledge, attitudes and ideologies.
2. A similar study with the application of Wodak's discourse-historical-approach for the analysis of the texts can be carried out in order to highlight the historical background of human rights in English and Arabic since the past has its presence and importance in the present time in addition to the possibility of exploiting it for present's favour.
3. Parameters of analysis in CDA are far from being exhaustive, rather, they are selective. This is due to the problem of subjectivity in CDA such a matter could be considered and given solutions by other researchers.
4. A Contrastive critical discourse analysis of human rights in politics though analysing English and Arabic political speeches or in Literature by analyzing, for example, English and Arabic novels.

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APPENDICES

Appendix 1

Universal Declaration of Human Rights

United Nations

Note

Adopted and proclaimed by General Assembly resolution 217 A (III) of 10 December 1948

On December 10, 1948 the General Assembly of the United Nations adopted and proclaimed the Universal Declaration of Human Rights the full text of which appears in the following pages. Following this historic act the Assembly called upon all Member countries to publicize the text of the Declaration and “to cause it to be disseminated, displayed, read and expounded principally in schools and other educational institutions, without distinction based on the political status of countries or territories.

Preamble

Whereas recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family is the foundation of freedom, justice and peace in the world,

Whereas disregard and contempt for human rights have resulted in barbarous acts which have outraged the conscience of mankind, and the advent of a world in which human beings shall enjoy freedom of speech and belief and freedom from fear and want has been proclaimed as the highest aspiration of the common people.

Whereas it is essential, if man is not to be compelled to have recourse, as a last resort, to rebellion against tyranny and oppression, that human rights should be protected by the rule of law,

Whereas it is essential to promote the development of friendly relations between nations,

Whereas the peoples of the United Nations have in the Charter reaffirmed their faith in fundamental human rights, in the dignity and worth of the human person and in the equal rights of men and women and have determined to promote social progress and better standards of life in larger freedom,

Whereas Member States have pledged themselves to achieve, in co-operation with the United Nations, the promotion of universal respect for and observance of human rights and fundamental freedoms,

Whereas a common understanding of these rights and freedoms is of the greatest importance for the full realization of this pledge,

Now, Therefore THE GENERAL ASSEMBLY proclaims THIS UNIVERSAL DECLARATION OF HUMAN RIGHTS as a common standard of achievement for all peoples and all nations, to the end that every individual and every organ of society, keeping this Declaration constantly in mind, shall strive by teaching and education to promote respect for these rights and freedoms and by progressive measures, national and international, to secure their universal and effective recognition and observance, both among the peoples of Member States themselves and among the peoples of territories under their jurisdiction.

Article 1

All human beings are born free and equal in dignity and rights. They are endowed with reason and conscience and should act towards one another in a spirit of brotherhood.

Article 2

Everyone is entitled to all the rights and freedoms set forth in this Declaration, without distinction of any kind, such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status. Furthermore, no distinction shall be made on the basis of the political, jurisdictional or international status of the country or territory to which a person belongs, whether it be independent, trust, non-self-governing or under any other limitation of sovereignty.

Article 3

Everyone has the right to life, liberty and security of person.

Article 4

No one shall be held in slavery or servitude; slavery and the slave trade shall be prohibited in all their forms.

Article 5

No one shall be subjected to torture or to cruel, inhuman or degrading treatment or punishment.

Article 6

Everyone has the right to recognition everywhere as a person before the law.

Article 7

All are equal before the law and are entitled without any discrimination to equal protection of the law. All are entitled to equal protection against any discrimination in violation of this Declaration and against any incitement to such discrimination.

Article 8

Everyone has the right to an effective remedy by the competent national tribunals for acts violating the fundamental rights granted him by the constitution or by law.

Article 9

No one shall be subjected to arbitrary arrest, detention or exile.

Article 10

Everyone is entitled in full equality to a fair and public hearing by an independent and impartial tribunal, in the determination of his rights and obligations and of any criminal charge against him.

Article 11

1. Everyone charged with a penal offence has the right to be presumed innocent until proved guilty according to law in a public trial at which he has had all the guarantees necessary for his defence.

2. No one shall be held guilty of any penal offence on account of any act or omission which did not constitute a penal offence, under national or international law, at the time when it was committed. Nor shall a heavier penalty be imposed than the one that was applicable at the time the penal offence was committed.

Article 12

No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence, nor to attacks upon his honour and reputation. Everyone has the right to the protection of the law against such interference or attacks.

Article 13

1. Everyone has the right to freedom of movement and residence within the borders of each state.
2. Everyone has the right to leave any country, including his own, and to return to his country.

Article 14

1. Everyone has the right to seek and to enjoy in other countries asylum from persecution.
2. This right may not be invoked in the case of prosecutions genuinely arising from non-political crimes or from acts contrary to the purposes and principles of the United Nations.

Article 15

1. Everyone has the right to a nationality.
2. No one shall be arbitrarily deprived of his nationality nor denied the right to change his nationality.

Article 16

1. Men and women of full age, without any limitation due to race, nationality or religion, have the right to marry and to found a family. They are entitled to equal rights as to marriage, during marriage and at its dissolution.
2. Marriage shall be entered into only with the free and full consent of the intending spouses.
3. The family is the natural and fundamental group unit of society and is entitled to protection by society and the State.

Article 17

1. Everyone has the right to own property alone as well as in association with others.
2. No one shall be arbitrarily deprived of his property.

Article 18

Everyone has the right to freedom of thought, conscience and religion; this right includes freedom to change his religion or belief, and freedom, either alone or in community with others and in public or private, to manifest his religion or belief in teaching, practice, worship and observance.

Article 19

Everyone has the right to freedom of opinion and expression; this right includes freedom to hold opinions without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers.

Article 20

1. Everyone has the right to freedom of peaceful assembly and association.
2. No one may be compelled to belong to an association.

Article 21

1. Everyone has the right to take part in the government of his country, directly or through freely chosen representatives.
2. Everyone has the right of equal access to public service in his country.

3. The will of the people shall be the basis of the authority of government; this will shall be expressed in periodic and genuine elections which shall be by universal and equal suffrage and shall be held by secret vote or by equivalent free voting procedures.

Article 22

Everyone, as a member of society, has the right to social security and is entitled to realization, through national effort and international co-operation and in accordance with the organization and resources of each State, of the economic, social and cultural rights indispensable for his dignity and the free development of his personality.

Article 23

1. Everyone has the right to work, to free choice of employment, to just and favourable conditions of work and to protection against unemployment.

2. Everyone, without any discrimination, has the right to equal pay for equal work.

3. Everyone who works has the right to just and favourable remuneration ensuring for himself and his family an existence worthy of human dignity, and supplemented, if necessary, by other means of social protection.

4. Everyone has the right to form and to join trade unions for the protection of his interests.

Article 24

Everyone has the right to rest and leisure, including reasonable limitation of working hours and periodic holidays with pay.

Article 25

1. Everyone has the right to a standard of living adequate for the health and well-being of himself and of his family, including food, clothing, housing and medical care and necessary social services, and the right to security in the event of unemployment, sickness, disability, widowhood, old age or other lack of livelihood in circumstances beyond his control.

2. Motherhood and childhood are entitled to special care and assistance. All children, whether born in or out of wedlock, shall enjoy the same social protection.

Article 26

1. Everyone has the right to education. Education shall be free, at least in the elementary and fundamental stages. Elementary education shall be compulsory. Technical and professional education shall be made generally available and higher education shall be equally accessible to all on the basis of merit.

2. Education shall be directed to the full development of the human personality and to the strengthening of respect for human rights and fundamental freedoms. It shall promote understanding, tolerance and friendship among all nations, racial or religious groups, and shall further the activities of the United Nations for the maintenance of peace.

3. Parents have a prior right to choose the kind of education that shall be given to their children.

Article 27

1. Everyone has the right freely to participate in the cultural life of the community, to enjoy the arts and to share in scientific advancement and its benefits.

2. Everyone has the right to the protection of the moral and material interests resulting from any scientific, literary or artistic production of which he is the author.

Article 28

Everyone is entitled to a social and international order in which the rights and freedoms set forth in this Declaration can be fully realized.

Article 29

1. Everyone has duties to the community in which alone the free and full development of his personality is possible.

2. In the exercise of his rights and freedoms, everyone shall be subject only to such limitations as are determined by law solely for the purpose of securing due recognition and respect for the rights and freedoms of others and of meeting the just requirements of morality, public order and the general welfare in a democratic society.

3. These rights and freedoms may in no case be exercised contrary to the purposes and principles of the United Nations.

Article 30

Nothing in this Declaration may be interpreted as implying for any State, group or person any right to engage in any activity or to perform any act aimed at the destruction of any of the rights and freedoms set forth herein.

Appendix 2

A\ The Original Text

رسالة الحقوق للأمام علي السجاد (عليه السلام)

اعلم رحمك الله أنّ الله عليك حقوقاً محيطَةً بك في كلّ حركةٍ تحرّكتَها، أو سكنةٍ سكنتَها أو منزلةٍ نزلتَها، أو جراحةٍ قلّبتَها وآلةٍ تصرّفتَ بها: بعضها أكبرُ من بعضٍ وأكبرُ حقوقِ الله عليك ما أوجبَهُ لنفسه تبارك وتعالى من حقّه الذي هو أصلُ الحقوق ومنه تُفرَعُ ثمّ أوجبهُ عليك لنفسك من قرّنتك إلى قدمك على اختلافِ جوارحك، فجعل لبصرك عليك حقّاً ولسمعك عليك حقّاً ولللسانك عليك حقّاً وليديك عليك حقّاً ولرجلك عليك حقّاً، ولبطنك عليك حقّاً ولفرجك عليك حقّاً، فهذه الجوارح السبعُ التي بها تكون الأفعال. ثمّ جعل عز وجل لأفعالك عليك حقوقاً، فجعل لصلاتك عليك حقّاً ولصومك عليك حقّاً ولصدقتك عليك حقّاً ولهديك عليك حقّاً ولأفعالك عليك حقّاً. ثمّ تخرج الحقوق منك إلى غيرك من ذوي الحقوق الواجبة عليك، وأوجبها عليك: حقوقُ أئمّتك، ثمّ حقوقُ رعيّتك، ثمّ حقوقُ رحمك، فهذه حقوقٌ يتشعّبُ منها حقوقٌ. فحقوقُ أئمّتك ثلاثة: أوجبها عليك حقّ سائسك بالسلطان، ثمّ حقّ سائسك بالملك، وكلّ سائسٍ إمام. وحقوقُ رعيّتك ثلاثة: أوجبها عليك حقّ رعيّتك بالسلطان، ثمّ حقّ رعيّتك بالعلم، فإنّ الجاهل رعيّةُ العالم، ثمّ حقّ رعيّتك بالملك من الأزواج وما ملكت الأيمانُ وحقوقُ رجمك كثيرة، متّصلة بقدر اتّصال الرحم في القرابة فأوجبها عليك حقّ أمك، ثمّ حقّ أبيك، ثمّ حقّ ولدك، ثمّ حقّ أخيك، ثمّ الأقرب فالأقرب، والأولى فالأولى. ثمّ حقّ مولاك المُنعم عليك، ثمّ حقّ مولاك الجارية نِعْمَتُك عليه، ثمّ حقّ ذي المعروف لديك، ثمّ حقّ مُؤدّنك بالصلاة، ثمّ حقّ إمامك في صلاتك، ثمّ حقّ جليستك، ثمّ حقّ جارك، ثمّ حقّ صاحبك، ثمّ حقّ شريكك، ثمّ حقّ مالِك، ثمّ ثمّ حقّ غريمك الذي تُطالبه، ثمّ حقّ غريمك الذي يُطالبُك، ثمّ حقّ خليطك، ثمّ حقّ خصمك المدّعي عليك، ثمّ حقّ خصمك الذي تدّعي عليه، ثمّ حقّ مُستشيرك، ثمّ حقّ المُشير عليك، ثمّ حقّ مُستصحبك، ثمّ حقّ الناصح لك، ثمّ حقّ مَنْ هو أكبرُ منك، ثمّ حقّ مَنْ هو أصغرُ منك، ثمّ حقّ سائلك، ثمّ حقّ مَنْ سألتَهُ، ثمّ حقّ مَنْ جرى لك على يديهِ مساءة بقولٍ أو فعل، أو مسرةً بذلك بقولٍ أو فعل عن تعمّدٍ منه، أو غير تعمّدٍ منه، ثمّ حقّ أهل ملّتك عامّة، ثمّ حقّ أهل الذمّة، ثمّ الحقوق الجارية بقدر علل الأحوال وتصرف الأسباب. فطوبى لِمَنْ أعانهُ الله على قضاء ما أوجب عليه من حقوقه، ووقّفه لذلك وسدّده.

[1] فأما حقّ الله الأكبر: فأَنْ تعبدَهُ لا تُشْرِكْ به شيئاً، فإذا فعلتَ ذلكَ بإخلاصٍ جعلَ لك على نفسه أنْ يكفِيكَ أمرَ الدنيا، و الآخرة، ويحفظُ لك ما تحب منهُما.

[2] وأما حقّ نفسك عليك: فأَنْ تستوفيها في طاعة الله، فتؤدّي إلى لسانك حقّه، وإلى سمعك حقّه، وإلى بصرك حقّه، وإلى يدك حقّها، وإلى رجلك حقّها، وإلى بطنك حقّه، وإلى فرجك حقّه، وتستعينَ بالله على ذلك.

[3] وأما حقّ اللسان : فإكرامه عن الخنى، وتعويدَه على الخير، وحمله على الأدب، وإجماعه إلّا لموضع الحاجة والمنفعة للدين والدنيا، وإعفاؤه عن الفضول الشنعة القليلة الفائدة التي لا يؤمنُ ضررُها مع قلة عائدتها. ويُعدّ شاهدَ العقل والدليل عليه، وتزِين العاقل بعقله حسنُ سيرته في لسانه، ولا قوّة إلّا بالله العليّ العظيم.

[4] وأما حقّ السمع: فتتزيهه عن أنْ تجعله طريقاً إلى قلبك إلّا لفوهة كريمة تُحدث في قلبك خيراً، أو تكسب خلقاً كريماً، فإنّه باب الكلام إلى القلب، يؤدّي إليه ضروب المعاني على ما فيها من خيرٍ أو شر، ولا قوّة إلّا بالله .

[5] وأما حقّ بصرك: فغضّه عمّا لا يحلّ لك، وتعتبر بالنظر به، وترك ابتذاله إلّا لموضع عبرةٍ تستقبلُ بها بصراً، أو تستفيد بها علماً، فإنّ البصر بابُ الاعتبار.

[6] وأما حقّ رجلِك: فأَنْ لا تمشيَ بها إلى ما لا يحلّ لك، ولا تجعلها مطيئتك في الطريق المستخفة بأهلها فيها، فإنّها حاملتك، وسالكة بك مسلك الدين، والسبق لك، ولا قوّة إلّا بالله.

[7] وأما حقّ يدك : فأَنْ لا تبسطها إلى ما لا يحلّ لك، فتتال بما تبسطها إليه من الله العقوبة في الآجل، ومن الناس بلسان اللائمة في العاجل، ولا تقبضها عمّا افترض الله عليها، ولكن توقّرْها: بقبضها عن كثير ممّا يحلّ لها ، وبسطها إلى كثيرٍ ممّا ليس عليها، فإذا هي قد عُقِلَتْ وشُرِفَتْ في العاجل وَجَبَ لها حُسْنُ الثواب في الآجل.

[8] وأما حقّ بطنك: فأَنْ لا تجعله وعاءً لقليل من الحرام ولا لكثير، وأنْ تقتصدَ له في الحلال، ولا تُخرجه من حدّ التقوية إلى حدّ التهوين، وذهاب المروءة، وضبطه إذا همّ بالجوع والعطش والظمأ، فإنّ الشبع المنتهي بصاحبه إلى التخم مَكْسلة ومَثْبُطَة ومَقْطُعة عن كلّ برٍّ وكرم، وإنّ الريّ المنتهي بصاحبه إلى السكر مَسْخفة ومَجْهولة ومَذْهبة للمروءة.

[9] وأما حقّ فرجك: فحفظه ممّا لا يحلّ لك، والاستعانة عليه بغضّ البصر - فإنّه من أعوان الأعداء - وكثرة ذكر الموت والتهدّد لنفسك بالله والتخويف لها به، وبالله العصمة والتأييد، ولا حول ولا قوّة إلّا به.

ثمّ حقوق الأفعال

[10] فأما حقّ الصلاة: فإنّ تعلم أنّها وفادة إلى الله، وأنّك قائم بها بيّن يدي الله، فإذا علمت ذلك كنت خليقاً أن تقوم فيها مقام العبد، الذليل الراغب الراهب الخائف الراجي المسكين المتضرّع المعظم من قام بيّن يديه بالسكون والإطراق وخشوع الأطراف ولين الجناح وحسن المناجاة له في نفسه والطلب إليه في فكاك رقبتك التي أحاطت بها خطيئتك، واستهلكتها ذنوبك، ولا قوّة إلّا بالله.

[11] وأما حقّ الصوم: فإنّ تعلم أنّه حجاب ضربه الله على لسانك وسمعك وبصرك وفرجك وبطنك ليستترك به من النار وهكذا جاء في الحديث: "الصوم جنة من النار"، فإن سكنت أطرافك في حجبها رجوت أن تكون محبوباً. وإن أنت تركتها تضطرب في حجابها وترفع جنابات الحجاب فتطلّع إلى ما ليس لها بالنظرة الداعية للشهوة والقوّة الخارجة عن حدّ النقيّة لله لم تأمن أن تخرق الحجاب وتخرج منه، ولا قوّة إلّا بالله.

[12] و أما حقّ الحجّ: أن تعلم أنّه وفادة إلى ربك، وفرار إليه من ذنوبك، وفيه قبول توبتك، وقضاء الفرض الذي أوجبه الله عليك.

[13] وأما حقّ الصدقة: فإنّ تعلم أنّها ذخرك عند ربك، ووديعة التي لا تحتاج إلى الإشهاد، فإذا علمت ذلك، كنت بما استودعته سراً أوثق بما استودعته علانية، وكنت جديراً أن تكون أسررت إليه أمراً أعلنته، وكان الأمر بينك وبينه فيها سراً على كلّ حال، ولم تستظهر عليه في ما استودعته منها بإشهاد الأسماع والأبصار عليه بها كأنّها أوثق في نفسك لا كأنك لا تثقّ به في تأدية وديعتك إليك، ثمّ لم تمتنّ بها على أحد، لأنّها لك، فإذا امتننت بها لم تأمن أن تكون بها مثل تهجين حالك منها إلى من مننت بها عليه، لأنّ في ذلك دليلاً على أنك لم تُرد نفسك بها ولو أردت نفسك بها لم تمتنّ بها على أحد، ولا قوّة إلّا بالله.

[14] وأما حقّ الهدى: فإنّ تُخلص بها الإرادة إلى ك، والتعرض لرحمته وقبوله، ولا تريد عيون الناظرين دونه، فإذا كنت كذلك لم تكن متكافئاً ولا متصنّعاً، وكنت إنّما تقصد إلى الله، واعلم أن الله يُراد باليسير، ولا يُراد بالعسير، كما أراد بخلقه النّيسير ولم يُرد بهم النّعسير، وكذلك التذلل أولى

ك من التَّدَهُّن، لَأَنَّ الكُلْفَةَ والمُؤُونَةَ في المتمدِّهَقَيْن. فَأَمَّا التَّذَلُّ والتمسُّك فلا كُلْفَةَ فيهما، ولا مؤونة عليهما، لَأَنَّهُما الخِلْفَةُ، وهما موجودان في الطبيعة. ولا قُوَّة إلا بالله.

ثم حقوق الأئمة

[15] فَأَمَّا حَقَّ سَائِسِكَ بالسُّلْطَان: فَأَنْ تَعْلَمَ أَنَّكَ جُعِلْتَ لَهُ فِتْنَةً وَأَنَّهُ مُبْتَلَى فَيْكَ بِمَا جَعَلَهُ اللَّهُ لَهُ عَلَيْكَ مِنَ السُّلْطَان، وَأَنْ تُخْلَصَ لَهُ فِي النَّصِيحَةِ، وَأَنْ لَا تَمَاحِكُهُ، وَقَدْ بُسِطَتْ يَدُهُ عَلَيْكَ، فَتَكُونَ سَبَبَ هَلَاكِ نَفْسِكَ وَهَلَاكِهِ، وَتَذَلُّ وَتَلَطَّفُ لِإِعْطَائِهِ مِنَ الرِّضَا مَا يَكْفِيهِ عَنْكَ وَلَا يَضُرُّ بَدِينَكَ، وَتَسْتَعِينُ عَلَيْهِ فِي ذَلِكَ بِاللَّهِ، وَلَا تَعَارِزُهُ وَلَا تَعَانِدُهُ، فَإِنَّكَ إِنْ فَعَلْتَ ذَلِكَ عَقَّبَتْهُ وَعَقَّبَتْ نَفْسَكَ، فَعَرَضَتْهَا لِمَكْرُوهِهِ وَعَرَضَتْهُ لِلْهَلَاكِ فَيْكَ، وَكَنتَ خَلِيقاً أَنْ تَكُونَ مُعِيناً لَهُ عَلَى نَفْسِكَ وَشَرِيكاً لَهُ فِي مَا أَتَى إِلَيْكَ. وَلَا قُوَّة إلا بالله .

[16] وَأَمَّا حَقَّ سَائِسِكَ بالعلم: فَالْتَعْظِيمُ لَهُ، وَالتَّوْقِيرُ لِمَجْلِسِهِ، وَحَسَنُ الِاسْتِمَاعِ إِلَيْهِ، وَالِإِقْبَالُ عَلَيْهِ، وَالْمَعُونَةُ لَهُ عَلَى نَفْسِكَ فِي مَا لَا غِنَى بِكَ عَنْهُ مِنَ الْعِلْمِ، بِأَنْ تَفَرِّغَ لَهُ عَقْلَكَ، وَتَحْضُرَهُ فَهْمَكَ، وَتَرْكِي لَهُ قَلْبَكَ، وَتَجْلِي لَهُ بَصْرَكَ بِتَرْكِ اللَّذَاتِ، وَنَقْصِ الشَّهَوَاتِ، وَأَنْ تَعْلَمَ أَنَّكَ فِيمَا أُلْقِيَ إِلَيْكَ رَسُولُهُ إِلَى مَنْ لَقَيْكَ مِنْ أَهْلِ الْجَهْلِ، فَلِزِمَكَ حَسَنُ التَّأْدِيَةِ عَنْهُ إِلَيْهِمْ، وَلَا تَخُنْهُ فِي تَأْدِيَةِ رِسَالَتِهِ وَالْقِيَامِ بِهَا عَنْهُ إِذَا تَقَلَّدْتَهَا. وَلَا حَوْلَ وَلَا قُوَّة إلا بالله .

[17] وَأَمَّا حَقَّ سَائِسِكَ بِالْمُلْكِ: فَنَحْوُ مِنْ سَائِسِكَ بِالسُّلْطَان، إِلَّا أَنَّ هَذَا يَمْلِكُ مَا لَا يَمْلِكُهُ ذَاكَ، تَلْزِمَكَ طَاعَتُهُ فِي مَا دَقَّ وَجَلَّ مِنْكَ، إِلَّا أَنْ تَخْرُجَكَ مِنْ وَجُوبِ حَقِّ اللَّهِ وَيَحُولَ بَيْنَكَ وَبَيْنَ حَقِّهِ وَحَقُوقِ الْخَلْقِ، فَإِذَا قَضَيْتَهُ رَجَعْتَ إِلَى حَقِّهِ فَتَشَاغَلْتَ بِهِ، وَلَا قُوَّة إلا بالله .

ثم حقوق الرعية

[18] فَأَمَّا حَقَّ رَعِيَّتِكَ بالسُّلْطَان: فَأَنْ تَعْلَمَ أَنَّكَ إِنَّمَا اسْتَرَعَيْتَهُمْ بِفَضْلِ قُوَّتِكَ عَلَيْهِمْ فَإِنَّهُ إِنَّمَا أَحْلَاهُمْ مَحَلَّ الرِّعْيَةِ لَكَ ضَعْفَهُمْ، وَذَلَّهِمْ، فَمَا أَوْلَى مَنْ كَفَاكُهُ ضَعْفُهُ وَذَلُّهُ حَتَّى صَيَّرَهُ لَكَ رَعِيَّةً، وَصَيَّرَ حَكْمَكَ عَلَيْهِ نَافِذاً، لَا يَمْتَنِعُ عَنْكَ بَعْزَةٌ وَلَا قُوَّةٌ وَلَا يَسْتَنْصِرُ فِي مَا تَعَاظَمَ مِنْكَ إِلَّا [بِاللَّهِ] بِالرَّحْمَةِ وَالْحَيَاةِ وَالْأُنَاةِ، وَمَا أَوْلَاكَ إِذَا عَرَفْتَ مَا أَعْطَاكَ اللَّهُ مِنْ فَضْلِ هَذِهِ الْعِزَّةِ وَالْقُوَّةِ الَّتِي قَهَرَتْ بِهَا أَنْ تَكُونَ لِلَّهِ شَاكِراً وَمَنْ شَكَرَ اللَّهَ أَعْطَاهُ فِي مَا أَنْعَمَ عَلَيْهِ، وَلَا قُوَّة إلا بالله .

[19] وَأَمَّا حَقَّ رَعِيَّتِكَ بالعلم: فَأَنْ تَعْلَمَ أَنَّ اللَّهَ قَدْ جَعَلَكَ لَهُمْ فِي مَا آتَاكَ مِنَ الْعِلْمِ، وَوَلَاكَ مِنْ خَزَانَةِ الْحِكْمَةِ، فَإِنْ أَحْسَنْتَ فِيمَا وَلَاكَ اللَّهُ مِنْ ذَلِكَ وَقَمْتَ بِهِ لَهُمْ مَقَامَ الْخَازِنِ الشَّفِيقِ النَّاصِحِ

لمولاه في عبيده، الصابر المحتسب الذي إذا رأى ذا حاجةٍ أخرج له من الأموال التي في يديه كنت راشداً، وكنت لذلك آملاً معتقداً والا كنت له خائناً، ولخلقه ظالماً ، ولسلبه وعزه متعرّضاً.

[20] حق الزوجة: وأما حقّ رعيّتك بملك النكاح: فأَنْ تعلم أنّ الله جعلها سكناً ومستراحاً وأنساً وواقيةً، وكذلك كلّ واحد منكما يجب أنْ يحمد الله على صاحبه، ويعلم أنّ ذلك نعمة منه عليه. ووجب أنْ يُحسن صحبة نعمة الله، ويكرمها ويرفق بها، وإن كان حقّك عليها أغلظ وطاعتك بها ألزم في ما أحببت وكرهت ما لم تكن معصيةً، فإنّ لها حقّ الرحمة والمؤانسة، وموضع السكون إليها قضاء اللذة التي لا بدّ من قضائها وذلك عظيم. ولا قوّة إلاّ بالله .

[21] وأما حقّ رعيّتك بملك اليمين: فأَنْ تعلم أنّه خلق ربّك ولحمك ودمك، وأنك تملكه لا أنت صنعته دون الله ولا خلقت له سمعاً ولا بصرأ ولا أجريت له رزقا ، ولا أجريت له رزقاً، ولكنّ الله كفاك ذلك، ثمّ سخره لك وانتّمّنك عليه واستودعك إياه لتحفظه فيه وتسير فيه بسيرته فتطعمه ممّا تاكل وتلبسه ممّا تلبس ولا تكلفه ما لا يطيق، فإنّ كرهته خرجت إلى الله منه واستبدلت به ولم تعذب خلق الله ولا قوّة إلاّ بالله .

[22] فحقّ أمّك: فأَنْ تعلم أنّها حملتك حيث لا يحمل أحد أحدأ وأطعمتك من ثمرة قلبها ما لا يُطعم أحد أحدأ ، وأنّها وقّنتك بسمعها وبصرها ويدها ورجلها وشعرها وبشرها وجميع جوارحها مُستبشرةً بذلك، فرحةً موابلةً محتملةً لما فيه مكروهاها وألمها وثقلها وغمّها حتّى دفعتها عنك يدُ القدرة وأخرجتك إلى الأرض فرضيت أن تشبع وتطعمك وتجوع هي، وتكسوك وتعري، وترويك وتظمأ، وتظّلّك وتضحى، وتُنعمك ببؤسها، وتلدّذك بالنوم بأرقها، وكان بطئها لك وعاءً، وججّرها لك حواءً، وثديها لك سقاءً، ونفسها لك وقاءً، تباشر حرّ الدنيا وبردها لك ودونك، فتشكرها على قدر ذلك ولا تقدر عليه إلاّ بعون الله وتوفيقه.

[23] وأما حقّ أبيك: فتعلم أنّه أصلُك، وأنك فرعُه وأنك لولاه لم تكن. فمهما رأيت في نفسك مما يُعجبك فاعلم أنّ أباك أصل النعمة عليك فيه وأحمد الله واشكره على قدر ذلك ولا قوّة إلاّ بالله .

[24] وأما حقّ ولدك: فتعلم أنّه منك ، ومضاف إليك في عاجل الدنيا بخيره وشرّه، وأنك مسؤول عمّا وليّته من حُسن الأدب، والدلالة على ربّه، والمعونة له على طاعته فيك وفي نفسه، فمثاب على ذلك ومعاقب، فاعمل في أمره عمل المتزيّن بحُسن أثره عليه في عاجل الدنيا المعذر إلى ربّه في ما بينك وبينه بحسن القيام عليه والأخذ له منه. ولا قوّة إلاّ بالله.

[25] وأما حقّ أخيك: فتعلم أنّه يدك التي تبسطها، وظهرك الذي تلتجئ إليه ، وعزّك الذي تعتمد عليه، وقوّتك التي تصول بها، فلا تتخذ سلاحاً على معصية الله، ولا عُدة للظلم بحق الله، ولا تدع نصرته على نفسه، ومعاونته على عدوّه والحوّل بينه وبين شياطينه، وتأدية النصيحة إليه، والإقبال عليه في الله فإن انقاد لربّه وأحسن الإجابة له وإلاّ فليكن الله أثرَ عندك وأكرم عليك منه.

ثم حقوق الآخرين

[26] وأما حقّ المنعم عليك بالولاء: فإن تعلم أنّه أنفق فيك ماله، وأخرجك من دُلّ الرقّ ووحشته إلى عزّ الحرّية وأنسها، وأطلقك من أسر الملكة، وفكّ عنك حلق العبوديّة، وأوجدك رائحة العزّ، وأخرجك من سجن القهْر، ودفع عنك الغُسر، وبسط لك لسانَ الإنصاف، وأباحك الدنيا كلّها فملّكك نفسك، وحلّ أسرك، وفرّغك لعبادة ربّك، واحتملَ بذلك التقصير في ماله، فتعلم أنّه أولى الخلق بك بعد أولي رحمك في حياتك وموتك، وأحقّ الخلق بنصرك ومعاونتك ومكانفتك في ذات الله، فلا تُؤثر عليه نفسك ما احتاج إليك.

[27] وأما حقّ مولاك الجارية عليه نعمتُك: فإن تعلم أنّ الله جعلك حاميةً عليه، وواقيةً وناصرًا ومعقلاً، وجعله لك وسيلةً وسبباً بينك وبينه فبالحرّيّ أن يحجبك عن النار فيكون في ذلك ثواب منه في الآجل، ويحكم لك بميراثه في العاجل إذا لم يكن له رَحِم. مكافأةً لما أنفقته من مالك عليه وقمت به من حقّه بعد إنفاق مالك، فإن لم تقم بحقه خيف عليك أن لا يطيب لك ميراثه. ولا قوّة إلاّ بالله.

[28] وأما حقّ ذي المعروف عليك: فإنّ تشكره، وتذكر معروفه، وتنشر له المقالة الحسنة، وتخلص له الدعاء في ما بينك وبين الله سبحانه، فإنك إذا فعلت ذلك كنت قد شكرته سرّاً وعلانيةً. ثم إن أمكن مكافأته بالفعل يوماً كافأته وإلاّ كنت مُرْصِداً له موطناً نفسك عليها.

[29] وأما حقّ المؤدّن: فإنّ تعلم أنّه مذكّرُك برّبك وداعيك إلى حظّك وأفضل أعوانك على قضاء الفريضة التي افترضها الله عليك، فتشكره على ذلك شكرُك للمحسن إليك. وإن كنت في بيتك متّهماً لذلك، لم تكن لله في أمره متّهماً وعلمت أنّه نعمة من الله عليك، لاشكّ فيها، فأحسن صحبة نعمة الله بحمد الله عليها على كل حال، ولا قوّة إلاّ بالله.

[30] وأما حقّ إمامك في صلاتك: فإن تعلم أنّه قد تقلّد السفارة في ما بينك وبين الله والوفادة إلى ربك، وتكلّم عنك ولم تتكلّم عنه، ودعا لك ولم تدع له، وطُلبَ فيك ولم تُطْلَب فيه، وكفاك همّ المقام بين يدي الله والمسألة له فيك ولم تكفه ذلك ، فإن كان في شيء من ذلك تقصير كان به دونك، وإن

كان آثماً لم تكن شريكه فيه، ولم يكن له عليك فضل، فوقى نفسك بنفسه، ووقى صلاتك بصلاته، فتشكر له على ذلك. ولا حول ولا قوة إلا بالله .

[31] وأما حقّ الجليس: فأن تُلين له كنفك، وتطيب له جانبك، وتنصفه في مجارة اللفظ ولا تُغرق في نزع اللحظ إذا لحظت وتقصد في اللفظ إلى إفهامه إذا لفظت. وإن كنت الجليس إليه كنت في القيام عنه بالخيار، وإن كان الجالس إليك كان بالخيار. ولا تقوم إلا بإذنه. ولا قوة إلا بالله.

[32] وأما حقّ الجار: فحفظه غائباً وكرامته شاهداً ونصرته ومعونته في الحالين جميعاً. لا تتبع له عورةً ، ولا تبحث له عن سوءة لتعرفها، فإن عرفتها منه من غير إرادة منك ولا تكلف كنت لما علمت حصناً حصيناً وستراً ستيراً، لو بحثت الأسنة عنه ضميراً لم تتصل إليه لانطوائه عليه. لا تستمع عليه من حيث لا يعلم. لا تسلمه عند شديدة، ولا تحسده عند نعمة. وثقل عثرته ، وتغفر زلته. ولا تدخر حلمك عنه إذا جهل عليك، ولا تخرج أن تكون مسلماً له، تردّ عنه لسان الشتيمة، وتبطل فيه كَيْد حامل النصيحة، وتعاشره معاشرة كريمة. ولا حول ولا قوة إلا بالله.

[32] وأما حقّ الصاحب: فأن تصحبه بالفضل ما وجدت إليه سبيلاً، وإلا فلا أقلّ من الإنصاف، وأن تكرمه كما يكرمك، وتحفظه كما يحفظك، ولا يسبقك فيما بينك وبينه الى مكرمة، فأن سبقك كافأته. ولا تقصّر به عما يستحقّ من المودة. تلزم نفسك نصيحته وحياطته ومعاضدته على طاعة ربه ومعونته على نفسه في ما لا يهّم به من معصية ربّه، ثم تكون [عليه] رحمة ولا تكون عليه عذاباً. ولا قوة إلا بالله.

[34] وأما حقّ الشريك: فأن غاب كفيته، وإن حضر ساويته، ولا تعزم على حكمك دون حكمه، ولا تعمل برأيك دون مُناظرته، وتحفظ عليه ماله وتنفّي عنه خيانتة في ما عزّ أو هان فإنّه بلغنا أن "يد الله على الشريكين ما لم يتخالونا". ولا قوة إلا بالله.

[35] وأما حقّ المال: فأن لا تأخذه إلا من جلّه، ولا تُنفقه إلا في حلّه، ولا تحرفه عن مواضعه، ولا تصرفه عن حقائقه، ولا تجعله إذا كان من الله إلا إليه وسبباً إلى الله. ولا تؤثر به على نفسك من لعله لا يحمذك، وبالحرّي أن لا يُحسن خلافته في تركتك ولا يعمل فيه بطاعة ربك فتكون مُعيناً له على ذلك أو بما أحدث في مالك أحسن نظراً لنفسه، فيعمل بطاعة ربّه فيذهب بالغنيمة وتبوء بالإثم وبالحرسة والندامة مع التبعة. ولا قوة إلا بالله.

[36] وأما حقّ الغريم الطالب لك: فإن كنتَ مُوسِراً أوفيتَه وكفيتَه وأغنيته ولم تردُّه وتمطله فإن رسول الله صلى الله عليه واله – قال – "مطلّ الغنيّ ظلم". وإن كنتَ مُعسِراً أرضيتَه بحُسن القول وطلبتَ إليه طلباً جميلاً ورددته عن نفسك رداً لطيفاً، ولم تجمع عليه ذهاب ماله وسوء معاملته، فإن ذلك لؤم. ولا قوّة إلاّ بالله.

[37] وأما حقّ الخليط: فإن لا تغرّه ولا تغشه ولا تكذّبه ولا تغفله ولا تخدعه ولا تعمل في انتقاضه عمل العدو الذي لا يُبقي على صاحبه وإن اطمأن إليك استقصيت له على نفسك وعلمت أن "غبين المسترسل ربا". ولا قوّة إلاّ بالله.

[38] وأما حقّ الخصم [أ] المدّعي عليك: فإن كان ما يدّعي عليك حقّاً، لم تنفسخ في حُجته ولم تعمل في إبطال دعوته، وكنتَ خصم نفسك له والحاكم عليها والشاهد له بحقه دون شهادة الشهود، فإن ذلك حقّ الله عليك، إن كان ما يدّعيه باطلاً رَفَقْتَ به ورَوَعْتَهُ وناشدته بدينه وكسرت حدّته عنك بذكر الله وألقيت حشو الكلام ولُغَطَهُ الذي لا يردّ عنك عادية عدوك بل تبوء بإثمِهِ وبه يشدّ عليك سيف عداوته لأنّ لفظة السوء تبعث الشرّ، والخير مَفْمَعَةٌ للشرّ، ولا قوّة إلاّ بالله.

[ب] المدّعي عليه: فإن كان ما تدّعيه حقّاً أجملت في مقاولته بمخرج الدعوى، فإن الدعوى غلظة في سمع المدّعي عليه، وقصدت قصد حجّتك بالرفق، وأمهل المهلة، وأبين البيان، وألطف اللطف، ولم تتشاغل عن حجّتك بمنازعته بالقليل والقال، فتذهب عنك حجّتك، ولا يكون لك في ذلك درك، وإن كنت مُبطلاً في دعوائك اتقيت الله، وثُبتَ إليه، وتركت الدعوى. ولا قوّة إلاّ بالله.

[39] وأما حقّ المستشار: فإن حضرك له وجه رأي جهدت له في النصيحة، وأشرت عليه بما تعلم أنّك لو كنت مكانه عملت به، وذلك ليكون منك في رحمة ولين، فإن اللين يؤنس الوحشة وإنّ الغلظ يُوحش موضع الأنس. وإن لم يحضرك له رأي وعرفت له مَنْ تثقّ برأيه وترضى به لنفسك دلّلتَه عليه وأرشدته إليه، فكنت لم تأله خيراً ولم تدّخره نصحاً. ولا حول ولا قوّة إلاّ بالله.

[40] وأما حقّ المُشير عليك: أن لا تتهمه في مالا يُوافقك عليه من رأيه إذا أشار عليك فإنما هي الآراء وتصرف الناس فيها واختلافهم. فكن عليه في رأيه بالخيار إذا اتهمت رأيه، فأما تهمته فلا تجوز لك إذا كان عندك مَنْ يستحقّ المشاورة. ولا تدعْ شكره على ما بدا لك من إشخاص رأيه وحُسن وجه مشورته. فإذا وافقك حمدت الله وقبلت ذلك من أخيك بالشكر والإرصاد بالمكافأة في مثله إن فزع إليك. ولا قوّة إلاّ بالله.

[41] وأما حقّ المستنصِح: فإنّ حقّه أنْ تودّي إليه النصيحة على الحقّ الذي ترى له أنّه يحمل، وتُخرج المخرج الذي يلين على مسامعه، وتكلّمه من الكلام بما يُطيقه عقله، فإن لكل عقل طبقة من الكلام يعرفه ويَجْتَنِيهِ، وليكن مذهبك الرحمة. ولا قوّة إلاّ بالله.

[42] وأما حقّ الناصِح: فإنّ ثلّين له جناحك ، ثمّ تُشْرَبُ له قلبك ، وتفتح له سمعك ، حتّى تفهم عنه نصيحته ، ثمّ تنتظر فيها ، فإنّ كان وُفّقَ فيها للصواب حمدت الله على ذلك ، وقبلت منه ، وعرفت له نصيحته ، وإن لم يكن وُفّقَ له فيها رحمته ، ولم تتهمه ، وعلمت أنه لم يَأْلك نصحاً ، إلاّ أنّه أخطأ ، ولم تُؤاخذه بذلك ، إلاّ أن يكونَ عندك مستحقّاً للتهمة ، فلا تعباً بشي من أمره على كلّ حال ، ولا قوّة إلاّ بالله.

[43] وأما حقّ الكبير: فإنّ حقّه توقير سِنِّهِ وإجلال إسلامه إذا كان من أهل الفضل في الإسلام بتقدمه فيه ، وترك مقابلته عند الخصام ولا تسبقه إلى طريق، ولا تؤمّه ولا تتقدمه في طريق ولا تستجله. وإن جهلّ عليك تحمّلت وأكرمته بحقّ إسلامه مع سِنِّهِ ، فإنّما حقّ السِنِّ بقدر الإسلام. ولا قوّة إلاّ بالله .

[44] وأما حقّ الصغير: فرحمته وتنقيفه وتعليمه والعفو عنه والستر عليه والرفق به والمعونة له والستر على جرائمه فإنّه سبب للتوبة والمداراة له وترك مماحكته، فإنّ ذلك أدنى لرشده.

[45] وأما حقّ السائل: فأعطاه إذا تيقّنت صدقته وقدرت على سدّ حاجته، والدعاء له في ما نزل به، والمعاونة له على طلبته، وإن شككت في صدقه وسبقت إليه التهمة له ولم تعزم على ذلك لم تأمن أن يكون من كيد الشيطان أراد أن يصدك عن حظك ويحول بينك وبين التقرب إلى ربك فتركته بسره وردّته ردّاً جميلاً. وإن غلبت نفسك في أمره وأعطيته على ما عرّض في نفسك منه، فإنّ ذلك من عزم الأمور.

[46] وأما حقّ المسؤول: فحقه إن أعطى قيلَ منه ما أعطى بالشكر له والمعرفة لفضله وطلب وجه العُذر في منعه، وأحسن به الظنّ. واعلم أنّه إن منّع فماله منّع وأنّ ليس التثريبُ في ماله، وإن كان ظالماً، فإنّ الإنسان لظلوم كفّار.

[47] وأما حقّ مَنْ سَرَكَ اللهُ تعالى به وعلى يديه: فإن كانَ تعمّدها لك حمدت الله أولاً، ثمّ شكرته على ذلك بقدره، في موضع الجزاء وكافأته على فضل الابتداء وأرصدت له المكافأة، وإن لم يكن تعمّدها حمدت الله وشكرته وعلمت أنه منه توحّدك بها وأحببت هذا إذ كان سبباً من أسباب نِعَمِ الله

عليك وترجو له بعد ذلك خيراً، فإن أسباب النعم بركة حيثما كانت وإن كان لم يتعمد. ولا قوة إلا بالله.

[48] وأما حق من سائك القضاء على يديه بقول أو فعل: فإن كان تعمدها كان العفو أولى بك لما فيه له من القمع وحسن الأدب مع كثير أمثاله من الخلق، فإن الله يقول: "وَلَمَنَ انتَصَرَ بَعْدَ ظُلْمِهِ فَأُولَئِكَ مَا عَلَيْهِمْ مِّن سَبِيلٍ (41) إِنَّمَا السَّبِيلُ عَلَى الَّذِينَ يَظْلِمُونَ النَّاسَ وَيَبْغُونَ فِي الْأَرْضِ بِغَيْرِ الْحَقِّ أُولَئِكَ لَهُمْ عَذَابٌ أَلِيمٌ (42) وَلَمَن صَبَرَ وَغَفَرَ إِنَّ ذَلِكَ لَمِنْ عَزْمِ الْأُمُورِ (43)" وقال عز وجل: "وَإِنْ عَاقَبْتُمْ فَعَاقِبُوا بِمِثْلِ مَا عُوقِبْتُمْ بِهِ وَلَئِن صَبَرْتُمْ لَهُوَ خَيْرٌ لِلصَّابِرِينَ (126)" ، هذا في العمد فإن لم يكن عمداً لم تظلمه بتعمد الانتصار منه فتكون قد كافأته في تعمده على خطأ. ورفقت به ورددته بالطف ما تقدر عليه. ولا قوة إلا بالله.

[49] وأما حق أهل ملتك عامة: فإضمار السلامة ونشر جناح الرحمة والرفق بمسيئهم وتألفهم واستصلاحهم وشكر محسنهم إلى نفسه وإليك، فإن إحسانه إلى نفسه إحسانه إليك، إذا كف عنك أذاه وكفأك مؤونته وحبس عنك نفسه فعمهم جميعاً بدعوتك وانصرهم جميعاً بنصرتك وأنزلتهم جميعاً منك منازلهم، كبيرهم بمنزلة الوالد وصغيرهم بمنزلة الولد وأوسطهم بمنزلة الأخ. فمن أتاك تعاهدته بلطف ورحمة. وصل أخاك بما يجب للأخ على أخيه.

[50] وأما حق أهل الذمة: فالحكم فيهم أن تقبل منهم ما قبل الله، وتفي بما جعل الله لهم من ذمته وعهده وتكلمهم إليه في ما طلبوا من أنفسهم وأجبروا عليه وتحكم فيهم بما حكم الله به على نفسك فيما جرى بينك وبينهم من معاملة وليكن بينك وبين ظلمهم من رعاية ذمة الله والوفاء بعهده وعهد رسول الله - صلى الله عليه واله - حائل فإنه بلغنا أنه قال: "مَنْ ظَلَمَ مُعَاهِداً كُنْتُ خَصْمَهُ" فاتق الله. ولا حول ولا قوة إلا بالله.

الخاتمة

فهذه خمسون حقاً محيطاً بك لا تخرج منها في حال من الأحوال، يجب عليك رعايتها والعمل في تأديتها والاستعانة بالله جل ثناؤه على ذلك. ولا حول ولا قوة إلا بالله، والحمد لله رب العالمين.

B\ The Translated Text

Treatise on Rights of Imam Ali Al-Sajjad (p.b.u.h.) translated by Peiravi and Morgan (2002)

In the Name of Allah, Most Beneficent, Most Merciful

Know - God have mercy upon you - that God has rights incumbent upon you and that these encompass you in every motion through which you move, every rest which you take, every way station in which you reside, every limb which you employ, and every instrument which you use. Some of these rights are greater than others. And the greatest of God's rights incumbent upon you is what He has made incumbent upon you for Himself - the Blessed and the Exalted - from His rights: that which is the root of all rights from which others branch out. Then there are those which He has made incumbent upon you in yourself, from your crown to your foot, according to the diversity of your organs.

He established for your sight a right incumbent upon you, and your hearing a right incumbent upon you, and your tongue a right incumbent upon you, and your stomach a right incumbent upon you, and your private part a right incumbent upon you. These are the seven organs through which deeds take place. Then the Mighty and the High established for your deeds rights incumbent upon you. Then He established for your ritual prayer a right incumbent upon you, and your fasting a right incumbent upon you, and your charity a right incumbent upon you, and your offering a right incumbent upon you, and your deeds a right incumbent upon you. Then the rights extend out from you to others who have rights incumbent upon you.

And the most incumbent of them incumbent upon you are the rights toward your leaders, then the rights toward your subjects, and then the rights toward your relations of kin. And from these rights branch out other rights. The rights of your leaders are three-fold: The one most incumbent upon you is the right of him who trains you through authority, then the right of him who trains you through knowledge, then the right of him who trains you through property. And each trainer is a leader. And the rights of your subjects are three-fold: The one most incumbent upon you is the right of those who are your subjects through authority, then the right of those who are your subjects through knowledge, for the man of ignorance is the subject of the man of knowledge. And then the right of those who are your subjects through property, such as wives and those owned by the right hand.

And the rights of your relations of kin are multi-fold: they hold according to the degree of closeness of the relationship. Then the most incumbent one upon you is the right of your mother, then the right of your father, then the right of your child, then the right of your brother, then the next nearest, and then the next nearest, and the most worthy, and then the next most worthy. Then there is the right of your master who favours you, then the right of the slave the servant whose favours reach you, then the right of him who treats you kindly, then the right of your caller to prayer, then the right of your prayer leader, then the right of your sitting companion, then the right of your neighbour, then the right of your companion, then the right of your partner, then the right of your property, then the right of the debtor who must pay you back, then the right of your creditor who demands his debt to be paid back, then the right of your associate, then the right of your adversary who has a claim against you, then the right of your adversary against whom you have a claim, then the

right of him who seeks your advice, then the right of him whose advice you seek, then the right of him who seeks your counsel, then the right of him whose counsel you seek, then the right of him who is older than you are, then the right of him who is younger than you are, then the right of him who begs from you, then the right of him from whom you beg, then the right of him who wrongs you either verbally or physically, then the right of him who does something to make you happy either verbally or physically whether intentionally or unintentionally, then the right of the people of your creed, then the right of those under the protection of Islam, then all rights hold which are incumbent upon you according to the vicissitudes of life and the availability of means.

Therefore blessed be the one whom God helps fulfil the rights which He has made incumbent upon him and whom He grants success therein and guides him.

Rights of God

1-THE GREATEST RIGHT OF GOD

Then the greatest right of God incumbent upon you is that you worship Him without associating anything with Him. When you do that with sincerity, He has made it binding upon Himself to give you sufficiency in the affairs of this world and the next and to keep for you whatever of them that you like.

2- THE RIGHT OF YOURSELF

And the right of yourself incumbent upon you is that you employ it in obeying God; then you deliver to your tongue its right, to your hearing its right, to your sight its right, to your hand its right, to your leg its right, to

your stomach its right, to your private part its right, and you seek help from God in all that.

3- THE RIGHT OF YOUR TONGUE

And the right of the tongue is that you consider it too noble for obscenity, accustom it to good, direct it to politeness, do not use it except in situations of needs and benefits of the religion and this world, and refrain from any meddling in which there is little to be gained, and there is no security from its harm that accompanies its small benefits. It is the witness to and the evidence of the existence of the intellect. The demonstration of an intelligent person's intellect is through his reputation of good speech. And there is no power but in God the High, the Great.

4- THE RIGHT OF YOUR HEARING

And the right of hearing is to keep it pure by not making it the direct pathway to your heart, except for noble words that establish some good in your heart or grant you a noble trait. Indeed hearing is the gateway through which various concepts reach the heart —whether good or evil. And there is no power but in God.

5- THE RIGHT OF YOUR SIGHT

And the right of your sight is that you lower it before everything, which is unlawful to you. And that you abandon using it, except in situations in which you can take heed in such a way that you gain insight or acquire knowledge by it. Indeed sight is the gateway to learning.

6- THE RIGHT OF YOUR LEGS

And the right of your legs is that you walk not with them toward that which is unlawful to you. And you should not direct them in the way that will lead the person they carry to being debased. Your legs will carry you

in the direction of the religion and they will help you go ahead. And there is no power but in God.

7- THE RIGHT OF YOUR HAND

And the right of your hand is that you stretch it not toward that which is unlawful to you. Should you do so, you will be chastised by God in the future. And you are not secure from the blameful tongue of the people now, either. Do not prevent your hands from performing what God has made obligatory for them. You should honour your hands in such a way as to prevent them from engaging in many of the deeds that are not allowed for them. You should let them engage in many deeds that are not harmful for them. If they are now used by the intellect and with honour now, then they are bound to receive a good reward in the future.

8- THE RIGHT OF YOUR STOMACH

And the right of your stomach is that you make it not into a container for a little of that which is unlawful to you or a lot of it. You should be determined to eat what is lawful and not exceed the bounds of strengthening to the extent of belittling your stomach to the point that you loose your manliness. And you should restrain it whenever you are extremely hungry or thirsty, since getting really full will cause indigestion, sluggishness, indolence, and it will hinder you from nobility and any good deeds. And drinking too much will make you feel drunk, light-headed, ignorant, and take away your manliness.

9- THE RIGHT OF YOUR PRIVATE PART

And the right of your private part is that you should protect it from everything that is unlawful for you and help it by lowering your eyes- this is certainly the best way to help it. And you should also remember death

often, And threaten yourself with God and try to make yourself fear God. Maintaining one's decency and receiving help in so doing are possible by God's help. There is no strength or power but in Him.

Rights of Deeds

10- THE RIGHT OF YOUR PRAYER

Then the right of your ritual prayer is that you should know that it is an arrival at the threshold of God and that through it you are standing before God. And when you realize that, then you will stand in the station of him who is lowly, vile, beseeching, trembling, hopeful, fearful, and abased, and you will magnify Him who is before you through stillness, and bowing of the head, and humbleness of the limbs, and yielding of the wing, and by saying the best supplications to him by yourself and beseeching Him to save you from the responsibilities which rest on your shoulders-surrounded by your faults and exhausted by your sins. And there is no power but in God.

11- THE RIGHT OF FASTING

And the right of fasting is that You should know it is a veil, which God has set up over your tongue, your hearing and your sight, your private parts and your stomach, to protect you from the Fire. This meaning is asserted in the tradition: "Fasting is an armor against the Fire." Thus if your parts can calm down within the veil of fasting, you have hopes of being protected. But if you leave them agitated behind the veil and let them lift the sides of the veil, then they will look at things that are not lawful for them to look at -that incite lust and powers that are beyond the limits of being God-fearing. It is not safe for you to break through the veil and leave it. And there is no power but in God.

12- THE RIGHT OF PILGRIMAGE

And the right of pilgrimage is that you should know that it is an arrival at the threshold of your Lord and a flight to Him from your sins; and through it your repentance is accepted and you perform an obligation made incumbent upon you by God.

13-THE RIGHT OF CHARITY

And the right of charity is that you should know that it is a storing away with your Lord and a deposit for which you will have no need for witnesses. Then once you know this you will be more confident of it if you donate it in secret than if you donate it in public. It is more appropriate for you to do privately what you now do in public and keep the affairs between you and Him secret under all circumstances. And you should also not take your hearing and sight as witnesses for the donations that you make in charity as if you have the most trust yourself. It should not be as if you are not sure that your donations will be returned to you. Finally you should not remind others of your favours since you have done so for yourself. If you remind them of your favours, you will not be immune from being similarly reminded of others' favours to you. Moreover this will prove that your intentions were not pure. If you had pure intentions you would not remind anyone of it. And there is no power but in God.

14- THE RIGHT OF THE OFFERING

And the right of the offering is that through it you purify your will toward your Lord, and expose yourself to His Mercy, and His approval and not the eyes of the observers lower than Him. If this is so, you will neither be hypocritical nor extravagant. You will only intend the offering for God's sake, and know that God wishes your ease, and does not wish

your hardship. He also wishes His creatures to take it easy, and does not wish them to suffer hardships. Likewise, modesty is better than arrogance, for there lies extravagance and falsehood in the arrogant, while there are no formalities or falsehoods in the humble and the servile, since they are creatures and they exist in nature. There is no power but in God.

Rights of Leaders

15- THE RIGHT OF THE POSSESSOR OF AUTHORITY

Then the right of the possessor of authority is that you should know that God has established you as a trial for him. God is testing him through the authority God has given him over you. And you should sincerely provide him with your advice. And you should not quarrel with him while he has full dominance over you, for thereby you cause your own destruction and his, too. And you should be humble and courteous for his gifts to attain his satisfaction with you, so that he will not harm your religion. And you should seek God's help in this regard. Do not oppose his power and do not resist him. Should you do so, you would have disobeyed him and disobeyed yourself: thus exposing yourself to encounter his evil and expose him to destruction by you. Thus you will deserve to be considered to be as his assistant acting against yourself and as his partner in what he does to you. And there is no power but in God.

16-THE RIGHT OF THE TRAINER THROUGH KNOWLEDGE

And the right of the one who trains you through knowledge is glorifying him, and respecting his meetings, and listening well to him, and being responsive to him, and helping him for yourself in the knowledge that you need by freeing your mind for him, and presenting your understanding to him, and purifying your heart for him, and fixing your eyes on him by means of abandoning leisures and diminishing lust.

And you should know that regarding what he teaches you, you are considered as his messenger to teach when you meet the ignorant ones. Therefore, it is binding upon you to render on his behalf properly, and not cheat in the fulfilment of his mission, and strive to deliver what you undertake. And there is no power but in God.

17-THE RIGHT OF THE TRAINER THROUGH OWNERSHIP

And the right of him who trains you through ownership is similar to the right of the possessor of authority over you. Except this one has a right which that one does not: being that you are bound to obey him in every matter, whether small or big, except for what would lead you to abandon incumbent rights of God, or in what would intervene between you, his rights and the rights of the people. And once you fulfil them, you can commit yourself to his rights and engage in fulfilling them. And there is no power but in God.

Rights of Subjects

18- THE RIGHT OF SUBJECTS THROUGH AUTHORITY

Then the right of your subjects through authority is that you should know that you have authority over them due to your power over them, and that they have been made your subjects through their weakness and humility. What do they deserve whose weakness and humility made them your subjects, and made your authority over them effective. They do not disobey you by their own might and power. They cannot find a supporter against your power except [by God], by His Mercy and Protection, and patience. How proper it is for you to recognize that God has granted you this increased might and power with which you have subdued others. You should be thankful to God. And God will increase His Graces to those who thank Him. And there is no power but in God.

19- THE RIGHT OF SUBJECTS THROUGH KNOWLEDGE

And the right of your subjects through knowledge is that you should know that God established you over them through what He has granted you of knowledge and what He has granted authority over His treasures of wisdom. If you do well in what God has given you authority over and treat them the same as the treatment of the treasurer, a sympathetic counselor who respects his master in the affairs of the slaves, the steadfast good-doer who, when he sees one who is needy, takes some of the property that he has control over to give away. Then you will be matured. And will be hopeful and faithful. Otherwise you will be regarded as betraying Him, and unjust to His creatures, and exposing yourself to God's seizing His Graces and Power from you.

20- THE RIGHT OF THE WIFE

And the right of your subject through matrimonial contract is that you should know that God has made her repose, a comfort and a companion, and a maintainer for you. It is incumbent upon each of you to thank God for the other and realize that the other one is God's blessing for you. It is obligatory to be a good companion for God's Blessing, and to honour her and treat her gently. Yet, your right over her is more incumbent and she must obey you in every matter that you like or detest-except in acts of disobedience to God. She should enjoy the rights of mercy and intimacy, as she is an object of tranquility. You should care for her through consummation of the lust that must be consummated. And that is surely great. And there is no power but in God.

21- THE RIGHT OF YOUR SLAVE

And the right of your subject through being your slave is that you should know that he is a creature of your Lord and is made of the same

flesh and blood. And you only own him, but you are much too inferior to God and you have not created him. And you have not created his hearing and sight, nor do you provide his daily sustenance; rather it is God who gives you sufficiency for that. Then He subjugated him to you, entrusted him to you, and provisionally consigned him with you. So protect him there, and treat him well just as well as he has treated you, and feed him with what you eat yourself, and clothe him with what you clothe yourself. And do not burden him with what he cannot withstand. And if you dislike him, you ought to let him go and replace him, but do not torment God's creature. And there is no power but in God.

Rights of Relations of Kin

22- THE RIGHT OF YOUR MOTHER

Then the right of your mother is that you should know that she carried you where no one carries anyone, and she fed you with the fruit of her heart -that which no one feeds anyone, and she protected you with her hearing and sight, and her hands and legs, and her hair and skin and all her other organs. She was highly delighted to do so. She was happy and eager, enduring the harm and the pains, and the heaviness and the grief until the Mighty Hand expelled you out of her and delivered you out to the earth. She did not care if she went hungry as long as you ate, and if she was naked as long as you were clothed, and if she was thirsty as long as you drank, and if she was in the sun as long as you were in the shade, and if she was miserable as long as you were happy, and if she was deprived of sleeping as long as you were resting. And her abdomen was your abode, and her lap was your seat, and her breast was your supply of drink, and her soul was your fort. She protected you from the heat and the cold of this world. Then you should thank her for all that. You will not be

able to show her gratitude unless through God's help and His granting you success.

23- THE RIGHT OF THE FATHER

And the right of your father is that you should know that he is your root and you are his branch. And without him, you would not be. Whenever you see anything in yourself which pleases you, you should know that your father is the root of its blessing upon you. So praise God and thank Him in recognition of that. And there is no power but in God.

24- THE RIGHT OF THE CHILD

And the right of your child is that you should know that he is from you and he will be ascribed to you in this world through both his good deeds and his evil deeds. And you are responsible for what has been entrusted to you in teaching him good conduct, and guiding him toward his Lord and helping him to obey Him on your behalf and for himself. Then you will be rewarded for so doing, and you will be punished. Then regarding his affairs, act like one who will be proud of bringing him up in this world, and one who is excused by His Lord for what is between you and him for taking good care of him, and the good results you achieved. And there is no power but in God.

25- THE RIGHT OF THE BROTHER

And the right of your brother is that you should know that he is your hand that you extend, and your back to whom you seek refuge, and your power upon whom you rely, and your might with which you compete. Take him not as a weapon with which to disobey God, nor as a means with which to violate God's rights. And do not neglect to help him against his own self and support him against his enemy, and intervene

between him and his devils, and give him good counsel, and associate with him for God's sake. Then if he obeys his Lord and is responsible towards Him properly it is fine. Else God should be more preferable and more honourable to you than he is.

Rights of Others

26- THE RIGHT OF MASTER ON THE FREED SLAVE

Then the right of your master who has favoured you is that you should know that he has spent his property for you and has brought you out of the abasement of slavery and its desolation, and has brought you into the honour of freedom and its sociability. And he has freed you from the captivity of his own possession and has released the bonds of his slavery from you. And he has led you to smell the scent of honour, and has brought you out of the prison of subjugation, and has repelled hardship from you, and has extended to you the tongue of fairness, and has liberated you to freely move about in the whole world, and has given you ownership of yourself, and has freed you from captivity, and has given you the freedom to worship your Lord. And for this he has suffered a decrease in his fortune. Then you should know that he is the closest creature to you after your relations of kin, in your life and after your death, and that he is the most meritorious creature to receive your assistance and support, and your help for God's sake. Therefore do not prefer yourself to him regarding any of his needs.

27- THE RIGHT OF THE FREED SLAVE ON HIS MASTER

And the right of the slave whom you have favoured is that you should know that God has established you as his supporter, and shelter and assistant, and refuge, and He has established him for you as the means and as a mediator between you and Him. Then by freeing him, he

will protect you from the Fire. And this is the reward you get from him in the future. And your immediate reward is to inherit from him if he does not have any relations of kin. There is a compensation for the property you have spent for him, and respecting his rights after you spent your property. Then if you do not respect his rights, there is the fear upon you that his inheritance would not be purified for you. And there is no power but in God.

28- THE RIGHT OF HIM WHO TREATS YOU KINDLY

And the right of him who treats you kindly is that you should thank him and acknowledge his kindness; and spread the good word around about him, and sincerely pray for him between you and God the Praised One. Then if you do that, you have thanked him both in private and in public. Then if you are able to practically recompense him, Do recompense him. Otherwise you should be determined to do so later.

29- THE RIGHT OF THE CALLER TO PRAYER

And the right of your caller to prayer is that you should know that he is the one reminding you of your Lord, and is calling you to your good fortune, and is your greatest helper in fulfilling an obligation that God has made incumbent upon you. Therefore thank him for that just as you thank one who does some good to you. And if you are upset with him at home due to this, you should not accuse him for this since his act is for God. And you should know that he is one of the Blessings of God to you. There is no doubt about it. Then you should kindly treat God's Blessing, by praising God for him under all circumstances. And there is no power but in God.

30- THE RIGHT OF THE RITUAL PRAYER LEADER

And the right of your leader in your ritual prayer is that you should know that he has taken on the role of a mediator between you and God and appeared in the presence of your Lord on your behalf. And he speaks for you, but you do not speak for him; and he supplicates for you, but you do not supplicate for him; and he has beseeched for you and you do not beseech for him. And he has spared you the anxiety of standing before God and the question of interrogation for your prayer, but you do not spare him that. Should he perform the prayer imperfectly, he is held responsible for that not you; and if he makes a mistake during the prayer, you will not be his partner in it, and there is no superiority in this for him over you. Then he protected you through himself, And he protected your prayer through his prayer. Therefore thank him for this. And there is no power nor any strength but in God.

31- THE RIGHT OF YOUR SITTING COMPANION

And the right of your sitting companion is that you should treat him gently, and warmly welcome him, and be fair while talking with him, and do not take your eyes off of him when you are looking at him, and pronounce your words clearly to help him understand what you say. And if you are the first one to go and sit with him, you can leave him when you wish. However, if he is the first one to come and sit with you, he can leave you when he wishes to. And you should not leave him without his permission. And there is no power but in God.

32- THE RIGHT OF THE NEIGHBOUR

And the right of your neighbour is that you should be as a guardian for him when he is absent, and you should honour him when he is present, and you should assist and support him in both situations. You

should not pursue any of his imperfections, and you should not seek any of his faults. But if you should discover any of his faults unintentionally, you should take the role of -regarding what you know- a fortified stronghold and a veiling screen. You should guard them in such a way that none of his defects can be discovered even if they are thoroughly inspected through spears. And you should not eavesdrop on him, and you should not forsake him during times of hardship. And you should not envy him when he receives a blessing.

Pardon his deviation and forgive his mistakes. And do not lose your temper when he behaves out of ignorance with you. And do not stop to be his supporter, and answer those who scold him. And divulge for him the deception of those who counsel him, and associate with him in an honourable manner. And there is no power nor any strength but in God.

33- THE RIGHT OF THE COMPANION

And the right of the companion is that you should act as his companion with nobility as much as you can. You should at least treat him with fairness and honour him as he honours you, and guard him as he guards you, and do not let him be the first one to deal with the other one with honour. And if he does so, you should do something for him in return. And you should not neglect the friendship that he deserves in the least bit. You should commit yourself to advise him, care for him, and help him perform the acts of obedience to his Lord, and help him restrain himself from any act of disobedience of his Lord that he might attempt. Then be like a mercy upon him, and not as a chastisement. And there is no power but in God.

34- THE RIGHT OF THE PARTNER

And the right of the partner is that you should take care of his affairs in his absence. And you should treat him equally when he is present. And you should not make any decisions on your own without considering his opinion. And you should not act according to your own opinion before discussing it with him. You should safeguard his property, and advise him against cheating whether there is honour or disdain in it, since it has been transmitted to us: “God's hand is with partners as long as they do not cheat.” And there is no power but in God.

35- THE RIGHT OF PROPERTY

And the right of your property is that you should not attain it except by legitimate means and you should only spend it for legitimate causes. You should not spend it improperly, you should not use it wrongfully, and you should not use what is from God in ways other than in His way and make it as a means to approach God. And you should not prefer to use it for one who does not show gratitude instead of using it for yourself. It is better that you do not leave it for others as inheritance who might use it not to obey your Lord, and then your wealth may be considered to be as an assistance for them in so doing. Or you may bequeath your property to one who spends it in the way of obedience to God in ways better than you do. Then he will gain the benefits, and you will be left with the sins, and the regret, and blame yourself for the ill consequence. And there is no power but in God.

36- THE RIGHT OF THE CREDITOR

And the right of him to whom you owe is that you should pay him back if you have the means to do so. You should meet his need, make him rich, and avoid putting him off and procrastinating. The Prophet, may

God's peace be upon him and his household, said: "Procrastination is oppression for the rich." But if you are in hardship you should satisfy him by using good words. You should gently ask him and send him away with gentleness. You should not take his property and mistreat him too. That will surely be mean. And there is no power but in God.

37- THE RIGHT OF THE ASSOCIATE

And the right of the associate is that you should not mislead, or cheat him, lie to him or fool him, and you should not trick him. And you should not treat him as an enemy does -who alienates all his friends. If he trusts you, you should be very careful of yourself for his sake, and realize that cheating the intimate ones is like usury. And there is no power but in God.

38- THE RIGHT OF THE ADVERSARY

A- THE RIGHT OF THE CLAIMING ADVERSARY

And the right of the adversary who has a claim against you is that if his claim against you is true, you should not nullify his proof and not abolish his claim. And you should dispute against yourself on his behalf and be a fair judge against yourself, and give witness to his right against you without the witnessing of any witnesses. This is the right of God that is made incumbent upon you. But if what he claims against you is false, treat him with patience and remind him to fear God, and implore him to his religion. And by reminding him of God you should help reduce his fury against you. Avoid using indecent words and yelling at him since this will not eliminate the animosity of your enemy but it will result in your suffering from the sin he commits against you. And it will also result in his sharpening of the sword of animosity towards you, since indecent

words will cause evil but good words will eradicate evil. And there is no power but in God.

B- THE RIGHT OF THE CLAIMED ADVERSARY

And the right of the adversary against whom you have a claim is that if your claim against him is true, you should use pleasant words while you are filing your claim, since hearing the claim is harsh for the defendant. And you should provide your evidence with lenience, and respite, and with the clearest statements, and with absolute gentleness. And you should not dispute with him over gossip lest your proofs will be voided and you will lose the opportunity to prove them. And there is no power but in God.

39- THE RIGHT OF HIM WHO SEEKS YOUR ADVICE

And the right of him who seeks your advice is that you should exert all efforts to advise him if you can provide him with a good opinion, and suggest to him to choose what you would have chosen if you were in his shoes. You should do so with mercy and with lenience since lenience will eliminate fear while rudeness will eliminate friendliness. But if you do not have any good advice for him, you should refer him to someone else whom you know and trust his advice yourself. You should spare no efforts to guide him towards the good and do your best to advise him. And there is no power but in God.

40- THE RIGHT OF HIM WHOSE ADVICE YOU SEEK

And the right of him whose advice you seek is that you should not accuse him when he gives you advice which does not conform to your own opinion. It is quite natural that opinions are divergent and people have various views about their affairs in which they disagree. You are

free not to accept his advice if you doubt it. However, you are not permitted to accuse him of providing you with ill advice as long as you consider him to be of those worthy of consultation. Do not stop thanking him for the thoughts and the good advice he has given you. And if it was appropriate for you, you should thank God for it, accept it from your religious brother with gratitude, and be ready to act similarly for him should one day he seek your advice. And there is no power but in God.

41- THE RIGHT OF HIM WHO SEEKS YOUR COUNSEL

And the right of him who seeks your counsel is that you should give him your counsel as much as you think he can bear. And you should talk with him with such gentle words that he listens to you and you should use such words that his intellect can understand. This is because for each person's intellect there is a certain way of talking, which he can comprehend and respond to. You should choose having mercy as your course of action. And there is no power but in God.

42- THE RIGHT OF THE COUNSELOR

And the right of your counsellor is that you should treat him gently, then you should be whole-heartedly attentive to him, and open your ears for him so that you understand his counsel. And then study it deeply and if what he presents to you is right, you should praise God for it, and accept it from him and acknowledge his favour. But if what he presents to you does not agree with you, you should be kind to him and make no accusations against him; and you should know that he spared no efforts to provide you with the best advice, but he made a mistake. Unless he deserves to be accused in which case you should not trust him under any circumstances. And there is no power but in God.

43- THE RIGHT OF THE OLDER ONE

And the right of him who is older than you are is that you should respect him because of his age, and honour his submission to God if he is one of the noble ones in Islam. You should recognize his seniority and stop confronting him in disputes and should not surpass him or walk ahead of him, and you should not treat him foolishly. If he should treat you foolishly, you should put up with him and honour him to respect his being an older Muslim. This is because the respect for one's age is according to how long he has been a Muslim. And there is no power but in God.

44- THE RIGHT OF THE YOUNGER ONE

And the right of him who is younger than you are is to be friendly with him, train and educate him, pardon him, and cover up his faults, be patient with him and help him, cover up the guilts of his juvenility because this will make him repent; treat him with patience, and stop quarrelling with him. This will lead him to more sensible conduct.

45- THE RIGHT OF HIM WHO BEGS FROM YOU

And the right of him who begs from you is that you should give him charity if you are certain that he is honest and you are able to fulfil his need. You should also pray to God to relieve him from what has befallen upon him, and help fulfil his needs. But if you doubt his honesty and he has already been accused of (dishonesty), but you are not convinced about this, you will not be sure whether this is one of the plots of Satan who is trying to deprive you from your fortune and cause a blockage between you and your approach to your Lord. Then you should leave him and overlook and should turn him down gently. But if you can overcome yourself in this respect and grant him what he has asked for

despite what is presented to you regarding him, then this is due to your resolution in the conduct of affairs.

46- THE RIGHT OF HIM FROM WHOM YOU BEG

And the right of him from whom you beg is that you should accept from him whatever he grants you with gratitude and acknowledges his nobility. And you should accept his excuse if he withholds and think well of him. And you should realize that if he withholds, he is withholding his own property, and that he could not be blamed for withholding his own property. If he is doing wrong, “then man is certainly wrong-doing and unbelieving.”

47- THE RIGHT OF HIM THROUGH WHOM GOD MAKES YOU HAPPY

And the right of him through whom God makes you happy is that if he intentionally made you happy, you should first praise God and then you should thank him accordingly, and reward him for initiating a nobility and be determined to return his favour. But if he made you happy unintentionally, you should praise God, thank Him, and realize that He chose you exclusively for that, and you liked it. He has been one of the means of God's Blessings descending upon you. You should only wish him well since the means of desension of Blessings are themselves Blessings wherever they be, even if unintentionally. And there is no power but in God.

48- THE RIGHT OF HIM WHO WRONGS YOU

And the right of him who wrongs you whether verbally or physically is that it is more appropriate for you to pardon him if it was done intentionally. This would eliminate bad feelings and is the polite way to

treat most such people. Indeed God says: “But indeed if any do help and defend themselves after a wrong (done) to them, against such there is no blame. The blame is only against those who oppress men with wrongdoing and insolently transgress beyond bounds throughout the land, defying right and justice: for such there will be a Penalty grievous. But indeed if any show patience and forgive, that would truly be an exercise of courageous will and resolution in the conduct of affairs.”

The Almighty the High also says: “And if ye do catch them out, catch them out no worse than they catch you out. But if ye show patience, that is indeed the best (course) for those who are patient.” This is so if it was intentional. But if he who wrongs you has done it unintentionally, then you should not oppress him by intentionally insisting on retaliation, lest you would be punishing him intentionally for what he has done unintentionally. You should also be friendly with him and treat him as gently as you can. And there is no power but in God.

49- THE RIGHT OF THE PEOPLE OF YOUR CREED

And the right of the people of your creed is that you should wholeheartedly provide safety for them, and gently show them mercy, and treat their wrong-doers with patience, and treat them with friendliness, and seek their welfare, and thank those of them who do good to you and to themselves. Their doing good to themselves is considered to be the same as doing good to you. This is because (by so doing) they have not bothered you and have not put you to any trouble. Then you should pray for all of them, and back all of them up with your support. And you should respect each one of them as he deserves: their old men hold the position of your fathers, and their children hold the position of your children, and their youths hold the position of your brothers. You should

gently and compassionately care for those of them who come to you. And you should treat your brethren as brothers deserve to be treated.

50- THE RIGHT OF THOSE UNDER THE PROTECTION OF ISLAM

And the right of those under the protection of Islam is that you should accept from them what God has accepted from them, and fulfil what God has established for them under His protection and covenant, and entrust them to Him in what they are required to carry out, and are obliged to do. And you should judge among them with the judgments of God that He commanded for you regarding the conditions of dealing with them, and do not wrong them as long as they honour God's covenant and fulfil their pledge. And the pledge of the Prophet, may God's peace be upon him and his household, is a barrier since it is reported that he said: "I am the adversary of whoever oppresses one who has a treaty." Therefore fear God. And there is no power but in God.

These are the fifty rights that surround you and you cannot evade under any circumstances. It is incumbent upon you to honour them and exert all efforts to fulfil them. You should seek God the Majestic's help in this respect. And there is no power but in God. And all praise is due to God the Lord of the Two Worlds.

الخلاصة

تحليل الخطاب النقدي هو نموذج بحثي يخاطب لغويا المسائل الاجتماعية من خلال عرض العلاقة بين النص والمجتمع. نظرا للأوقات العصيبة التي يمر بها العالم بسبب غياب أي مزام عملية أو حتى دعاوي حقيقية لحقوق الإنسان، أصبح من الضروري تسليط الضوء على هكذا مسألة. هنالك العديد من الطرق للتعامل معها، أحد هذه الطرق هو التوظيف اللغوي والنقدي لحقل تحليل الخطاب النقدي لتحليل نصين محورهما الأساسي هو الحقوق، يعنى، الاعلان العالمي لحقوق الإنسان ورسالة الحقوق للأمم علي السجاد (عليه السلام).

تتضمن هذه الدراسة هدف تقابل الاعلان العالمي لحقوق الإنسان ورسالة الحقوق مع التحقق في وتحري وتفسير تركيبهما اللغوي واساليب تأويلهما و ايدولوجياتهما على التوالي. لقد افترض: (1) التكوين اللغوي للنصين متباين بخصوص المفردات اللغوية، القواعد والهيكل النصي. (2) مجالات التفسير للنصين تختلف فيما يتعلق بحالة السياق، التناس، الافعال الكلامية والمخططات. (3) ايدولوجية الحقوق في الاعلان العالمي لحقوق الإنسان علمانية ومحدودة بالموقف السياسي والقانوني بينما ايدولوجية الحقوق في رسالة الحقوق دينية ومعنية بوجهات مختلفة من الحياة.

لإنجاز اهداف الدراسة واثبات فرضياتها، تُبْنِيَت الاجراءات التالية: (1) تقديم تقرير نظري عن تحليل الخطاب النقدي فيما يخص خلفيته الادبية وبعض الدراسات السابقة اضافة الى تقرير نظري حول النصين. (2) تحليل النصين المختارين من خلال اتباع نموذج تحليل انتقائي منطلق اساسيا من نموذج فيركلوف (١٩٨٩) *اللغة والسلطة* والتي تتكون من ثلاث مراحل وهي الوصف، التفسير والتوضيح اضافة الى لغويين اخرين. (3) مناقشة لنتائج التحليل. (4) مقارنة للنصين بعد كل مرحلة من التحليل لعرض نقاط التشابه والاختلاف. (5) تقديم الاستنتاجات والتوصيات والمقترحات.

وصلت الدراسة الحالية الى النتائج الاولى التالية: (1) بشكل وصفي يستعمل النصان مخططات تصنيفية مختلفة، ويستخدمان انواع عمليات متباينة، ويستغلان معنى الالتزام من خلال الافعال الشرطية المستخدمة، وهما منظمان نصيا بطريقة مختلفة. (2) تفسيرياً للنصين اغراض متباينة. هما يدمجان انواع غير متشابهة من النصوص. يوظفان كلاهما الافعال الكلامية التوجيهية اضافة الى انواع اخرى لكن رسالة الحقوق توظف استخدام الافعال الكلامية المساعدة التي تساعد الافعال الكلامية الرئيسية. أيضا مخططاتهما تنقل قصد مؤلفيهما من خلال الطريقة التي شكلا بها حيث ان الحقوق في الاعلان العالمي لحقوق الإنسان لا تتبع تدرج معين بينما في رسالة الحقوق صنف الحقوق بتسلسل هادف. (3) توضيحياً، برزت نقطتان اساسيتان. الاولى، تختلف الايدولوجيات التي بُني عليها الاعلان العالمي ورسالة الحقوق بين العلمانية والدينية على التوالي. ثانيا، تختلف سلطانهما تبعا لألأهما ومنبعهما المختلف.

وزارة التعليم العالي والبحث العلمي

جامعة بابل

كلية التربية للعلوم الانسانية

قسم اللغة الانكليزية



تحليل خطاب نقدي مقارنة للإعلان العالمي لحقوق الإنسان ورسالة الحقوق للأمام علي السجاد (عليه السلام)

رسالة تقدمت بها

نور عثمان عداي الجبوري

إلى مجلس كلية التربية للعلوم الانسانية في جامعة بابل جزءا من متطلبات نيل درجة
ماجستير في اللغة الانكليزية/اللغة

بإشراف

الاستاذ المساعد فراس عبد المنعم جواد

شوال, ١٤٣٨

تموز, ٢٠١٧